

REFLECTIONS
ON THE
RISE AND FALL
OF THE
ANCIENT REPUBLICS
ADAPTED TO THE
PRESENT STATE
OF
GREAT BRITAIN

BY EDWARD W. MONTAGU, JUN.

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Οὐ τί τῷδε, ἢ τῷδε δόξει λογιζόμενος
Ἀλλὰ τί πέπρακται λέγων.
Lucian. Histor. Scribend.

BY EDWARD W. MONTAGU, JUN.

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PREFACE

PLUTARCH takes notice of a very remarkable law of Solon's,¹ "which declared every man infamous, who, in any sedition or civil dissension in the state, should continue neuter, and refuse to side with either party." Aulus Gellius,² who gives a more circumstantial detail of this uncommon law, affirms the penalty to be "no less than confiscation of all the effects, and banishment of the delinquent." Cicero mentions the same law to his friend Atticus,³ and even makes the punishment capital, though he resolves at the same time not to conform to it under his present circumstances, unless his friend should advise him to the contrary.

Which of these relators has given us the real penalty annexed to this law by Solon, is scarce worth our inquiry. But I cannot help observing, that strange as this law may appear at first sight, yet if we reflect upon the reasons of it, as they are assigned by Plutarch and A. Gellius, it will not appear unworthy of that great legislator.

The opinion of Plutarch is; "that Solon intended no citizen, as soon as ever he had provided for the security of his own private affairs, should be so unfeeling with respect to the publick welfare, as to affect a brutal insensibility,⁴ and not to sympathize with the distress and calamities of his country: but that he should immediately join the honester and juster party; and rather risque his all in defence of the side he had espoused, than keep aloof from danger until he saw which party proved the stronger."

The reason given by A. Gellius is more striking, and less liable to objections than that of Plutarch. "If (says that writer) all the good men in any state, when they find themselves too weak to stem the torrent of a furious divided populace, and unable to suppress a sedition at its first breaking out, should immediately divide, and throw themselves into the opposite sides, the event in such a case would be that each party, which they had differently espoused, would naturally begin to cool, and put themselves under their direction, as persons of the greatest weight and authority: thus it would be greatly in the power of such men so circumstanced, to reconcile all differences, and restore peace and union, while they mutually restrained and moderated the fury of their own party, and convinced the opposite side,

that they sincerely wished and laboured for their safety, not for their destruction.”

What effect this law had in the Athenian state is no where mentioned. However, as it is plainly founded upon that relation which every member bears to the body politick, and that interest which every individual is supposed to have in the good of the whole community; it is still, though not in express terms, yet virtually received in every free country. For those who continue neuter in any civil dissension, under the denomination of moderate men, who keep aloof and wait quietly in order to follow the fortune of the prevailing side, are generally stigmatized with the opprobrious name of *time servers*, and consequently neither esteemed, nor trusted by either party.

As our own country is blessed with the greatest share of liberty, so is it more subject to civil dissensions than any other nation in Europe. Every man is a politician, and warmly attached to his respective party; and this law of Solon’s seems to take place as strongly in Britain, as ever it did in the most factious times at Athens. Freedom of thought, or the liberty of the mind, arises naturally from the very essence of our constitution; and the liberty of the press, that peculiar privilege of the British subject, gives every man a continual opportunity of laying his sentiments before the publick. Would our political writers pursue the salutary intention of Solon, as delivered to us by A. Gellius in his explication of that extraordinary law, they might contribute greatly to the establishment of that harmony and union, which can alone preserve and perpetuate the duration of our constitution. But the opposite views and interests of parties make the altercation endless; and the victory over an antagonist is generally the aim, whilst the investigation of truth only, ought ever to be the real end proposed in all controversial inquiries. The points which have lately exercised so many pens, turn upon the present expediency, or absolute insignificancy, of a *militia*; or, what principles conduce most to the power, the happiness, and the duration of a free people. The dispute has been carried on, not only with warmth, but even with virulence. The chicane of sophistry has been employed, whilst indecent personal reflections, and the unfair charge of disaffection, have been too often made use of to supply the defect of argument, and to prejudice the reader, where they despaired of confuting the writer. Historical facts have been either misrepresented, or ascribed to wrong principles; the history of ancient nations has been quoted in general terms, without marking the different periods distinguished by some

memorable change in the manners or constitution of the same people, which will ever make a wide difference in the application.

Anxious after truth, and unsatisfied with so many bold assertions destitute of all proof but the writer's word, which I daily met with, I determined coolly and impartially to examine the evidence arising from ancient history, which both sides so frequently appealed to: for bare speculative reasoning is no more conclusive in political inquiries than in physical. Facts and experience alone must decide: and political facts and experience must alone be learned from history. Determined therefore to judge for myself, I carefully read over the histories of the most celebrated republics of antiquity in their original languages, unbiased either by comments or translations; a part of history of all others the most instructive, and most interesting to an Englishman.

As instruction was the sole end of my inquiries, I here venture to offer the result of them to the candour of the publick, since my only motive for writing was a most ardent concern for the welfare of my country. The design therefore of these papers is, to warn my countrymen, by the example of others, of the fatal consequences which must inevitably attend our intestine divisions at this critical juncture; and to inculcate the necessity of that national union, upon which the strength, the security, and the duration of a free state must eternally depend. Happy, if my weak endeavours could in the least contribute to an end so salutary, so truly desirable!

In the numerous quotations from the Greek and Latin historians, which are unavoidable in a treatise of this nature, I have endeavoured to give the genuine sense and meaning of the author, to the best of my abilities. But as every reader has an equal right of judging for himself, I have subjoined in the margin, the original words of the author, with the book, page, name, and date of the respective edition, I made use of, for the ease as well as the satisfaction of the candid and judicious: for that vague and careless manner, which some writers affect, of quoting an author by name only, without specifying the particular passage referred to in evidence, is neither useful, nor satisfactory to the generality of readers; whilst the unfair method, too often practised, of quoting disjointed scraps, or unconnected sentences, is apt to raise strong suspicions, that the real sentiments and intention of the author are kept out of sight, and that the writer is endeavouring to palm false evidence upon his readers.

I must take the liberty of offering another reason, which, I confess, was of more weight with me, because more personally interesting. As the British state and the ancient free republics were founded upon the same principles, and their policy and constitution nearly similar, so, as like causes will ever produce like effects, it is impossible not to perceive an equal resemblance between their and our manners, as they and we equally deviated from those first principles. Unhappily, the resemblance between the manners of our own times, and the manners of those republics in their most degenerate periods, is, in many respects, so striking, that unless the words in the original were produced as vouchers, any well-meaning reader, unacquainted with those historians, would be apt to treat the descriptions of those periods, which he may frequently meet with, as licentious, undistinguished satire upon the present age.

The behaviour of some of our political writers makes an apology of this nature in some measure necessary; on the one hand, that I may avoid the imputation of pedantry, or being thought fond of an idle ostentatious parade of learning; on the other, *lest a work calculated to promote domestick peace and union, should be strained, by the perverseness of party construction, into an inflammatory libel.*

INTRODUCTION.

I AM not at all surprised at those encomiums which the philosophers and poets so lavishly bestow upon the pleasures of a country retirement. The profusion of varying beauties, which attend the returning seasons, furnishes out new and inexhaustible subjects for the entertainment of the studious and contemplative. Even winter carries charms for the philosophick eye, and equally speaks the stupendous power of the great author of nature. To search out and adore the Creator through his works, is our primary duty, and claims the first place in every rational mind. To promote the publick good of the community of which we are born members, in proportion to our situation and abilities, is our secondary duty as men and citizens. I judged therefore a close attention to the study of history the most useful way of employing that time which my country recess afforded, as it would enable me to fulfil this obligation: and upon this principle I take the liberty of offering these papers as my mite towards the publick good.

In the course of these researches nothing gave me so much pleasure as the study of ancient history: because it made me so truly sensible of the inestimable value of our own constitution, when I observed the very different maxims and conduct, and the strong contrast between the founders of despotick monarchies, and the legislators of the free states of antiquity. In the former, that absurd and impious doctrine of millions created for the sole use and pleasure of one individual, seems to have been the first position in their politicks, and the general rule of their conduct. The latter fixed the basis of their respective states upon this just and benevolent plan, “that the safety and happiness of the whole community was the only end of all government.” The former treated mankind as brutes, and lorded it over them by force. The latter received them as their fellow-creatures, and governed them by reason: hence whilst we detest the former as the enemies and destroyers; we cannot help admiring and revering the latter, as the lovers and benefactors of mankind.

The histories which I considered with the greatest attention, gave me the highest entertainment, and affected me most, were those of the free states of Greece, Carthage, and Rome. I saw with admiration the profound wisdom and sagacity, the unwearied labour and disinterested spirit of those amiable

and generous men, who contributed most towards forming those states, and settling them upon the firmest foundations. I traced with pleasure their gradual progress towards that height of power, to which in process of time they arrived; and I remarked the various steps and degrees by which they again declined, and at last sunk gradually into their final dissolution, not without a just mixture of sorrow and indignation.

It would be a labour of more curiosity, than of real use at this time, to give a long detail of the original formation of those states, and the wise laws and institutions by which they were raised to that envied degree of perfection; yet a concise account of the primitive constitution of each state may be so far necessary, as it will render the deviations from that constitution more intelligible, and more fully illustrate the causes of their final subversion. But to point out and expose the principal causes, which contributed gradually to weaken, and at length demolish and level with the ground, those beautiful fabricks raised by the publick virtue, and cemented by the blood of so many illustrious patriots, will, in my opinion, be more interesting and more instructive.

When I consider the constitution of our own country, I cannot but think it the best calculated for promoting the happiness, and preserving the lives, liberty, and property of mankind, of any yet recorded in profane history. I am persuaded too, that our wise ancestors, who first formed it, adopted whatever they judged most excellent and valuable in those states when in their greatest perfection; and did all that human wisdom could do for rendering it durable, and transmitting it pure and entire to future generations. But as all things under the sun are subject to change, and children are too apt to forget and degenerate from the virtues of their fathers, there seems great reason to fear, that what has happened to those free states may at length prove the melancholy fate of our own country; especially when we reflect, that the same causes, which contributed to their ruin, operate at this time so very strongly amongst us. As I thought therefore that it might be of some use to my country at this dangerous crisis, I have selected the interesting examples of those once free and powerful nations, who by totally deviating from those principles upon which they were originally founded, lost first their liberty, and at last their very existence, so far as to leave no other vestiges remaining of them as a people, but what are to be found in the records of history.

It is an undoubted truth, that our own constitution has at different times suffered very severe shocks, and been reduced more than once to the very point of ruin: but because it has hitherto providentially escaped, we are not to flatter ourselves that opportunities of recovery will always offer. To me therefore the method of proof drawn from example, seemed more striking, as well as more level to every capacity, than all speculative reasoning: for as the same causes will, by the stated laws of sublunary affairs, sooner or later invariably produce the same effects, so whenever we see the same maxims of government prevail, the same measures pursued, and the same coincidences of circumstances happen in our own country, which brought on, and attend the subversion of those states, we may plainly read our own fate in their catastrophe, unless we apply speedy and effectual remedies, before our case is past recovery. It is the best way to learn wisdom in time from the fate of others; and if examples will not instruct and make us wiser, I confess myself utterly at a loss to know what will.

In my reflections, which naturally arose in the course of these researches, truth and impartiality have been my only guides. I have endeavoured to show the principal causes of that degeneracy of manners, which reduced those once brave and free people into the most abject slavery. I have marked the alarming progress which the same evils have already made, and still continue to make amongst us, with that honest freedom which is the birthright of every Englishman. My sole aim is to excite those who have the welfare of their country at heart, to unite their endeavours in opposing the fatal tendency of those evils, whilst they are within the power of remedy. With this view, and this only, I have marked out the remote as well as immediate causes of the ruin of those states, as so many beacons warning us to avoid the same rocks upon which they struck, and at last suffered shipwreck.

Truth will ever be unpalatable to those who are determined not to relinquish error, but can never give offence to the honest and well-meaning amongst my countrymen. For the plain-dealing remonstrances of a friend differ as widely from the rancour of an enemy, as the friendly probe of the physician from the dagger of the assassin.

REFLECTIONS

ON THE
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CHAPTER I.

OF THE REPUBLIC OF SPARTA.

ALL the free states of Greece were at first monarchical,⁵ and seem to owe their liberty rather to the injudicious oppressions of their respective kings, than to any natural propensity in the people to alter their form of government. But as they had smarted so severely under an excess of power lodged in the hands of one man, they were too apt to run into the other extreme, democracy; a state of government the most subject of all others to disunion and faction.

Of all the Grecian states, that of Sparta seems to have been the most unhappy, before their government was new modelled by Lycurgus. The authority of their kings and their laws (as Plutarch informs us) were alike trampled upon and despised. Nothing could restrain the insolence of the headstrong encroaching populace; and the whole government sunk into anarchy and confusion. From this deplorable situation the wisdom and virtue of one great man raised his country to that height of power, which was the envy and the terror of her neighbours. A convincing proof how far the influence of one great and good man will operate towards reforming the most bold licentious people, when he has once thoroughly acquired their esteem and confidence! Upon this principle Lycurgus founded his plan of totally altering and new moulding the constitution of his country. A design, all circumstances considered, the most daring, and the most happily executed, of any yet immortalized in history.⁶

Lycurgus succeeded to the moiety of the crown of Sparta at the death of his elder brother; but his brother's widow declaring herself with child, and that child proving to be a son, he immediately resigned the regal dignity to the new born infant, and governed as protector and guardian of the young prince during his minority. The generous and disinterested behaviour of Lycurgus upon this occasion endeared him greatly to the people; who had already experienced the happy effect of his wise and equitable administration. But to avoid the malice of the queen-mother and her faction, who accused him of designs upon the crown, he prudently quitted both the

government and his country. In his travels during this voluntary exile, he drew up and thoroughly digested his great scheme of reformation. He visited all those states which at that time were most eminent for the wisdom of their laws, or the form of their constitution. He carefully observed all the different institutions, and the good or bad effects which they respectively produced on the manners of each people. He took care to avoid what he judged to be defects; but selected whatever he found calculated to promote the happiness of a people; and with these materials he formed his so much celebrated plan of legislation, which he very soon had an opportunity of reducing to practice. For the Spartans, thoroughly sensible of the difference between the administration of Lycurgus and that of their kings, not only earnestly wished for his presence, but sent repeated deputations to entreat him to return, and free them from those numerous disorders under which their country at that time laboured. As the request of the people was unanimous, and the kings no ways opposed his return, he judged it the critical time for the execution of his scheme. For he found affairs at home in the distracted situation they had been represented, and the whole body of the people in a disposition proper for his purpose.

Lycurgus began his reform with a change in the constitution, which at that time consisted of a confused medley of hereditary monarchy divided between two families, and a disorderly democracy, utterly destitute of the balance of a third intermediate power, a circumstance so essential to the duration of all mixed governments. To remedy this evil, he established a senate with such a degree of power, as might fix them the inexpugnable barrier of the constitution against the encroachments either of kings or people. The crown of Sparta had been long divided between two families descended originally from the same ancestor, who jointly enjoyed the succession. But though Lycurgus was sensible that all the mischiefs which had happened to the state, arose from this absurd division of the regal power, yet he made no alteration as to the succession of the two families. Any innovation in so nice a point might have proved an endless source of civil commotions, from the pretensions of that line which should happen to be excluded. He therefore left them the title and the ensignia of royalty, but limited their authority, which he confined to the business of war and religion. To the people he gave the privilege of electing the senators, and giving their sanction to those laws which the kings and senate should approve.

When Lycurgus had regulated the government, he undertook a task more arduous than any of the fabled labours of Hercules. This was to new mould his countrymen, by extirpating all the destructive passions, and raising them above every weakness and infirmity of human nature. A scheme which all the great philosophers had taught in theory, but none except Lycurgus was ever able to reduce to practice.

As he found the two extremes, of great wealth and great indigence, were the source of infinite mischiefs in a free state, he divided the lands of the whole territory into equal lots proportioned to the number of the inhabitants. He appointed publick tables, at which he enjoined all the citizens to eat together without distinction; and he subjected every man, even the kings themselves, to a fine if they should violate this law by eating at their own houses.⁷ Their diet was plain, simple, and regulated by the law, and distributed amongst the guests in equal portions. Every member was obliged monthly to contribute his quota for the provision of his respective table. The conversation allowed at these publick repasts, turned wholly upon such subjects as tended most to improve the minds of the younger sort in the principles of wisdom and virtue. Hence, as Xenophon observes, they were schools not only for temperance and sobriety, but also for instruction. Thus Lycurgus introduced a perfect equality amongst his countrymen. The highest and the lowest fared alike as to diet, were all lodged and clothed alike, without the least variation either in fashion or materials.

When by these means he had exterminated every species of luxury, he next removed all temptation to the acquisition of wealth, that fatal source of the innumerable evils which prevailed in every other country. He effected this with his usual policy, by forbidding the currency of gold and silver money, and substituting an iron coinage of great weight and little value, which continued the only current coin through the whole Spartan dominions for several ages.

To bar up the entrance of wealth, and guard his citizens against the contagion of corruption, he absolutely prohibited navigation and commerce, though his country contained a large extent of sea coast furnished with excellent harbours. He allowed as little intercourse as possible with foreigners, nor suffered any of his countrymen to visit the neighbouring states, unless when the publick business required it, lest they should be infected with their vices. Agriculture, and such mechanick trades as were

absolutely necessary for their subsistence, he confined to their slaves the Helots; but he banished all those arts which tended either to debase the mind, or enervate the body. Musick he encouraged, and poetry he admitted, but both subject to the inspection of the magistrates.⁸ Thus by the equal partition of the lands, and the abolition of gold and silver money, he at once preserved his country from luxury, avarice, and all those evils which arise from an irregular indulgence of the passions, as well as all contentions about property, with their consequence, vexatious lawsuits.

To ensure the observance of his laws to the latest posterity, he next formed proper regulations for the education of their children, which he esteemed one of the greatest duties of a legislator. His grand maxim was “that children were the property of the state, to whom alone their education was to be intrusted.” In their first infancy, the nurses were instructed to indulge them neither in their diet, nor in those little froward humours which are so peculiar to that age; to inure them to bear cold and fasting; to conquer their first fears by accustoming them to solitude and darkness; and to prepare them for that stricter state of discipline, to which they were soon to be initiated.

When arrived at the age of seven years, they were taken from the nurses, and placed in their proper classes. The diet and clothing of all were the same, just sufficient to support nature, and defend them from the inclemency of the seasons; and they all lodged alike in the same dormitory on beds of reeds, to which for the sake of warmth they were all allowed in winter to add the down of thistles. Their sports and exercises were such as contributed to render their limbs supple, and their bodies compact and firm. They were accustomed to run up the steepest rocks barefoot; and swimming, dancing, hunting, boxing, and wrestling, were their constant diversions. Lycurgus was equally solicitous in training up the youth to a habit of passive courage as well as active. They were taught to despise pain no less than danger, and to bear the severest scourgings with the most invincible constancy and resolution. For to flinch under the strokes, or to exhibit the least sign of any sense of pain, was deemed highly infamous.

Nor were the minds of the Spartan youth cultivated with less care. Their learning, as Plutarch informs us, was sufficient for their occasions, for Lycurgus admitted nothing but what was truly useful. They carefully instilled into their tender minds the great duties of religion, and the sacred

indispensable obligation of an oath, and trained them up in the best of sciences, the principles of wisdom and virtue. The love of their country seemed to be almost innate; and this leading maxim, “that every Spartan was the property of his country, and had no right over himself,” was by the force of education incorporated into their very nature.

When they arrived to manhood they were enrolled in their militia, and allowed to be present in their public assemblies: privileges which only subjected them to a different discipline. For the employments and way of living of the citizens of Sparta were fixed, and settled by as strict regulations as in an army upon actual service. When they took the field, indeed, the rigour of their discipline with respect to diet and the ornament of their persons was much softened, so that the Spartans were the only people in the universe, to whom the toils of war afforded ease and relaxation. In fact, Lycurgus’s plan of civil government was evidently designed to preserve his country free and independent, and to form the minds of his citizens for the enjoyment of that rational and manly happiness, which can find no place in a breast enslaved by the pleasures of the senses, or ruffled by the passions; and the military regulations which he established, were as plainly calculated for the protection of his country from the encroachments of her ambitious neighbours.⁹ For he left no alternative to his people, but death or victory; and he laid them under a necessity of observing those regulations, by substituting the valour of the inhabitants in the place of walls and fortifications for the defence of their city.

If we reflect that human nature is at all times and in all places the same, it seems to the last degree astonishing, how Lycurgus could be able to introduce such a self-denying plan of discipline amongst a disorderly licentious people: a scheme, which not only levelled at once all distinction, as to property, between the richest and the poorest individual, but compelled the greatest persons in the state to submit to a regimen which allowed only the bare necessities of life, excluding every thing which in the opinion of mankind seems essential to its comforts and enjoyments. I observed before that he had secured the esteem and confidence of his countrymen, and there was, besides, at that time a very lucky concurrence of circumstances in his favour. The two kings were men of little spirit, and less abilities, and the people were glad to exchange their disorderly state for any settled form of government. By his establishment of a senate consisting of thirty persons who held their seats for life, and to whom he committed the supreme power

in civil affairs, he brought the principal nobility into his scheme, as they naturally expected a share in a government which they plainly saw inclined so much to an aristocracy. Even the two kings very readily accepted seats in his senate, to secure some degree of authority. He awed the people into obedience by the sanction he procured for his scheme from the oracle at Delphos, whose decisions were, at that time, revered by all Greece as divine and infallible. But the greatest difficulty he had to encounter was to procure the equal partition of the lands. The very first proposal met with so violent an opposition from the men of fortune, that a fray ensued, in which Lycurgus lost one of his eyes. But the people, struck with the sight of the blood of this admired legislator, seized the offender, one Alcander, a young man of a hot, but not disingenuous disposition, and gave him up to Lycurgus to be punished at discretion. But the humane and generous behaviour of Lycurgus quickly made a convert of Alcander, and wrought such a change, that from an enemy he became his greatest admirer and advocate with the people.

Plutarch and the rest of the Greek historians leave us greatly in the dark as to the means by which Lycurgus was able to make so bitter a pill, as the division of property, go down with the wealthy part of his countrymen. They tell us indeed, that he carried his point by the gentle method of reasoning and persuasion, joined to that religious awe which the divine sanction of the oracle impressed so deeply on the minds of the citizens. But the cause, in my opinion, does not seem equal to the effect. For the furious opposition which the rich made to the very first motion for such a distribution of property, evinces plainly, that they looked upon the responses of the oracle as mere priestcraft, and treated it as the *esprits-forts* have done religion in modern times; I mean as a state engine fit only to be played off upon the common people. It seems most probable, in my opinion, that as he effected the change in the constitution by the distribution of the supreme power amongst the principal persons, when he formed his senate; so the equal partition of property was the bait thrown out to bring over the body of the people entirely to his interest. I should rather think that he compelled the rich to submit to so grating a measure, by the assistance of the poorer citizens, who were vastly the majority.

As soon as Lycurgus had thoroughly settled his new polity, and by his care and assiduity imprinted his laws so deeply in the minds and manners of his countrymen, that he judged the constitution able to support itself, and

stand upon its own bottom, his last scheme was to fix, and perpetuate its duration down to latest posterity, as far as human prudence and human means could effect it. To bring his scheme to bear, he had again recourse to the same pious artifice which had succeeded so well in the beginning. He told the people in a general assembly, that he could not possibly put the finishing stroke to his new establishment, which was the most essential point, until he had again consulted the oracle. As they all expressed the greatest eagerness for his undertaking the journey, he laid hold of so fair an opportunity to bind the kings, senate, and people, by the most solemn oaths, to the strict observance of his new form of government, and not to attempt the least alteration in any one particular until his return from Delphos. He had now completed the great design which he had long in view, and bid an eternal adieu to his country. The question he put to the oracle was “whether the laws he had already established, were rightly formed to make and preserve his countrymen virtuous and happy?” The answer he received was just as favourable as he desired. It was “that his laws were excellently well calculated for that purpose; and that Sparta should continue to be the most renowned city in the world, as long as her citizens persisted in the observance of the laws of Lycurgus.” He transmitted both the question and the answer home to Sparta in writing, and devoted the remainder of his life to voluntary banishment. The accounts in history of the end of this great man are very uncertain. Plutarch affirms, that as his resolution was never to release his countrymen from the obligation of the oath he had laid them under, he put a voluntary end to his life at Delphos by fasting. Plutarch extols the death of Lycurgus in very pompous terms, as a most unexampled instance of heroic patriotism, since he bequeathed, as he terms it, his death to his country, as the perpetual guardian to that happiness, which he had procured for them during his lifetime. Yet the same historian acknowledges another tradition, that Lycurgus ended his days in the island of Crete, and desired, as his last request, that his body should be burnt, and his ashes thrown into the sea;¹⁰ lest, if his remains should at any time be carried back to Sparta, his countrymen might look upon themselves as released from their oath as much as if he had returned alive, and be induced to alter his form of government. I own, I prefer this latter account, as more agreeable to the genius and policy of that wise and truly disinterested legislator.

The Spartans, as Plutarch asserts, held the first rank in Greece for discipline and reputation full five hundred years, by strictly adhering to the

laws of Lycurgus; which not one of their kings ever infringed for fourteen successions quite down to the reign of the first Agis. For he will not allow the creation of those magistrates called the ephori, to be any innovation in the constitution, since he affirms it to have been, “not a relaxation, but an extension, of the civil polity.”¹¹ But notwithstanding the gloss thrown over the institution of the ephori by this nice distinction of Plutarch’s, it certainly induced as fatal a change into the Spartan constitution, as the tribuneship of the people, which was formed upon that model, did afterwards into the Roman. For instead of enlarging and strengthening the aristocratical power, as Plutarch asserts, they gradually usurped the whole government, and formed themselves into a most tyrannical oligarchy.

The ephori (a Greek word signifying inspectors or overseers) were five in number, and elected annually by the people out of their own body. The exact time of the origin of this institution and of the authority annexed to their office, is quite uncertain. Herodotus ascribes it to Lycurgus; Xenophon to Lycurgus jointly with the principal citizens of Sparta. Aristotle and Plutarch fix it under the reign of Theopompus and Polydorus, and attribute the institution expressly to the former of those princes about one hundred and thirty years after the death of Lycurgus. I cannot but subscribe to this opinion as the most probable, because the first political contest we meet with at Sparta happened under the reign of those princes, when the people endeavoured to extend their privileges beyond the limits prescribed by Lycurgus. But as the joint opposition of the kings and senate was equally warm, the creation of this magistracy out of the body of the people, seems to have been the step taken at that time to compromise the affair, and restore the public tranquillity: a measure which the Roman senate copied afterwards, in the erection of the tribuneship, when their people mutinied, and made that memorable secession to the *mons sacer*. I am confirmed in this opinion by the relation which Aristotle gives us of a remarkable dispute between Theopompus and his wife upon that occasion.¹² The queen much dissatisfied with the institution of the ephori, reproached her husband greatly for submitting to such a diminution of the regal authority, and asked him if he was not ashamed to transmit the crown to his posterity so much weaker and worse circumstanced, than he received it from his father. His answer, which is recorded amongst the laconick *bons mots*, was, “no, for I transmit it more lasting.”¹³ But the event showed that the lady was a better politician, as well as truer prophet, than her husband. Indeed the nature of

their office, the circumstances of their election, and the authority they assumed, are convincing proofs that their office was first extorted, and their power afterwards gradually extended, by the violence of the people, irritated too probably by the oppressive behaviour of the kings and senate. For whether their power extended no farther than to decide, when the two kings differed in opinion, and to overrule in favour of him whose sentiments should be most conducive to the publick interest, as we are told by Plutarch in the life of Agis; or whether they were at first only select friends, whom the kings appointed as deputies in their absence, when they were both compelled to take the field together in their long wars with the Messenians, as the same author tells us by the mouth of his hero Cleomenes, is a point, which history does not afford us light enough to determine. This however is certain, from the concurrent voice of all the ancient historians, that at last they not only seized upon every branch of the administration, but assumed the power of imprisoning, deposing, and even putting their kings to death by their own authority. The kings too, in return, sometimes bribed, sometimes deposed or murdered the ephori, and employed their whole interest to procure such persons to be elected, as they judged would be most tractable. I look therefore on the creation of the ephori as a breach in the Spartan constitution, which proved the first inlet to faction and corruption. For that these evils took rise from the institution of the ephori is evident from the testimony of Aristotle, “who thought it extremely impolitick to elect magistrates, vested with the supreme power in the state, out of the body of the people;¹⁴ because it often happened, that men extremely indigent were raised in this manner to the helm, whom their very poverty tempted to become venal. For the ephori, as he affirms, had not only been frequently guilty of bribery before his time, but, even at the very time he wrote, some of those magistrates, corrupted by money, used their utmost endeavours, at the publick repasts, to accomplish the destruction of the whole city. He adds too, that as their power was so great as to amount to a perfect tyranny, the kings themselves were necessitated to court their favour by such methods as greatly hurt the constitution, which from an aristocracy degenerated into an absolute democracy. For that magistracy alone had engrossed the whole government.”

From these remarks of the judicious Aristotle, it is evident that the ephori had totally destroyed the balance of power established by Lycurgus. From the tyranny therefore of this magistracy proceeded those convulsions which

so frequently shook the state of Sparta, and at last gradually brought on its total subversion. But though this fatal alteration in the Spartan constitution must be imputed to the intrigues of the ephori and their faction, yet it could never, in my opinion, have been effected without a previous degeneracy in their manners; which must have been the consequence of some deviation from the maxims of Lycurgus.

It appears evidently from the testimony of Polybius and Plutarch, that the great scheme of the Spartan legislator was, to provide for the lasting security of his country against all foreign invasions, and to perpetuate the blessings of liberty and independency to the people. By the generous plan of discipline which he established, he rendered his countrymen invincible at home. By banishing gold and silver, and prohibiting commerce and the use of shipping, he proposed to confine the Spartans within the limits of their own territories; and by taking away the means, to repress all desires of making conquests upon their neighbours. But the same love of glory and of their country which made them so terrible in the field, quickly produced ambition and a lust of domination; and ambition as naturally opened the way for avarice and corruption. For Polybius truly observes, that as long as they extended their views no farther than the dominion over their neighbouring states, the produce of their own country was sufficient for what supplies they had occasion for in such short excursions.¹⁵ But when, in direct violation of the laws of Lycurgus, they began to undertake more distant expeditions both by sea and land, they quickly felt the want of a publick fund to defray their extraordinary expenses. For they found by experience, that neither their iron money, nor their method of trucking the annual produce of their own lands for such commodities as they wanted (which was the only traffick allowed by the laws of Lycurgus) could possibly answer their demands upon those occasions. Hence their ambition, as the same historian remarks, laid them under the scandalous necessity of paying servile court to the Persian monarchs for pecuniary supplies and subsidies, to impose heavy tributes upon the conquered islands, and to exact money from the other Grecian states, as occasions required.

Historians unanimously agree, that wealth with its attendants, luxury and corruption, gained admission at Sparta in the reign of the first Agis. Lysander, alike a hero and a politician; a man of the greatest abilities and the greatest dishonesty that Sparta ever produced; rapacious after money, which at the same time he despised, and a slave only to ambition, was the

author of an innovation so fatal to the manners of his countrymen. After he had enabled his country to give law to all Greece by his conquest of Athens, he sent home that immense mass of wealth, which the plunder of so many states had put into his possession. The most sensible men amongst the Spartans, dreading the fatal consequences of this capital breach of the institutions of their legislator, protested strongly before the ephori against the introduction of gold and silver, as pests destructive to the publick. The ephori referred it to the decision of the senate, who, dazzled with the lustre of that money, to which until that time they had been utter strangers, decreed “that gold and silver money might be admitted for the service of the state; but made it death, if any should ever be found in the possession of a private person.” This decision Plutarch censures as weak and sophistical.¹⁶ As if Lycurgus was only afraid simply of money, and not of that dangerous love of money which is generally its concomitant; a passion which was so far from being rooted out by the restraint laid upon private persons, that it was rather inflamed by the esteem and value which was set upon money by the publick. Thus, as he justly remarks, whilst they barred up the houses of private citizens against the entrance of wealth by the terror and safeguard of the law, they left their minds more exposed to the love of money and the influence of corruption, by raising an universal admiration and desire of it, as something great and respectable. The truth of this remark appears by the instance given us by Plutarch, of one Thorax, a great friend of Lysander’s, who was put to death by the ephori, upon proof that a quantity of silver had been actually found in his possession.

From that time Sparta became venal, and grew extremely fond of subsidies from foreign powers. Agesilaus, who succeeded Agis, and was one of the greatest of their kings, behaved in the latter part of his life more like the captain of a band of mercenaries, than a king of Sparta. He received a large subsidy from Tachos, at that time king of Egypt, and entered into his service with a body of troops which he had raised for that purpose. But when Nectanabis, who had rebelled against his uncle Tachos, offered him more advantageous terms, he quitted the unfortunate monarch and went over to his rebellious nephew, pleading the interest of his country in excuse for so treacherous and infamous an action.¹⁷ So great a change had the introduction of money already made in the manners of the leading Spartans!

Plutarch dates the first origin of corruption, that disease of the body politick, and consequently the decline of Sparta, from that memorable period, when the Spartans having subverted the domination of Athens, glutted themselves (as he terms it) with gold and silver.¹⁸ For when once the love of money had crept into their city, and avarice and the most sordid meanness grew up with the possession, as luxury, effeminacy and dissipation did with the enjoyment of wealth, Sparta was deprived of many of her ancient glories and advantages, and sunk greatly both in power and reputation, until the reign of Agis and Leonidas.¹⁹ But as the original allotments of land were yet preserved (the number of which Lycurgus had fixed and decreed to be kept by a particular law) and were transmitted down from father to son by hereditary succession, the same constitutional order and equality still remaining, raised up the state again, however, from other political lapses.

Under the reign of those two kings happened the mortal blow, which subverted the very foundation of their constitution. Epitadeus, one of the ephori, upon a quarrel with his son, carried his resentment so far as to procure a law which permitted every one to alienate their hereditary lands, either by gift or sale, during their lifetime, or by will at their decease. This law produced a fatal alteration in the landed property. For as Leonidas, one of their kings, who had lived a long time at the court of Seleucus, and married a lady of that country, had introduced the pomp and luxury of the east at his return to Sparta, the old institutions of Lycurgus, which had fallen into disuse, were by his example soon treated with contempt.²⁰ Hence the necessity of the luxurious, and the extortion of the avaricious, threw the whole property into so few hands, that out of seven hundred, the number to which the ancient Spartan families were then reduced, about one hundred only were in possession of their respective hereditary lands allotted by Lycurgus.²¹ The rest, as Plutarch observes, lived an idle life in the city, an indigent abject herd, alike destitute of fortune and employment; in their wars abroad, indolent dispirited dastards; at home ever ripe for sedition and insurrections, and greedily catching at every opportunity of embroiling affairs in hope of such a change as might enable them to retrieve their fortunes. Evils, which the extremes of wealth and indigence are ever productive of in free countries.

Young Agis, the third of that name, and the most virtuous and accomplished king that ever sat upon the throne of Sparta since the reign of the great Agesilaus, undertook the reform of the state, and attempted to re-establish the old Lycurgic constitution, as the only means of extricating his country out of her distresses, and raising her to her former dignity and lustre. An enterprise attended not only with the greatest difficulties, but, as the times were so corrupt, with the greatest danger.²² He began with trying the efficacy of example, and though he had been bred in all the pleasures and delicacy which affluence could procure, or the fondness of his mother and grandmother, who were the wealthiest people in Sparta, could indulge him in, yet he at once changed his way of life as well as his dress, and conformed to the strictest discipline of Lycurgus in every particular. This generous victory over his passions, the most difficult and most glorious of all others, had so great an effect amongst the younger Spartans, that they came into his measures with more alacrity and zeal than he could possibly have hoped for.²³ Encouraged by this success, Agis brought over some of the principal Spartans, amongst whom was his uncle Agesilaus, whose influence he made use of to persuade his mother, who was sister to Agesilaus, to join his party.²⁴ For her wealth, and the great number of her friends, dependants, and debtors, made her extremely powerful, and gave her great weight in all publick transactions.

His mother, terrified at first at her son's rashness, condemned the whole as the visionary scheme of a young man, who was attempting a measure not only prejudicial to the state, but quite impracticable. But when the reasonings of Agesilaus had convinced her that it would not only be of the greatest utility to the publick but might be effected with great ease and safety, and the king himself entreated her to contribute her wealth and interest to promote an enterprise which would redound so much to his glory and reputation;²⁵ she and the rest of her female friends at last changed their sentiments. Fired then with the same glorious emulation, and stimulated to virtue; as it were by some divine impulse, they not only voluntarily spurred on Agis, but summoned and encouraged all their friends, and incited the other ladies to engage in so generous an enterprise.²⁶ For they were conscious (as Plutarch observes) of the great ascendancy which the Spartan women had always over their husbands, who gave their wives a much greater share in the publick administration, than their wives allowed them in

the management of their domestic affairs. A circumstance which at that time had drawn almost all the wealth of Sparta into the hands of the women, and proved a terrible, and almost unsurmountable obstacle to Agis. For the ladies had violently opposed a scheme of reformation, which not only tended to deprive them of those pleasures and trifling ornaments, which, from their ignorance of what was truly good and laudable, they absurdly looked upon as their supreme happiness, but to rob them of that respect and authority which they derived from their superior wealth. Such of them therefore as were unwilling to give up these advantages, applied to Leonidas, and entreated him, as he was the more respectable man for his age and experience, to check his young hotheaded colleague, and quash whatever attempts he should make to carry his designs into execution. The older Spartans were no less averse to a reformation of that nature. For as they were deeply immersed in corruption, they trembled at the very name of Lycurgus, as much as runaway slaves, when retaken, do at the sight of their master.

Leonidas was extremely ready to side with and assist the rich, but durst not openly oppose Agis for fear of the people, who were eager for such a revolution. He attempted therefore to counteract all his attempts underhand, and insinuated to the magistrates, that Agis aimed at setting up a tyranny, by bribing the poor with the fortunes of the rich; and proposed the partition of lands and the abolition of debts as the means for purchasing guards for himself only, not citizens, as he pretended, for Sparta.

Agis, however, pursued his design, and having procured his friend Lysander to be elected one of the ephori, immediately laid his scheme before the senate. The chief heads of his plan were: "that all debts should be totally remitted; that the whole land should be divided into a certain number of lots; and that the ancient discipline and customs of Lycurgus should be revived." Warm debates were occasioned in the senate by this proposal, which at last was rejected by a majority of one only.²⁷ Lysander in the meantime convoked an assembly of the people, where after he had harangued, Mondroclidas and Agesilaus beseeched them not to suffer the majesty of Sparta to be any longer trampled upon for the sake of a few luxurious overgrown citizens, who imposed upon them at pleasure.²⁸ They reminded them not only of the responses of ancient oracles, which enjoined them to beware of avarice, as the pest of Sparta, but also of those so lately

given by the oracle at Pasiphae, which, as they assured the people, commanded the Spartans to return to that perfect equality of possessions, which was settled by the law first instituted by Lycurgus.²⁹ Agis spoke last in this assembly, and to enforce the whole by example, told them in a very few words, “that he offered a most ample contribution towards the establishment of that polity, of which he himself was the author. That he now resigned his whole patrimony into the common stock, which consisted not only of rich arable and pasture land, but of six hundred talents besides in coined money. He added, that his mother, grandmother, friends and relations, who were the most wealthy of all the citizens of Sparta, were ready to do the same.”

The people, struck with the magnanimity and generosity of Agis, received his offer with the loudest applause, and extolled him, as the only king who for three hundred years past had been worthy of the throne of Sparta. This provoked Leonidas to fly out into the most open and violent opposition from the double motive of avarice and envy. For he was sensible, that if this scheme took place, he should not only be compelled to follow their example, but that the surrender of his estate would then come from him with so ill a grace, that the honour of the whole measure would be attributed solely to his colleague. Lysander, finding Leonidas and his party too powerful in the senate, determined to prosecute and expel him for the breach of a very old law, which forbid any of the royal family to intermarry with foreigners, or to bring up any children which they might have by such marriage, and inflicted the penalty of death upon any one who should leave Sparta to reside in foreign countries.

After Lysander had taken care that Leonidas should be informed of the crime laid to his charge, he with the rest of the ephori, who were of his party, addressed themselves to the ceremony of observing a sign from heaven.³⁰ A piece of state craft most probably introduced formerly by the ephori to keep the kings in awe, and perfectly well adapted to the superstition of the people. Lysander affirming that they had seen the usual sign, which declared that Leonidas had sinned against the gods, summoned him to his trial, and produced evidence sufficient to convict him. At the same time he spirited up Cleombrotus, who had married the daughter of Leonidas, and was of the royal blood, to put in his claim to the succession. Leonidas, terrified at these daring measures, fled, and took sanctuary in the

temple of Minerva: he was deposed therefore for non-appearance, and his crown given to his son-in-law Cleombrotus.

But as soon as the term of Lysander's magistracy expired, the new ephori, who were elected by the prevailing interest of the opposite party, immediately undertook the protection of Leonidas. They summoned Lysander and his friends to answer for their decrees for cancelling debts, and dividing the lands, as contrary to the laws, and treasonable innovations; for so they termed all attempts to restore the ancient constitution of Lycurgus. Alarmed at this, Lysander persuaded the two kings to join in opposing the ephori; who, as he plainly proved, assumed an authority which they had not the least right to, as long as the kings acted together in concert. The kings, convinced by his reasons, armed a great number of the youth, released all who were prisoners for debt, and thus attended went into the forum, where they deposed the ephori, and procured their own friends to be elected into that office, of whom Agesilaus the uncle of Agis was one. By the care and humanity of Agis, no blood was spilt on this memorable occasion. He even protected his antagonist Leonidas against the designs which Agesilaus had formed upon his life, and sent him under a safe convoy to Tegea.

After this bold stroke, all opposition sunk before them, and every thing succeeded to their wishes; when the single avarice of Agesilaus, that most baneful pest, as Plutarch terms it, which had subverted a constitution the most excellent, and the most worthy of Sparta that had ever yet been established, overset the whole enterprise. By the character which Plutarch gives of Agesilaus, he appears to have been artful and eloquent, but at the same time effeminate, corrupt in his manners, avaricious, and so bad a man, that he engaged in this projected revolution with no other view but that of extricating himself from an immense load of debt, which he had most probably contracted to support his luxury.³¹ As soon therefore as the two kings, who were both young men, agreed to proceed upon the abolition of debts, and the partition of lands, Agesilaus artfully persuaded them not to attempt both at once, for fear of exciting some terrible commotion in the city. He assured them farther that if the rich should once be reconciled to the law for cancelling the debts, the law for dividing the lands would go down with them quietly and without the least obstruction. The kings assented to his opinion, and Lysander himself was brought over to it, deceived by the same specious, though pernicious reasoning: calling in

therefore all the bills, bonds, and pecuniary obligations, they piled them up, and burnt them all publicly in the forum, to the great mortification of the moneyed men, and the usurers. But Agesilaus in the joy of his heart could not refrain from joking upon the occasion, and told them with a sneer, that whatever they might think of the matter, it was the brightest and most cheerful flame, and the purest bonfire, he had ever beheld in his lifetime.³² Agesilaus had now carried his point, and his conduct proves, that the Spartans had learned the art of turning publick measures into private jobs, as well as their politer neighbours. For though the people called loudly for the partition of lands, and the kings gave orders for it to be done immediately, Agesilaus contrived to throw new obstacles in the way, and protracted the time by various pretences, until Agis was obliged to march with the Spartan auxiliaries to assist their allies the Achæans. For he was in possession of a most fertile and extensive landed estate at the very time when he owed more than he was worth; and as he had got rid of all his incumbrances at once by the first decree, and never intended to part with a single foot of his land, it was by no means his interest to promote the execution of the second.

The Spartan troops were mostly indigent young men, who elate with their freedom from the bonds of usury, and big with the hopes of a share in the lands at their return, followed Agis with the greatest vigour and alacrity, and behaved so well in their march, that they reminded the admiring Greeks of the excellent discipline and decorum for which the Spartans were formerly so famous under the most renowned of their ancient leaders. But whilst Agis was in the field, affairs at home took a very unhappy turn in his disfavour. The tyrannical behaviour of Agesilaus, who fleeced the people with insupportable exactions, and stuck at no measure, however infamous or criminal, which would bring in money, produced another revolution in favour of Leonidas. For the people, enraged at being tricked out of the promised partition of the lands, which they imputed to Agis and Cleombrotus, and detesting the rapaciousness of Agesilaus, readily joined that party which conspired to restore Leonidas. Agis finding affairs in this desperate situation at his return, gave up all for lost, and took sanctuary in the temple of Minerva, as Cleombrotus had done in the temple of Neptune.

Though Cleombrotus was the chief object of Leonidas's resentment, yet he spared his life at the intercession of his daughter Chelonis, the wife of Cleombrotus; but condemned him to perpetual exile. The generous Chelonis

gave a signal instance, upon this occasion, of that heroick virtue, for which the Spartan ladies were once so remarkably eminent. When her father was expelled by the intrigues of Lysander, she followed him into exile, and refused to share his crown with Cleombrotus. In this calamitous reverse of fortune, she was deaf to all entreaties, and rather chose to partake of the miseries of banishment with her husband, than all the pleasures and grandeur of Sparta with her father. Plutarch pays the ladies a fine compliment, upon this occasion, when he says, “that unless Cleombrotus should have been wholly corrupted by false ambition, he must have deemed himself more truly happy in a state of banishment with such a wife, than he could have been upon a throne without her.”³³

But though Cleombrotus escaped death, yet nothing but the blood of Agis could satisfy the vindictive rage of the ungrateful Leonidas, who, in the former revolution, owed his life to that unfortunate prince’s generosity. After many ineffectual attempts to entice Agis from his asylum, three of his intimate friends in whom he most confided, who used to accompany and guard him to the baths and back again to the temple, betrayed him to his enemies. Amphares, the chief of these, and the contriver of the plot, was one of the new ephori created after the deposition of Agesilaus. This wretch had lately borrowed a quantity of valuable plate, and a number of magnificent vestments, of Agis’s mother Agesistrata, and determined to make them his own by the destruction of Agis and his family; at their return therefore in their usual friendly manner from the baths, he first attacked Agis by virtue of his office, whilst Demochares and Arcesilaus, the other two, seized and dragged him to the publick prison. Agis supported all these indignities with the utmost magnanimity: and when the ephori questioned him, whether Agesilaus and Lysander did not constrain him to do what he had done, and whether he did not repent of the steps he had taken; he undauntedly took the whole upon himself, and told them that he gloried in his scheme, which was the result of his emulation to follow the example of the great Lycurgus. Stung with this answer, the ephori condemned him to die by their own authority, and ordered the officers to carry him to the place in the prison where the malefactors were strangled. But when the officers and even the mercenary soldiers of Leonidas refused to be concerned in so infamous and unprecedented an action as laying hands upon their king, Demochares threatening and abusing them greatly for their disobedience, seized Agis with his own hands, and dragged him to the execution room,

where he was ordered to be dispatched immediately. Agis submitted to his fate with equal intrepidity and resignation, reproving one of the executioners who deplored his calamities, and declaring himself infinitely happier than his murderers. The unfeeling and treacherous Amphares attended the execution, and as soon as Agis was dead, he admitted his mother and grandmother into the prison, who came to intercede that Agis might be allowed to make his defence before the people. The wretch assured the mother, with an insulting sneer, that her son should suffer no heavier punishment than he had done already; and immediately ordered her mother Archidamia, who was extremely old, to execution. As soon as she was dead, he bid Agesistrata enter the room, where, at the sight of the dead bodies, she could not refrain from kissing her son, and crying out, that his too great lenity and good-nature had been their ruin. The savage Amphares, laying hold of those words, told her, that as she approved of her son's actions she should share his fate. Agesistrata met death with the resolution of an old Spartan heroine, praying only that this whole affair might not prove prejudicial to her country.

Thus fell the gallant Agis in the cause of liberty and publick virtue, by the perfidy of his mercenary friends, and the violence of a corrupt and most profligate faction. I have given a more particular detail of the catastrophe of this unfortunate prince as transmitted to us by Plutarch, because it furnishes convincing proofs, how greatly the introduction of wealth had corrupted and debased the once upright and generous spirit of the Spartans.

Archidamas, the brother of Agis, eluded the search made for him by Leonidas, and escaped the massacre by flying from Sparta. But Leonidas compelled his wife Agiatis, who was a young lady of the greatest beauty in all Greece, and sole heiress to a vast estate, to marry his own son Cleomenes, though Agiatis had but just lain-in of a son, and the match was entirely contrary to her inclinations. This event however produced a very different effect from what Leonidas intended, and after his death proved the ruin of his party, and revenged the murder of Agis.³⁴ For Cleomenes, who was very young, and extremely fond of his wife, would shed sympathizing tears whenever she related the melancholy fate of Agis, and occasionally desire her to explain his intentions, and the nature of his scheme, to which he would listen with the greatest attention. From that time he determined to follow so glorious an example, but kept the resolution secret in his own breast until the means and opportunity should offer. He was sensible that an

attempt of that nature would be utterly impracticable whilst his father lived; who, like the rest of the leading citizens, had wholly given himself up to a life of ease and luxury. Warned too by the fate of Agis, he knew how extremely dangerous it was even once to mention the old frugality and simplicity of manners, which depended upon the observance of the discipline and institutions of Lycurgus. But as soon as ever he succeeded to the crown at the death of his father, and found himself the sole reigning king of Sparta without a colleague, he immediately applied his whole care and study to accomplish that great change which he had before projected. For he observed the manners of the Spartans in general were grown extremely corrupt and dissolute, the rich sacrificing the publick interest to their own private avarice and luxury; the poor, from their extreme indigence, averse to the toils of war, careless and negligent of education and discipline; whilst the ephori had engrossed the whole royal power, and left him in reality nothing but the empty title: circumstances greatly mortifying to an aspiring young monarch, who panted eagerly after glory, and impatiently wished to retrieve the lost reputation of his countrymen.

He began by sounding his most intimate friend, one Xenares, at a distance only, inquiring what sort of a man Agis was, and which way, and by whose advice, he was drawn into those unfortunate measures. Xenares, who attributed all his questions to the curiosity natural to a young man, very readily told him the whole story, and explained ingenuously every particular of the affair as it really happened. But when he remarked that Cleomenes often returned to the charge, and every time with greater eagerness, more and more admiring and applauding the scheme and character of Agis, he immediately saw through his design. After reproving him, therefore, severely for talking and behaving thus like a madman, Xenares broke off all friendship and intercourse with him, though he had too much honour to betray his friend's secret. Cleomenes, not in the least discouraged at this repulse, but concluding that he should meet with the same reception from the rest of the wealthy and powerful citizens, determined to trust none of them, but to take upon himself the whole care and management of his scheme.³⁵ However, as he was sensible that the execution of it would be much more feasible, when his country was involved in war, than in a state of profound peace, he waited for a proper opportunity; which the Achæans quickly furnished him with. For Aratus, the great projector of the famous Achæan league, into which he had already brought many of the Grecian

states, holding Cleomenes extremely cheap, as a raw unexperienced boy, thought this a favourable opportunity of trying how the Spartans stood affected towards that union. Without the least previous notice therefore, he suddenly invaded such of the Arcadians as were in alliance with Sparta, and committed great devastations in that part of the country which lay in the neighbourhood of Achaia.

The ephori, alarmed at this unexpected attack, sent Cleomenes at the head of the Spartan forces to oppose the invasion. The young hero behaved well, and frequently baffled that old experienced commander. But his countrymen growing weary of the war, and refusing to concur in the measures he proposed for carrying it on, he recalled Archidamus the brother of Agis from banishment, who had a strict hereditary right to the other moiety of the kingdom; imagining that when the throne was properly filled according to law, and the regal power preserved entire by the union of the two kings, it would restore the balance of government and weaken the authority of the ephori. But the faction which had murdered Agis, justly dreading the resentment of Archidamus for so atrocious a crime, took care privately to assassinate him upon his return.

Cleomenes now more than ever intent upon bringing his great project to bear, bribed the ephori with large sums to intrust him with the management of the war.³⁶ His mother Cratesiclea not only supplied him with money upon this occasion, but married one Megistonus, a man of the greatest weight and authority in the city, purposely to bring him over to her son's interest. Cleomenes taking the field, totally defeated the army of Aratus, and killed Lydiadas the Megalopolitan general. This victory, which was entirely owing to the conduct of Cleomenes, not only raised the courage of his soldiers, but gave them so high an opinion of his abilities, that he seems to have been recalled by his enemies, jealous most probably of his growing interest with the army. For Plutarch, who is not very methodical in his relations, informs us, that after this affair, Cleomenes convinced his father-in-law, Megistonus, of the necessity of taking off the ephori, and reducing the citizens to their ancient equality according to the institutions of Lycurgus, as the only means of restoring Sparta to her former sovereignty over Greece.³⁷ This scheme therefore must have been privately settled in Sparta. For we are next told, that Cleomenes again took the field, carrying with him such of the citizens as he suspected were most likely to oppose

him. He took some cities from the Achæans that campaign, and made himself master of some important places, but harrassed his troops so much with many marches and countermarches, that most of the Spartans remained behind in Arcadia at their own request, whilst he marched back to Sparta with his mercenary forces and such of his friends as he could most confide in. He timed his march so well that he entered Sparta whilst the ephori were at supper, and despatched Euryclidas before with three or four of his most trusty friends and a few soldiers to perform the execution. For Cleomenes well knew that Agis owed his ruin to his too cautious timidity, and his too great lenity and moderation. Whilst Euryclidas therefore amused the ephori with a pretended message from Cleomenes, the rest fell upon them sword in hand, and killed four upon the spot, with above ten persons more who came to their assistance. Agesilaus the survivor of them fell, and counterfeiting himself dead, gained an opportunity of escaping. Next morning as soon as it was light, Cleomenes proscribed and banished fourscore of the most dangerous citizens, and removed all the chairs of the ephori out of the forum, except one which he reserved for his own seat of judicature. He then convoked an assembly of the people, to whom he apologized for his late actions. He showed them, in a very artful and elaborate speech, “the nature and just extent of the power of the ephori, the fatal consequences of the authority they had usurped of governing the state by their own arbitrary will, and of deposing and putting their kings to death without allowing them a legal hearing in their own defence.”³⁸ He urged the example of Lycurgus himself, who came armed into the forum when he first proposed his laws, as a proof that it was impossible to root out those pests of the commonwealth, which had been imported from other countries, luxury, the parent of that vain expense which runs such numbers in debt, usury, and those more ancient evils, wealth and poverty, without violence and bloodshed: that he should have thought himself happy, if like an able physician he could have radically cured the diseases of his country without pain: but that necessity had compelled him to do what he had already done, in order to procure an equal partition of the lands, and the abolition of their debts, as well as to enable him to fill up the number of the citizens with a select number of the bravest foreigners, that Sparta might be no longer exposed to the depredations of her enemies for want of hands to defend her.”

To convince the people of the sincerity of his intentions, he first gave up his whole fortune to the publick stock; Megistonus, his father-in-law, with

his other friends, and all the rest of the citizens, followed his example. In the division of the lands, he generously set apart equal portions for all those citizens he had banished, and promised to recall them as soon as the publick tranquillity was restored. He next revived the ancient method of education, the gymnastick exercises, publick meals, and all other institutions of Lycurgus; and lest the people, unaccustomed to the denomination of a single king, should suspect that he aimed at establishing a tyranny, he associated his brother Euclidas with him in the kingdom. By training up the youth in the old military discipline, and arming them in a new and better manner, he once more recovered the reputation of the Spartan militia, and raised his country to so great a height of power, that Greece in a very short time saw Sparta giving law to all Peloponnesus.³⁹

The Achæans, humbled by repeated defeats, and begging peace of Cleomenes upon his own terms, the generous victor desired only to be appointed general of their famous league, and offered upon that condition to restore all the cities and prisoners he had taken. The Achæans gladly consenting to such easy terms, Cleomenes released and sent home all the persons of rank amongst his prisoners, but was obliged by sickness to defer the day appointed for the convention, until his return from Sparta. This unhappy delay was fatal to Greece.⁴⁰ For Aratus, who had enjoyed that honour thirty-three years, could not bear the thought of having it wrested from him by so young a prince, whose glory he envied as much as he dreaded his valour. Finding therefore all other methods ineffectual, he had recourse to the desperate remedy of calling in the Macedonians to his assistance, and sacrificed the liberty of his own country, as well as that of Greece, to his own private pique and jealousy. Thus the most publick-spirited assertor of liberty, and the most implacable enemy to all tyrants in general, brought back those very people into the heart of Greece, whom he had driven out formerly purely from his hatred to tyranny, and sullied a glorious life with a blot never to be erased, from the detestable motives of envy and revenge. A melancholy proof, as Plutarch moralizes upon the occasion, of the weakness of human nature, which with an assemblage of the most excellent qualities is unable to exhibit the model of a virtue completely perfect. A circumstance which ought to excite our compassion towards those blemishes which we unavoidably meet with in the most exalted characters.

Cleomenes supported this unequal war against the Achæans and the whole power of Macedon with the greatest vigour, and by his success gave many convincing proofs of his abilities; but venturing a decisive battle at Sallasia, he was totally defeated by the superior number of his enemies, and the treachery of Damoteles, an officer in whom he greatly confided, who was bribed to betray him by Antigonus. Out of six thousand Spartans, two hundred only escaped, the rest with their king Euclidas were left dead on the field of battle. Cleomenes retired to Sparta, and from thence passed over to Ptolemy Euergetes king of Egypt, with whom he was then in alliance, to claim the assistance he had formerly promised. But the death of that monarch, which followed soon after, deprived him of all hopes of succour from that quarter. The Spartan manners were as odious to his successor Ptolemy Philopater, a weak and dissolute prince, as the Spartan virtue was terrible to his debauched effeminate courtiers. Whenever Cleomenes appeared at court, the general whisper ran, that he came as a lion in the midst of sheep; a light in which a brave man must necessarily appear to a herd of such servile dastards. Confined at last by the jealousy of Ptolemy, who was kept in a perpetual alarm by the insinuations of his iniquitous minister Sosybius, he with about twelve more of his generous Spartan friends broke out of prison determined upon death or liberty. In their progress through the streets, they first slew one Ptolemy, a great favourite of the king, who had been their secret enemy; and meeting the governor of the city, who came at the first noise of the tumult, they routed his guards and attendants, dragged him out of his chariot, and killed him. After this they ranged uncontrouled through the whole city of Alexandria, the inhabitants flying every where before them, and not a man daring either to assist or oppose them. Such terror could thirteen brave men only strike into one of the most populous cities in the universe, where the citizens were bred up in luxury, and strangers to the use of arms! Cleomenes, despairing of assistance from the citizens, whom he had in vain summoned to assert their liberty, declared such abject cowards fit only to be governed by women. Scorning therefore to fall by the hands of the despicable Egyptians, he with the rest of the Spartans fell desperately by their own swords, according to the heroism of those ages.⁴¹

The liberty and happiness of Sparta expired with Cleomenes.⁴² For the remains of the Spartan history furnishes us with very little after his death, besides the calamities and miseries of that unhappy state, arising from their

intestine divisions. Machanidas, by the aid of one of the factions which at that time rent that miserable republick, usurped the throne, and established an absolute tyranny. One Nabis, a tyrant, compared to whom even Nero himself may be termed merciful, succeeded at the death of Machanidas, who fell in battle by the hand of the great Philopœmen. The Ætolians treacherously murdered Nabis, and endeavoured to seize the dominion of Sparta; but they were prevented by Philopœmen, who partly by force, partly by persuasion, brought the Spartans into the Achæan league, and afterwards totally abolished the institutions of Lycurgus.⁴³ A most inhuman and most iniquitous action, as Plutarch terms it, which must brand the character of that hero with eternal infamy. As if he was sensible that as long as the discipline of Lycurgus subsisted, the minds of the Spartan youth could never be thoroughly tamed, or effectually broke to the yoke of foreign government. Wearied out at last by repeated oppressions, the Spartans applied to the Romans for redress of all their grievances; and their complaints produced that war which ended in the dissolution of the Achæan league, and the subjection of Greece to the Roman domination.

I have entered into a more minute detail of the Spartan constitution, as settled by Lycurgus, than I at first proposed; because the maxims of that celebrated lawgiver are so directly opposite to those which our modern politicians lay down as the basis of the strength and power of a nation.

Lycurgus found his country in the most terrible of all situations, a state of anarchy and confusion. The rich, insolent and oppressive; the poor groaning under a load of debt, mutinous from despair, and ready to cut the throats of their usurious oppressors. To remedy these evils, did this wise politician encourage navigation, strike out new branches of commerce, and make the most of those excellent harbours, and other natural advantages which the maritime situation of his country afforded? Did he introduce and promote arts and sciences, that by acquiring and diffusing new wealth amongst his countrymen, he might make his nation, in the language of our political writers, secure, powerful, and happy? just the reverse. After he had new-modelled the constitution, and settled the just balance between the powers of government, he abolished all debts, divided the whole land amongst his countrymen by equal lots, and put an end to all dissensions about property by introducing a perfect equality. He extirpated luxury and a lust of wealth, which he looked upon as the pests of every free country, by prohibiting the use of gold and silver; and barred up the entrance against

their return by interdicting navigation and commerce, and expelling all arts, but what were immediately necessary to their subsistence. As he was sensible that just and virtuous manners are the best support of the internal peace and happiness of every kingdom, he established a most excellent plan of education for training up his countrymen, from their very infancy, in the strictest observance of their religion and laws, and the habitual practice of those virtues which can alone secure the blessings of liberty and perpetuate their duration. To protect his country from external invasions, he formed the whole body of the people, without distinction, into one well armed, well disciplined national militia, whose leading principle was the love of their country, and who esteemed death in its defence, the most exalted height of glory to which a Spartan was capable of attaining. Nor were these elevated sentiments confined solely to the men; the colder breasts of the women caught fire at the glorious flame, and glowed even with superior ardour. For when their troops marched against an enemy, “to bring back their shields, or to be brought home upon them,” was the last command which the Spartan mothers gave their sons at parting.⁴⁴

Such was the method which Lycurgus took to secure the independency and happiness of his country; and the event showed, that his institutions were founded upon maxims of the truest and justest policy. For I cannot help observing upon the occasion, that from the time of Lycurgus to the introduction of wealth by Lysander in the reign of the first Agis, a space of five hundred years, we meet with no mutiny amongst the people, upon account of the severity of his discipline, but on the contrary the most religious reverence for, and the most willing and cheerful obedience to the laws he established. As on the other hand, the wisdom of his military institutions is evident from this consideration; that the national militia alone of Sparta, a small insignificant country as to extent, situated in a nook only of the Morea, not only gave laws to Greece, but made the Persian monarchs tremble at their very name, though absolute masters of the richest and most extensive empire the world then knew.

I observe farther, that the introduction of wealth by Lysander, after the conquest of Athens, brought back all those vices and dissensions which the prohibition of the use of money had formerly banished; and that all historians assign that open violation of the laws of Lycurgus, as the period from which the decadence of Sparta is to be properly dated. I observe too, with Plutarch, that though the manners of the Spartans were greatly

corrupted by the introduction of wealth, yet that the landed interest (as I may term it) which subsisted as long as the original allotments of land remained unalienable, still preserved their state; notwithstanding the many abuses which had crept into their constitution. But that as soon as ever the landed estates became alienable by law, the moneyed interest prevailed, and at last totally swallowed up the landed, which the historians remark as the death's-wound of their constitution. For the martial virtue of the citizens not only sunk with the loss of their estates, but their number, and consequently the strength of the state, diminished in the same proportion. Aristotle, who wrote about sixty years after the death of Lysander, in his examen of the Spartan republick, quite condemns that law which permitted the alienation of their lands.⁴⁵ For he affirms, that the same quantity of land which, whilst equally divided, supplied a militia of fifteen hundred horse, and thirty thousand heavy armed foot, could not in his time furnish one thousand; so that the state was utterly ruined for want of men to defend it.⁴⁶ In the reign of Agis the 3d, about a hundred years after the time of Aristotle, the number of the old Spartan families was dwindled (as I remarked before) to seven hundred; out of which about one hundred rich overgrown families had engrossed the whole land of Sparta, which Lycurgus had formerly divided into thirty-nine thousand shares, and assigned for the support of as many families. So true it is, that a landed interest diffused through a whole people is not only the real strength, but the surest bulwark of the liberty and independency, of a free country.

From the tragical fate of the third Agis we learn, that when abuses introduced by corruption are suffered by length of time to take root in the constitution, they will be termed by those whose interest it is to support them, essential parts of the constitution itself; and all attempts to remove them will ever be clamoured against by such men, as attempts to subvert it: As the example of Cleomenes will teach us, that the publick virtue of one great man may not only save his falling country from ruin, but raise her to her former dignity and lustre, by bringing her back to those principles on which her constitution was originally founded. Though the violent remedies made use of by Cleomenes never ought to be applied, unless the disease is grown too desperate to admit of a cure by milder methods.

I shall endeavour to show in its proper place, that the constitution established by Lycurgus, which seemed to Polybius to be rather of divine

than of human institution, and was so much celebrated by the most eminent philosophers of antiquity, is much inferior to the British constitution as settled at the revolution.⁴⁷ But I cannot quit this subject without recommending that excellent institution of Lycurgus which provided for the education of the children of the whole community without distinction. An example which under proper regulations would be highly worthy of our imitation, since nothing could give a more effectual check to the reigning vices and follies of the present age, or contribute so much to a reformation of manners, as to form the minds of the rising generation by the principles of religion and virtue. Where the manners of a people are good, very few laws will be wanting; but when their manners are depraved, all the laws in the world will be insufficient to restrain the excesses of the human passions. For as Horace justly observes....

*Quid legis sine moribus
Vanæ proficiunt.* Ode 24. lib. 3.

CHAPTER II.

OF ATHENS.

THE republick of Athens, once the seat of learning and eloquence, the school of arts and sciences, and the centre of wit, gaiety, and politeness, exhibits a strong contrast to that of Sparta, as well in her form of government, as in the genius and manners of her inhabitants.

The government of Athens, after the abolition of monarchy, was truly democrattick, and so much convulsed by those civil dissensions, which are the inevitable consequences of that kind of government, that of all the Grecian states, the Athenian may be the most strictly termed the seat of faction. I observe that the history of this celebrated republick is neither very clear nor interesting until the time of Solon. The laws of Draco (the first legislator of the Athenians who gave his laws in writing) affixed death as the common punishment of the most capital crimes, or the most trivial offences; a circumstance which implies either the most cruel austerity in the temper of the lawgiver, or such an abandoned profligacy in the manners of the people, as laid him under a necessity of applying such violent remedies. As the historians have not clearly decided which of these was the case, I shall only remark, that the humanity of the people, so natural to the human species, was interested upon the occasion, and the excessive rigour of the laws obstructed the very means of their being carried into execution. A plain proof that a multiplicity of rigorous penal laws are not only incompatible with the liberty of a free state, but even repugnant to human nature. For the natural equity of mankind can easily distinguish between the nature and degree of crimes; and the sentiments of humanity will naturally be excited when the punishment seems to be too rigorous in proportion to the demerits of the offender. The chief reason, in my opinion, why so many offenders in our nation escape with impunity for want of prosecution, is because our laws make no distinction, as to the punishment, between the most trifling robbery on the highway, and the most atrocious of all crimes, premeditated murder.

The remedy which Draco proposed by his laws, proving worse than the disease, the whole body of the people applied to Solon, as the only person

equal to the difficult task of regulating their government. The supreme power of the state was at that time vested in nine magistrates, termed archons or governors, elected annually by the people out of the body of the nobility. But the community in general was split into three factions, each contending for such a form of government as was most agreeable to their different interests. The most sensible amongst the Athenians, dreading the consequence of these divisions, were willing, as Plutarch informs us, to invest Solon with absolute power; but our disinterested philosopher was a stranger to that kind of ambition, and preferred the freedom and happiness of his countrymen to the splendour of a crown.⁴⁸ He continued the archons in their office as usual, but limited their authority by instituting a senate of four hundred persons elected by the people, by way of ballot, out of the four tribes into which the community was at that time divided. He revived and improved the senate and court of Areopagus, the most sacred and most respectable tribunal, not only of Greece, but of all which we ever read of in history.⁴⁹ The integrity and equity of this celebrated court was so remarkable, that not only the Greeks, but the Romans, sometimes, submitted such causes to their determination which they found too intricate and difficult for their own decision. To prevent all suspicion of partiality either to plaintiff or defendant, this venerable court heard all causes and passed their definitive sentence in the dark, and the pleaders on either side were strictly confined to a bare representation of the plain truth of the fact, without either aggravation or embellishment. For all the ornament of fine language, and those powers of rhetorick which tended to bias the judgment by interesting the passions of the judges, were absolutely prohibited. Happy if the pleaders were restricted to this righteous method in our own courts of judicature, where great eloquence and great abilities are too often employed to confound truth and support injustice!

It is evident from history that Solon at first proposed the institutions of Lycurgus as the model for his new establishment. But the difficulty which he met with in the abolition of all debts, the first part of his scheme, convinced him of the utter impracticability of introducing the laconick equality, and deterred him from all farther attempts of that nature. The laws of Athens gave the creditor so absolute a power over his insolvent debtor, that he could not only oblige the unhappy wretch to do all his servile drudgery, but could sell him and his children for slaves in default of payment. The creditors had made so oppressive an use of their power, that

many of the citizens were actually obliged to sell their children to make good their payments; and such numbers had fled their country to avoid the effects of their detestable inhumanity, that, as Plutarch observes, the city was almost unpeopled by the extortion of the usurers.⁵⁰ Solon, apprehensive of an insurrection amongst the poorer citizens, who openly threatened to alter the government, and make an equal partition of the lands, thought no method so effectual to obviate this terrible evil, as to cancel all debts, as Lycurgus had done formerly at Sparta. But some of his friends, to whom he had privately communicated his scheme, with an assurance that he did not propose to meddle with the lands, were too well versed in the art of jobbing to neglect so fair an opportunity of making a fortune. For they stretched their credit to the utmost in loans of large sums from the moneyed men, which they immediately laid out in the purchase of landed estates. A precedent which the treacherous Agesilaus copied too successfully afterwards at Sparta. The cheat appeared as soon as the edict for abolishing all debts was made publick: but the odium of so flagitious a piece of roguery was thrown wholly upon Solon; as the censure of the publick for all frauds and exactions committed by officers in the inferior departments will naturally fall upon the minister at the helm, however disinterested and upright.

This edict was equally disagreeable to the rich and to the poor. For the rich were violently deprived of all that part of their property which consisted in their loans, and the poor were disappointed of that share of the lands which they so greedily expected. How Solon drew himself out of this difficulty, historians have nowhere informed us. All we can learn from them is, that the decree was at last received and submitted to, and that Solon was still continued in his office with the same authority as before.

This experiment gave Solon a thorough insight into the temper of his countrymen, and most probably induced him to accommodate his subsequent regulations to the humour and prejudices of the people. For as he wanted the authority which naturally arises from royal birth, as well as that which is founded on the unlimited confidence of the people, advantages which Lycurgus possessed in so eminent a degree, he was obliged to consult rather what was practicable, than what was strictly right; and endeavour, as far as he was able, to please all parties. That he acknowledged this, seems evident from his answer to one who asked him “whether the laws he had

given the Athenians were the best he could possibly have made?”⁵¹ “They are the best,” replied Solon, “which the Athenians are capable of receiving.” Thus whilst he confined the magistracies and the executive part of the government solely to the rich, he lodged the supreme power in the hands of the poorer citizens. For though every freeman whose fortune did not amount to a particular census or estimate, was excluded from all state offices by the laws of Solon; yet he had a legal right of giving his opinion and suffrage in the Εκκλησία or assembly of the people, which was wholly composed of this inferior class of citizens. But as all elections, and all cases of appeal from the superior courts were determined by the voices of this assembly; as no law could pass without their approbation, and the highest officers in the republick were subject to their censure, this assembly became the *dernier resort* in all causes, and this mob government, as it may be justly termed, was the great leading cause of the ruin of their republick. Anacharsis the Scythian philosopher, who at that time resided with Solon, justly ridiculed this excess of power which he had lodged in the people.⁵² For when he had heard some points debated, first in the senate, and afterwards decided in the assembly of the people, he humourously told Solon, that at Athens “wise men debated, but fools decided.” Solon was as sensible of this capital defect as Anacharsis; but he was too well acquainted with the licentiousness and natural levity of the people, to divest them of a power, which he knew they would resume by violence at the first opportunity. The utmost therefore he could do was to fix his two senates as the moorings of the constitution.⁵³ That of four hundred, to secure the state against the fluctuating temper and tumultuous fury of the people;⁵⁴ that of the areopagus, to restrain the dangerous encroachments of the great and wealthy.⁵⁵ He repealed all the laws of Draco, those against murder alone excepted; rightly judging, as Plutarch remarks, that it was not only most iniquitous, but most absurd, to inflict the same punishment upon a man for being idle, or stealing a cabbage or an apple out of a garden, as for committing murder or sacrilege.⁵⁶ But as the account handed down to us of the laws which Solon established is extremely lame and imperfect, I shall only mention the sarcasm of Anacharsis upon that occasion, as a proof of their insufficiency to answer that end for which Solon designed them. For that philosopher comparing the corrupt manners of the Athenians with the coercive power of Solon’s laws, resembled the latter to cobwebs which

would entangle only the poor and feeble;⁵⁷ but were easily broke through by the rich and powerful. Solon is said to have replied,⁵⁸ “that men would readily stand to those mutual compacts, which it was the interest of neither party to violate; and that he had so rightly adapted his laws to the reason of his countrymen, as to convince them how much more advantageous it was to adhere to what was just, than to be guilty of injustice.” The event, as Plutarch truly observes, proved more correspondent to the opinion of Anacharsis, than to the hopes of Solon. For Pisistratus, a near relation of Solon's, having artfully formed a strong party among the poorer citizens, by distributing bribes under the specious pretence of relieving their necessities, procured a guard of fifty men armed with clubs only for the safety of his person, by the help of which he seized the citadel, abolished the democracy, and established a single tyranny in spite of all the efforts of Solon.⁵⁹

This usurpation proved the source of endless faction, and brought innumerable calamities upon the republick. Pisistratus was expelled more than once by the opposite party, and as often brought back in triumph either by the fraud or force of his prevailing faction. At his death he left the kingdom to his two sons Hipparchus and Hippias. The former of these was assassinated by Harmodius and Aristogiton for a personal injury they had received;⁶⁰ Hippias was soon after driven out of Athens by the Spartans at the instigation of some of his discontented countrymen. Despairing of recovering his former sovereignty by any other means, he fled to Darius for assistance, and was the cause of the first invasion of Greece by the Persians, in which he died fighting against his country in the ever memorable battle of Marathon. But the most fatal evil which resulted from the usurpation of Pisistratus, was, that perpetual fear of seeing the supreme power again lodged in the hands of a single person.⁶¹ For this fear kept the jealousy of the people in a constant alarm, and threw them at last into the hands of the factious demagogues. Hence superior merit was frequently represented as an unpardonable crime, and a kind of high treason against the republick.⁶² And the real patriots were rendered suspected to the people, just as the demagogues were influenced by envy or private pique, or even bribed by ambitious or designing men, who aspired at the very thing of which the others were unjustly accused. The history of Athens abounds with instances of the levity and inconstancy of that unsteady people. For how frequently do we find their best and ablest citizens imprisoned or sentenced to

banishment by the ostracism, in honour of whom the same people had just before erected statues:⁶³ nay not unfrequently raising statues to the memory of those illustrious and innocent men, whom they had illegally doomed to death in the wantonness of their power;⁶⁴ at once the monuments of their injustice and too late repentance! This evil was the natural consequence of that capital error in Solon's polity, when he entrusted the supreme power to the giddy and fluctuating populace. A defect which (as I observed before) was the great leading cause of the loss of that liberty which they had so licentiously abused. For as the removal of all the honest citizens either by death or banishment paved an easy way for usurpation and tyranny; so it was a measure invariably pursued, in the democrattick governments of Greece, by all those ambitious men who aimed at subverting the liberties of their country. This truth is so clearly explained, and so incontestably proved, by the great Thucydides, that whilst I peruse the annals of that admirable historian, I cannot help grieving over the tragick pages stained with the blood of so many patriot citizens, who fell a sacrifice to the dire ambition and avarice of faction. What a striking detail does he give us of the most calamitous situation of all the Grecian republicks during the Peloponnesian war! How does he labour for expression in his pathetick enumeration of the horrible consequences of faction, after his description of the destructive sedition at Corcyra! A contempt of all religion, the open violation of the most sacred ties and compacts; devastations, massacres, assassinations, and all the savage horrors of civil discord inflamed even to madness, are the perpetual subjects of his instructive history. Calamities of which he himself was at once an eyewitness and a most faithful recorder.

Thucydides truly ascribes this destructive war to the mutual jealousy which then subsisted between the Spartans and Athenians.⁶⁵⁻⁶⁶ The most stale frivolous pretences were trumped up by the Spartans, and as strongly retorted by the Athenians. Both states made the interests or grievances of their allies, the constant pretext for their mutual altercations, whilst the real cause was that ambitious scheme which each state had formed of reducing all Greece under its respective dominion. But an event which both states seemed to have waited for, quickly blew up the latent sparks of jealousy into the most violent flame.⁶⁷ The Thebans privately entered the city of Plataea in the night (a small state at that time allied to Athens) which had been betrayed to them by a treacherous faction, who were enemies to the

Athenians. But the honester part of the Plataeans recovering from their surprise, and taking notice of the small number of the Thebans, quickly regained possession of their city by the slaughter of most of the invaders. The Plataeans immediately applied to the Athenians for assistance; the Thebans to the Spartans.⁶⁸ Both states entered eagerly into the quarrel between their respective allies, and engaged as principals in that destructive war which at last involved all Greece in the common calamity. Wherever the fortune of the Spartan prevailed, an oligarchical aristocracy was established, and the friends to a popular government destroyed or banished. Where the Athenians were victors, democracy was settled or restored, and the people glutted their revenge with the blood of the nobility. Alternate revolts, truces violated as soon as made, massacres, proscriptions, and confiscations, were the perpetual consequences, in all the petty republics, of the alternate good or bad success of those two contending rivals. In a word, all Greece seems to have been seized with an epidemick madness; and the polite, the humane Grecians treated one another, during the whole course of this unnatural war, with a ferocity unknown even to the most savage barbarians. The real cause, assigned by Thucydides, of all these atrocious evils, was, “the lust of domination arising from avarice and ambition:” for the leading men in every state, whether of the democrattick or aristocrattick party, affected outwardly the greatest concern for the welfare of the republick, which in reality was made the prize for which they all contended.⁶⁹ Thus, whilst each endeavoured by every possible method to get the better of his antagonist, the most audacious villanies, and the most flagrant acts of injustice were equally perpetrated by both sides. Whilst the moderate men amongst the citizens, who refused to join with either side, were alike the objects of their resentment or envy, and equally destroyed without mercy by either faction.⁷⁰

Historians unanimously agree, that the Athenians were instigated to this fatal war by the celebrated Pericles. Thucydides, who was not only cotemporary with Pericles, but actually bore a command in that war, does real honour to that great man's character; for he assigns his desire of humbling the Spartans, and his zeal for the glory and interest of his country, as the real motives of his conduct upon that occasion.⁷¹ But, as a detail of this tedious and ruinous war is wholly foreign to my purpose, I shall only remark, that if ever union and harmony are necessary to the preservation of

a state, they are more essentially so when that state is engaged in a dubious war with a powerful enemy. For not only the continuation, but the event, of that long war, so fatal to the Athenians, must (humanly speaking) be wholly attributed to the disunion of their counsels, and the perpetual fluctuation in their measures, occasioned by the influence of the ambitious and factious demagogues. Not the calamities of war, nor the most dreadful plague, ever yet recorded in history, were able to fix the volatile temper of that unsteady people.⁷² Elate beyond measure with any good success, they were deaf to the most reasonable overtures of peace from their enemies, and their views were unbounded. Equally dejected with any defeat, they thought the enemy just at their doors, and threw the whole blame upon their commanders, who were always treated as unpardonably criminal when unsuccessful. The demagogues, who watched every turn of temper in that variable people, took care to adapt every circumstance that offered to their own ambitious views, either of gaining or supporting an ascendancy in the state, which kept up a perpetual spirit of faction in that unhappy republick. Thus, in the beginning of the Peloponnesian war, Cleon, a noisy seditious demagogue, declaimed violently against Pericles, and was the constant opposer of all his measures:⁷³ but the firmness and superior abilities of that great man enabled him to baffle all his antagonists. When Pericles was carried off by that fatal pestilence which almost depopulated Athens, the nobility, jealous of that sway which Cleon had acquired over the people, set up Nicias in opposition. Nicias was honest, and a real lover of his country, but a man of no great abilities; and though an experienced officer, yet cautious and diffident even to timidity.⁷⁴ In his temper he was mild, humane, and averse to bloodshed, and laboured to put an end to a war which spread such general destruction: but all his measures were opposed by the turbulent Cleon; for when the Spartans proposed an accommodation, Cleon persuaded the Athenians to insist upon such high terms that the treaty broke off, and war was again renewed with the same inveterate fury: but the incendiary Cleon, the chief obstacle to all pacifick measures, falling in battle in the tenth year of that war, negotiations were again set on foot, and a peace for fifty years concluded between the Athenians and the Spartans by the unwearied endeavours of Nicias.⁷⁵ But whilst Nicias was intent upon the enjoyment of that repose which he had procured, a new and infinitely more formidable rival started up, and again involved his country and all Greece in the same calamities by his restless and insatiable ambition.

Alcibiades now appeared upon the stage; a man composed of a motley mixture of virtues and vices, of good and bad qualities; one who could assume even the most opposite characters; and with more ease, than a chameleon can change its colours, appear a very contrast to himself just as his interest or ambition required.⁷⁶ This state Proteus was strongly piqued at the growing power and reputation of Nicias. His lust of power was too great to bear either a superior or an equal;⁷⁷ and he determined at all events to supplant him, alike regardless either of the equity of the means, or of the consequences of it to his country. The Athenians were not a little displeased with the Spartans, who had not been very punctual in fulfilling the conditions of the treaty.⁷⁸ Alcibiades finding his countrymen in a humour very proper for his purpose, inflamed them violently against Nicias, whom he publickly accused as a secret friend and wellwisher to that people. Nicias endeavoured to ward off the blow, and prevent his countrymen from coming to an open rupture; but the intrigues of Alcibiades prevailed, who procured himself to be elected general, and fresh hostilities to be commenced against the allies of Sparta.⁷⁹

The seventeenth year of this memorable war is remarkable for that fatal expedition against Sicily, which gave a mortal blow to the Athenian grandeur, and affords a signal instance of the terrible consequences of faction. The Egestians, a small state in Sicily, applied to the Athenians for assistance against the oppressions of the Syracusans. Alcibiades, looking upon it as an object worthy of his ambition, undertook the cause of these suppliants, and knew so well how to flatter the vanity of his countrymen, that a large armament was decreed by the people for that purpose, and Nicias, Alcibiades, and Lamachus, a daring but able officer, were elected generals.⁸⁰ Nicias was the only person who had the honesty or courage to oppose a measure which he judged not only rash, but to the last degree impolitick; but the Athenians were deaf to all his remonstrances. The relief of the Egestians was only the pretext; for the entire dominion of Sicily, as Thucydides assures us, was the real object they had in view when they gave orders for that powerful armament.⁸¹ Alcibiades had promised them an easy conquest of that island, which he looked upon only as a prelude to much greater enterprises; and the besotted people had already swallowed up Italy, Carthage, and Africa in their idle imaginations.⁸² Both factions concurred in the vigorous prosecution of this measure, though from very different

motives: the friends of Alcibiades, from the view of aggrandizing their chief by that vast accession of wealth and glory which they hoped for from this expedition: his enemies, from the hopes of supplanting him in his absence, and gaining the lead in the administration.⁸³ Thus the true interest of the state was equally sacrificed to the selfish and private views of each party! But, in the midst of these vast preparations, an odd accident threw the whole city into confusion, and at once alarmed the superstition and jealousy of the people. The terms, or statues of Mercury, were all defaced in one and the same night by some unknown persons; nor could the Athenians ever discover the real authors of this reputed sacrilege.⁸⁴ Proclamations were issued with a free pardon, and reward for any of the accomplices who could make a discovery, and the information of strangers and slaves was allowed as legal evidence; but no information could be procured as to the true authors of that particular fact; a circumstance which to me does not appear at all surprising: for it was evidently, in my opinion, a piece of party-craft played off against Alcibiades by the opposite faction, who knew that to attack the established religion, was to touch the master-spring of the passions of their countrymen.⁸⁵ Some slaves indeed, and other low persons (suborned, as Plutarch asserts, by Androcles,⁸⁶ one of the demagogues) deposed, that long before that, some statues had been mutilated, and the most sacred mysteries of their religion ridiculed, in a drunken frolick by some wild young fellows, and that Alcibiades was of the party.⁸⁷ This information, which, according to Plutarch, was a palpable contrivance of his enemies, enabled them to fix the odium of the last action upon Alcibiades.⁸⁸ The demagogues of the opposite faction greatly exaggerated the whole affair to the people. They accused him of a treasonable design against the popular government, and produced his contemptuous ridicule of the sacred mysteries, and the mutilation of Mercury's statues, in support of their charge; as they urged his well known libertinism, and licentious life as a proof that he must be the author of those insults upon their religion. Alcibiades not only denied the charge, but insisted upon being brought immediately to a legal trial; declaring himself ready to undergo the punishment inflicted by the laws, if he should be found guilty.⁸⁹ He beseeched the people not to receive any informations against him in his absence, but rather to put him to death upon the spot if they judged him to be the offender. He urged too, how impolitick it would be to send him with

the command of so great an army, whilst he lay under the imputation of a crime of that nature, before they had taken thorough cognizance of the affair: but his accusers dreading the effect which his interest with the army, and his well known influence over the allied troops, which had engaged in the expedition from their personal attachment to him, might have upon the people, if he should be brought to immediate trial, procured other demagogues of their party to dissuade the people from a measure which they judged would disconcert their scheme. These men pleaded the dangerous delay which such a proceeding might occasion, and urged the necessity of dispatch in an enterprise of such vast importance. They proposed therefore that the fleet should sail immediately, but that Alcibiades should return when a day was appointed for his trial.⁹⁰ For their intention was, as Thucydides remarks, to recall and bring him to his trial when the popular prejudice ran strong against him, which they knew they could easily spirit up in his absence. It was decreed, therefore, that Alcibiades should depart immediately upon the expedition.

This mighty armament, which carried the flower of the Athenian forces, was the most splendid, the best fitted out, and the most expensive, that had ever sailed from any of the Grecian ports to that very time.⁹¹ But the first thing we meet with in this expedition, is (what might naturally be expected) a disagreement between the three generals as to the manner of beginning their operations.⁹² Alcibiades indeed brought them both over to his opinion; but whilst he was disputing with his colleagues in Sicily, his enemies at Athens were by no means idle. The affair of the statues, and the pollution of the sacred mysteries, were again brought upon the carpet. The people, naturally suspicious, never inquired into the character of the informers, or the validity of the evidence, but admitted all that offered without distinction; and, giving easy credit to the most abandoned wretches, apprehended several of the most eminent citizens, and committed them to prison.⁹³ One of these persuaded another of his fellow prisoners, who was most liable to suspicion, to take the crime upon himself, and to impeach some others as his accomplices.⁹⁴ Urging this as a reason, that whether what he confessed should be true or false, he would at least secure his own pardon, and calm the present suspicions of the people. Audocides, for that was the name of this person according to Plutarch, though it is omitted by Thucydides, was prevailed upon by this kind of reasoning to acknowledge

himself guilty of defacing the statues, and to inform against some others as accomplices in the same act of impiety.⁹⁵ Upon this declaration the informer received his pardon, and all those who were not mentioned in his information their liberty:⁹⁶ but processes were made out against as many as he had named, and all who were apprehended were tried, condemned, and executed upon his single evidence. Those who escaped by flight were sentenced to die, and a price set upon their heads by a publick proclamation. Whether the persons condemned were guilty or innocent was not at all clear, according to Thucydides. Plutarch tells us, that the friends and acquaintance of Alcibiades, who fell into the hands of the people, were severely handled on this occasion.⁹⁷ It is certain therefore that the information was chiefly levelled at him by the artifice of the opposite faction; for Thucydides informs us almost in the very next sentence, that the people received the information against Alcibiades with all the fury of prejudice, at the instigation of such of his enemies as had accused him before he sailed upon the expedition.⁹⁸ And since they now had not the least doubt of his being concerned in the affair of defacing the statues, they were more than ever convinced that he was equally guilty of the pollution of the mysteries, and that both those crimes were committed by him and his associates with the same design of subverting the popular government. For a body of Spartan troops happened to make an incursion, in that very juncture, as far as the Isthmus, upon some design or other against the Bœotians. This unlucky incident confirmed the people in their suspicions that this was a scheme concerted beforehand with Alcibiades, covered with the specious pretext of attacking the Bœotians;⁹⁹ and that if the plot had not been happily discovered in time, and the execution of it prevented by the death of the conspirators, their city would most inevitably have been betrayed to the Spartans.¹⁰⁰ Thus on every side suspicions fell strongly upon Alcibiades, and the people determining to put him to death, sent a private express to Sicily to recall him and such of his friends as were named in the information. The officers dispatched in the Salaminian galley, which was sent on that occasion, were ordered to acquaint Alcibiades, that he was desired to return with them to Athens to clear himself of those things which were objected to him before the people; but they received a strict charge not to offer to take him or his friends into custody; not only from the dread of some mutiny amongst their own soldiers upon his account, but for fear the

allied troops, whom his influence had engaged, should desert and abandon the enterprise.¹⁰¹ Alcibiades obeyed the summons, and taking his friends, who were included in the information, into his own ship, left Sicily in company with the Salaminian galley, seemingly as if returning to Athens; but, whether he only suspected, or, which is more probable, had received intelligence of the measures taken by his enemies in his absence, he, with his friends, went ashore at Thuria, and gave the Athenian officers the slip, not caring to stand the sentence of the credulous and prejudiced people.¹⁰² The officers finding all their search after him quite fruitless, returned to Athens without him, and the Athenians passed sentence of death upon him and all those who accompanied him, and confiscated their estates for non-appearance.¹⁰³ Thus, instead of uniting their joint efforts to promote the success of an enterprise upon which they had staked their all, the infatuated Athenians were intent upon nothing but the cabals and intrigues of faction; and the folly of the people, managed by their ambitious and selfish demagogues, deprived the state of the only commander from whom they could rationally hope for success in that hazardous expedition. A measure which occasioned the total ruin both of their fleet and army, and gave a fatal shock to their republic; for the soldiers were not only greatly dispirited at the loss of a chief, in whose abilities they placed the most entire confidence, but Alcibiades, in revenge for his usage, took refuge amongst the Spartans, and prevailed upon them to send such supplies to the Syracusans as completed the destruction of the Athenians in that country.¹⁰⁴ Nicias was taken and put to death by the enemy; not a single ship returned, and few of the men escaped either slaughter or captivity.¹⁰⁵ The news of this terrible defeat threw the city into the utmost consternation.¹⁰⁶ They at first gave up all hopes, and imagined they should quickly see the enemy's fleet in the Pyræum whilst they were in this exhausted and defenceless condition. However, the dread of the impending danger had this good effect that it made the populace extremely tractable, and ready to support their magistrates in whatever measures they judged most conducive to the common safety.¹⁰⁷ Nor could any thing but union and harmony amongst themselves have possibly saved them in the midst of so many enemies, with which they were surrounded. For all the Greeks in general were highly elated, as Thucydides tells us, with the ill success of the Athenians in Sicily.¹⁰⁸ Those who had hitherto observed a strict neutrality in this war

wanted no solicitations to join in crushing that unhappy people, but rather thought it glorious to have a share in a war which they concluded would be but of short duration. The Spartan allies were more than ever desirous of delivering themselves from the calamities of war which they had so long suffered; whilst those states, which until that time had received laws from the Athenians, exerted themselves above their strength to support the revolt which they were then meditating. They judged of the situation of affairs from the blind impulse of passion, regardless of the dictates of reason, and fancied the next campaign would finish the ruin of the Athenians. The Spartans, promising themselves the certain dominion over all Greece, if the Athenians were once reduced, made vast preparations for the war, to which all their allies contributed their utmost; all got ready for opening the campaign the spring following.¹⁰⁹

The Athenians, now harmony was restored in the state, recovered their spirits, and begun to act with vigour.¹¹⁰ They applied themselves to the re-establishment of their marine, the repairs of their fortifications, and the care of storing their magazines with the greatest diligence and economy, retrenching all such expenses as they judged useless or superfluous. The good effects of this unanimity were visible when the campaign opened, for they found themselves in a condition to make head against their numerous enemies, though strengthened by a new alliance with the Persians, and assisted with Persian money; and they even gained some considerable advantages. An event too happened, which greatly disconcerted the measures of their enemies, and raised their state once more to its former power and lustre. Alcibiades, a thorough libertine, who never stuck at the most infamous means of gratifying his passions, debauched Timæa, the wife of Agis, king of Sparta, his great friend and protector.¹¹¹ Dreading the resentment of that prince for so shameful a breach of friendship and hospitality, as well as the jealousy of the Peloponnesians, who had sent private orders to Astyochus, the Lacedemonian admiral, to cut him off, he fled to Tissaphernes, at that time governor of the provinces in the lower Asia under the Persian monarch.¹¹² Alcibiades, who was a consummate master in the art of address, quickly insinuated himself into his good graces, and explained to him the true interest of the Persians with respect to the Grecian republics.¹¹³ He showed him the bad policy of raising one state to a superiority over all the rest, which would deprive his master of all his

allies, and oblige him to contend alone with the whole power of Greece. He advised him to permit every state to enjoy its own separate independent government; and demonstrated, that by keeping them thus divided, his master might set them together by the ears, and, by playing them one against another, crush them all at last without the least danger. He added too, that an alliance with the Athenians would be more advantageous to the Persian interest, and preferable to that which he had made with the Lacedæmonians. The crafty Persian was too able a politician not to relish his advice; he paid the Peloponnesians their subsidy so ill, and put off a naval engagement so long, under pretence of waiting for the Phœnician fleet, that he wasted the strength of their navy, which was far superior to the Athenian, and ruined all their measures.¹¹⁴

Whilst Alcibiades resided with Tissaphernes, and gave the Persians the best instructions he could for regulating their conduct, he at the same time formed a scheme for procuring the repeal of his sentence, and liberty to return once more to his native country.¹¹⁵ He judged the best way to obtain this favour would be to convince the Athenians of his intimacy with Tissaphernes. To effect this, he wrote to the chief officers of the Athenian forces, which then lay at Samos, directing them to inform all those of the greatest weight and authority how desirous he was of revisiting Athens if the government should be once lodged in the hands of a small number of the principal citizens; but that he could by no means think of returning whilst the democracy subsisted, and the state was governed by a parcel of abandoned wretches, who had so scandalously driven him out of his country. Upon that condition he promised to procure the friendship of Tissaphernes, and declared himself ready to accept a share with them in the administration. The event answered his expectations; for the officers and the leading men, both of the sea and land forces, which were at Samos, were eagerly bent upon subverting the democracy. Thus the treaty was set on foot at Samos, and the scheme laid for altering the government.¹¹⁶ The principal men were in hopes of a share in the administration, and the inferior people acquiesced from the expectation of large subsidies from the Persians. Phrynicus, one of the generals, alone opposed it, sensible that Alcibiades cared as little for an aristocratick government as for a democracy, and had no other point in view (which, as Thucydides acknowledges, was the real truth) than to procure such a change in the present administration as might enable his friends to recall him. The terms,

however, which Alcibiades offered, were agreed to by the rest, and Pisander, one of the leading men, was sent to Athens to manage the affair.¹¹⁷

Pisander at first met with violent opposition from the people;¹¹⁸ and the enemies of Alcibiades in particular clamoured loudly against the violation of the laws, when his return was proposed, which they chiefly dreaded. But Pisander applied so artfully to the fears of the people, and showed them so plainly that it was the only resource they had left which could possibly save the state, that they at last agreed to it, though with great reluctance.¹¹⁹ He therefore, with ten others, was appointed to settle the affair with Tissaphernes and Alcibiades as they should judge most conducive to the interest of the republick; but Tissaphernes, who dreaded the power of the Peloponnesians, was not so ready to enter into a convention with the Athenians, as they were taught to believe.¹²⁰ Alcibiades therefore, to save his credit, and conceal from the Athenians his inability to make good what he had promised, insisted, in the name of Tissaphernes, upon such high terms that the treaty broke off, and the deputies returned to Samos, enraged at the trick which they thought had been put upon them by Alcibiades. Determined however, at all events, to pursue their scheme, Pisander, with some of the deputies, returned to Athens, where their party had already made a considerable progress, for they had privately assassinated such of the leading men as were averse to an aristocracy, and though they permitted the senate and people to assemble and vote as usual, yet they would not allow any thing to be decreed but what they thought proper;¹²¹ besides, none but those of their own faction durst venture to harangue the people; for if any one attempted to speak in opposition, he was sure to be dispatched at the first convenient opportunity; nor was any inquiry made after the assassins, or any process issued out against those who were strongly suspected of the murders. The people were so terrified with these bloody executions, that they acquiesced to whatever was proposed, and every man thought himself happy if no violence was offered him, even though he continued quiet and silent. They were deprived even of the power of bewailing the common calamity to each other, in order to concert measures for revenge: for the faction had artfully spread so strong and so universal a diffidence amongst the popular party, that no one durst venture to confide in

his neighbour, but each man suspected every other as an accomplice of the crimes which were daily perpetrated.

In this situation Pisander found the city at his arrival,¹²² and immediately prepared to finish what his friends had so successfully begun: convoking therefore an assembly of the people, the aristocratick faction openly declared their resolution to abolish the ancient form of government, and to lodge the supreme power in the hands of four hundred of the nobility, who should govern the state in the manner they thought best, with the power of assembling five thousand of the citizens to consult with as oft as they thought proper. Pisander was the man who acquainted the people with this definitive resolution,¹²³ but Antiphon was the person who formed the plan, and was chief manager of the whole affair: a man, according to the testimony of Thucydides, who knew him personally, master of the greatest abilities, and of by far the most nervous eloquence of any of his contemporaries. Thus the oligarchy was established, and the Athenians deprived of that liberty which they had enjoyed near one hundred years from the expulsion of Hippias: during which whole space they had been subject to none, but had been accustomed, above half that time, to lord it over others; for as soon as this decree had passed in the assembly without opposition,¹²⁴ the chiefs of the conspiracy artfully permitted such citizens as were upon duty, but had not been let into the secret, to go wherever they pleased; but directed their own friends to continue under arms, and disposed them in such a manner as might best favour their enterprise: for the Athenians kept at that time a constant guard upon their walls, as the Spartan army was encamped in their neighbourhood. When they had made their disposition, the four hundred nobles with poignards concealed under their habits, and attended by an hundred and twenty daring young fellows, whom they employed in their assassinations, surrounded the senators,¹²⁵ and paying them what was due upon their salaries, commanded them to depart the court. The senators tamely submitting,¹²⁶ and not the least stir happening amongst the citizens, they proceeded to elect magistrates out of their own body, and performed all the religious ceremonies usually practised upon those occasions. When they had thus got possession of the government, they did not think proper to recall those whom the people had formerly banished, for fear of being obliged to include Alcibiades in the number, whose enterprising genius they dreaded extremely; but they

behaved most tyrannically to the citizens, putting some to death, throwing some into prison, and banishing others.

The spirit of liberty however is not so easily extinguished. Pisander had brought mercenary troops with him out of some of the cities which he passed through on his return to Athens, who were of great service to the new governors in their enterprise:¹²⁷ but the forces at Samos consisted of Athenian citizens, jealous even of the least attempt upon the liberty of their country, and declared enemies to every species of tyranny. The first news which these brave fellows received of the usurpation, brought such exaggerated accounts of the cruelty and insolence of the four hundred, that they were with great difficulty restrained from cutting every one to pieces who was in the interest of the oligarchy. However,¹²⁸ they took the command from their former generals, and cashiered every officer they suspected, substituting others in their places; the chief of whom were Thrasybulus and Thrasyllus. Alcibiades was recalled,¹²⁹ and unanimously declared their captain general both by the sea and land forces; which gave such a turn to affairs at Athens, that the four hundred were deposed, in spite of all their efforts to continue in power, and the public tranquillity once more established.

The people confirmed Alcibiades in the command, and committed the whole management of the war to his conduct.¹³⁰ But his soul was too great to receive his recall from banishment, and even his high post as an act of favour.¹³¹ He determined to merit both by some signal service, and not to revisit Athens until he could return with glory. His usual success attended him in this war, and he seemed to bring victory with him wherever he appeared; for he gained so many victories both by sea and land, and distressed the Peloponnesians so much by his address and conduct, that he once more retrieved the dominion of the sea, and returned triumphant to Athens.¹³² His entry was splendidly magnificent, adorned with the trophies of two hundred ships of war, which he had destroyed or taken, and a vast number of prisoners.¹³³ His reception was attended with all the honours and applause he had so justly merited. The people, conscious of the late happy change in their affairs under the administration of Alcibiades, lamented with tears their miscarriage in Sicily, and other subsequent calamities; all which they imputed to their own fatal error in not trusting the sole command to so able and successful a commander.

The fortune however of this great man was perpetually fluctuating, and seemed to be ever on the extreme; and Plutarch remarks,¹³⁴ that if ever man owed his ruin to his own glory, it must be Alcibiades; for the people were so prepossessed with the opinion of his courage and conduct, that they looked upon him as absolutely invincible. Whenever therefore he failed in any one point, they imputed it entirely to his neglect, or want of will; for they could imagine nothing so difficult, but what they thought him able to surmount, if he applied to it with earnestness and vigour. Thus, in the same campaign, he sailed to the isle of Andros with a powerful fleet, where he defeated the joint forces of the inhabitants and Spartans; but, as he did not take the city, he gave his enemies a fresh handle for renewing their usual accusations; for the people already fancied themselves masters of Chios and the rest of Ionia, and were extremely out of humour because his conquests did not keep pace with their heated imaginations. They made no allowance for the wretched state of their finances, which frequently obliged him to quit his army to go in search of money to pay, and provisions to subsist, his forces, whilst their enemies had a constant resource for all their wants in the treasures of Persia. To one of these excursions, which necessity obliged him to make in order to raise money, he properly owed his ruin: for leaving the command of the fleet to one Antiochus, an able seaman indeed, but rash, in every other respect unequal to such a charge, he gave him the most positive orders not to fight the enemy upon any account whatsoever during his absence; but the vain Antiochus treated his orders with so much contempt, that he sailed out with a few ships to brave the Spartan admiral Lysander, which brought on a general engagement. The event was, the death of Antiochus, the defeat of the Athenians, who lost many of their ships, and a trophy erected by the Spartans in honour of their victory. Alcibiades, at the first news of this misfortune, returned to Samos with precipitation, and endeavoured to bring Lysander to a decisive action; but the wary Spartan knew too well how different a man he had now to deal with, and would by no means hazard a second engagement.

In the mean time one Thrasybulus,¹³⁵ who bore a mortal enmity to Alcibiades, posted to Athens, and impeached him as the cause of the late defeat, affirming that he committed the care of the fleet to his potcompanions, whilst he rambled at pleasure amongst the provinces, raising money, and living in a state of riot and dissipation with wine and women. A violent charge, besides, was brought against him for fortifying a

place near Bizanthe,¹³⁶ as a retreat upon occasion, which his enemies urged as a proof that he either was not able, or not willing, to reside in his native country.

Jealousy and inconstancy were the characteristics of the Athenian people. They gave implicit belief to the suggestions of his enemies, and discharged, as Plutarch tells us, the fury of their gall upon the unfortunate Alcibiades, whom they deprived immediately of the command.

Thucydides,¹³⁷ speaking of the behaviour of his countrymen to Alcibiades upon the impeachment brought against him for defacing the statues, imputes their ruin to that jealousy which they constantly harboured both of his ambition and abilities. For though he had done the state many great and signal services, yet his way of life made him so odious to every individual, that the command was taken from him and given to others, which not long after drew on the destruction of the republick.

For Tydeus,¹³⁸ Menander, and Adimantus, the new generals, who lay with the Athenian fleet, in the river Ægos, were so weak as to sail out every morning at daybreak to defy Lysander, who kept his station at Lampsacus; and, at their return from this idle bravado, spent the rest of the day without order or discipline, or keeping any look-out, from an affected contempt of the enemy. Alcibiades, who was at that time in the neighbourhood, and thoroughly sensible of their danger, came and informed them of the inconveniences of the place where their fleet then lay, and the absurdity of suffering their men to go ashore and ramble about the country. He assured them too, that Lysander was an experienced and vigilant enemy, who knew how to make the most of every advantage: but they, vain of their new power, despised his advice, and treated him with the utmost rudeness. Tydeus, in particular, ordered him to be gone, and told him insolently, that not he, but they were now commanders, and knew best what to do. The event happened as Alcibiades had foreseen. Lysander attacked them unexpectedly whilst they lay in their usual disorder, and gained so complete a victory, that of all their fleet eight vessels alone escaped, which fled at the first onset. The able Spartan, who knew as well how to make use of, as to gain, a victory, soon after compelled Athens itself to surrender at discretion. As soon as he was master of the city,¹³⁹ he burnt all their shipping, placed a garrison in their citadel, and demolished the rest of their fortifications. When he had thus reduced them to a state of absolute subjection, he

abolished their constitution, and left them to the mercy of thirty governors of his own choosing, well known in history by the appellation of the Thirty Tyrants.

This tyranny, though of very short duration, was to the last degree inhuman. The tyrants sacrificed all whom they suspected to their fear, and all who were rich to their avarice. The carnage was so great, that, according to Xenophon,¹⁴⁰ the thirty put more Athenians to death in eight months only, than had fallen in battle, against the whole force of the Peloponnesians, during ten years of the war. But the publick virtue of Thrasybulus¹⁴¹ could not bear to see his country enslaved by such inhuman monsters: collecting therefore about seventy determined citizens, who, like him, had fled to Thebes for refuge, he first seized upon Phyle,¹⁴² a strong fort near Athens; and, strengthened by the accession of fresh numbers, which flocked in to him from every side, he got possession of the Pyræum.¹⁴³ The thirty tyrants endeavoured to retake it, but were repulsed, and Critias¹⁴⁴ and Hippomachus, two of their number, slain in the attempt. The people now, weary of the tyrants,¹⁴⁵ drove them out of the city, and chose ten magistrates, one out of each tribe, to supply their places. The tyrants applied to their friend Lysander, who sailed and invested the Pyræum, and reduced Thrasybulus, and his party, to an extreme want of necessaries, for they were yet confined to the Pyræum, as the people, though they had deposed the tyrants, yet refused to receive them into the city; but Pausanias,¹⁴⁶ one of the kings of Sparta, who commanded the land forces in this expedition, jealous of the reputation which that great man had acquired, gained over two of the ephori, who accompanied him, and granted peace to the Athenians notwithstanding all the opposition of Lysander. Pausanias returned to Sparta with his army, and the tyrants,¹⁴⁷ despairing of assistance, began to hire foreign troops, and were determined to re-establish themselves by force in that power of which they had been so lately deprived. But Thrasybulus, informed of their design, marched out with all his forces, and, drawing them to a parley, punished them with that death their crimes so justly merited. After the execution of the tyrants, Thrasybulus proclaimed a general act of indemnity and oblivion, and by that salutary measure restored peace and liberty to his country without further bloodshed.

The conclusion of the Peloponnesian war may properly be termed the period of the Athenian grandeur; for though, by the assistance of the Persians, they made some figure after that time, yet it was of but short duration. The manners of the people were greatly degenerated, and the extreme scarcity of virtuous characters, so visible in their subsequent history, marks at once the progress and the degree of their degeneracy. Conon, who escaped with eight ships only when they were so totally defeated by Lysander, had convinced the Persian monarch how much his interest was concerned in supporting the Athenians, and obtained the command of a powerful armament in their favour. Whilst the artful Tithraustus,¹⁴⁸ general of the Persian forces in Asia, raised a strong confederacy against the Spartans by properly distributing large sums amongst the leading men of the Grecian republics. Conon¹⁴⁹ totally defeated the Spartan fleet commanded by Pisander, and, by the help of the Persian money, rebuilt¹⁵⁰ the strong walls and other fortifications of Athens, which Lysander had demolished. The Spartans,¹⁵¹ jealous of the rising power of the Athenians who seemed to aspire at recovering their former grandeur, made such advantageous offers to the Persians by their admiral Antalcidas, that they once more drew them over to their party. Conon¹⁵² was recalled and imprisoned upon the suggestions of Antalcidas, that he had embezzled the money allotted for the re-establishment of Athens, and was no friend to the Persian interest. The Athenians now sent Thrasybulus, their great deliverer, with a fleet of forty sail to annoy the Spartans: he reduced several cities which had revolted to the enemy, but was slain by the Rhodians in an unsuccessful attempt upon their island. Conon,¹⁵³ according to Justin, was executed at Susa by the Persians. Xenophon, who lived at the same time, is silent as to his death; but, whatever might be his fate, it is certain he is no more mentioned in history. After the death of these two great men we meet with none but Chabrias, Iphicrates, and Timotheus, the son of Conon, whose characters are worthy of our notice, until the time of Demosthenes and Phocion. The martial spirit of the Athenians subsided in proportion as luxury and corruption gained ground amongst them. The love of ease, and a most insatiable fondness for diversions, now took place of those generous sentiments which before knew no other object but the liberty and glory of their country. If we trace the rise of publick virtue up to its first source, and show the different effects arising from the prevailing influence

of the different ruling passions, we may justly account for the fatal and amazing change in that once glorious republick. A short digression therefore, on that subject, may perhaps be neither unuseful nor unentertaining.

Of all human passions, ambition may prove the most useful, or the most destructive to a people. The....

the fondness for admiration and applause seems coeval with man, and accompanies us from the cradle to the grave. Every man pants after distinction, and even in this world affects a kind of immortality. When this love of admiration and applause is the only end proposed by ambition, it then becomes a primary passion; all the other passions are compelled to be subservient, and will be wholly employed on the means conducive to that end. But whether this passion for fame, this eagerness after that imaginary life, which exists only in the breath of other people, be laudable or criminal, useful or frivolous, must be determined by the means employed, which will always be directed to whatever happens to be the reigning object of applause. Upon this principle, however the means may differ, the end will be still the same; from the hero down to the boxer in the bear-garden; from the legislator who new-models a state, down to the humbler genius who strikes out the newest cut for a coat-sleeve. For it was the same principle directing to the same end, which impelled Erostratus to set fire to the temple of Diana, and Alexander to set the world in a flame so quickly after.

There is no mark which so surely indicates the reigning manners of a people at different periods, as that quality or turn of mind, which happens to be the reigning object of publick applause. For as the reigning object of applause will necessarily constitute the leading fashion, and as the leading fashion always takes rise among the great or leading people; if the object of applause be praiseworthy, the example of the great will have a due influence upon the inferior classes; if frivolous or vicious, the whole body of the people will take the same cast, and be quickly infected by the contagion. There cannot, therefore, be a more certain criterion, by which we may form our judgment of the national virtue or national degeneracy of any people, in any period of their existence, than from those characters, which are the most distinguished in every period of their respective histories. To analyze these remarkable characters, to investigate the end proposed by all their actions, which opens to us all their secret springs; and to develop the means employed for the acquisition of that end, is not only the most entertaining, but, in my opinion, by much the most useful, part of history. For as the reigning object of applause arises from the prevailing manners of a people, it will necessarily be the reigning object of desire, and continue to influence the manners of succeeding generations, until it is opposed, and gradually gives way to some new object. Consequently the prevailing

manners of any people may be investigated without much difficulty, in my opinion, if we attend to the increase or decrease of good or bad characters, as recorded in any period of their history; because the greater number will generally endeavour to distinguish themselves by whatever happens at that time to be the reigning object of applause. Hence too we may observe the progressive order, in which the manners of any people prepared the way for every remarkable mutation in their government. For no essential mutation can ever be effected in any government (unless by the violence of external force) until the prevailing manners of the people are ripe for such a change. Consequently, as like causes will ever produce like effects; when we observe the same similarity of manners prevailing amongst our own people, with that which preceded the last fatal mutation of government in any other free nation; we may, at such a time, give a shrewd guess at the approaching fate of our constitution and country. Thus in the infancy and rise of the Grecian republics, when necessity of self-defence had given a manly and warlike turn to the temper of the people, and the continuance of the same necessity had fixed it into a habit, the love of their country soon became the reigning object of publick applause. As this reigning object consequently became the chief object of desire to every one who was ambitious of publick applause, it quickly grew to be the fashion. The whole people in those states glowed with the generous principle of publick virtue to the highest degree of enthusiasm. Wealth had then no charms, and all the bewitching pleasures of luxury were unknown, or despised. And those brave people courted and embraced toils, danger, and even death itself, with the greatest ardour, in pursuit of this darling object of their universal wishes. Every man planned, toiled, and bled, not for himself, but for his country. Hence the produce of those ages was a race of patriot statesmen and real heroes. This generous principle gave rise to those seminaries of manly bravery and heroick emulation, the Olympick, Isthmian, and other publick games. To obtain the victory at those scenes of publick glory was esteemed the utmost summit of human felicity, a wreath of wild olive, laurel or parsley (the victor's prize) that *palma nobilis*, as Horace terms it, which

Terrarum dominos evehit ad Deos,

was infinitely more the object of emulation in those generous times, than coronets and garters are of modern ambition. Let me add too, that as the former were invariably the reward of merit only, they reflected a very

different lustre upon the wearer. The honours acquired at these games quickly became the darling themes of the poets, and the charms of musick were called in to give additional graces to poetry. Panegyrick swelled with the most nervous strokes of eloquence, and decked up with all the flowers of rhetorick, was joined to the fidelity and dignity of history; whilst the canvass glowing with mimick life, and the animated marble contributed all the powers of art to perpetuate the memory of the victors. These were the noble incentives, which fired the Grecian youth with the glorious emulation of treading in the steps of those publick-spirited heroes, who were the first institutors of these celebrated games. Hence that refined taste for arts and sciences arose in Greece, and produced those masterpieces of every kind, the inimitable remains of which not only charm, but raise the justest admiration of the present times.

This taste raised a new object of applause, and at last supplanted the parents which gave it birth. Poetry, eloquence, and musick became equally the subjects of emulation at the publick games, were allotted their respective crowns, and opened a new road to fame and immortality. Fame was the end proposed and hoped for by all; and those who despaired of attaining it by the rugged and dangerous paths of honour, struck into the new and flowery road,¹⁵⁵ which was quickly crowded with the servile herd of imitators. Monarchs turned poets,¹⁵⁶ and great men, fiddlers; and money was employed to bias the judges at the publick games to crown wretched verses and bungling performers with the wreaths appropriated only to superior merit. This taste prevailed more or less in every state of Greece (Sparta alone excepted) according to the different turn of genius of each people; but it obtained the most ready admission at Athens, which quickly became the chief seat of the muses and graces.

Thus a new object of applause introducing a new taste, produced that fatal alteration in the manners of the Athenians, which became a concurrent cause of the ruin of their republick. For though the manners of the Athenians grew more polite, yet they grew more corrupt, and publick virtue ceased gradually to be the object of publick applause and publick emulation. As dramattick poetry affected most the taste of the Athenians; the ambition of excelling in that species of poetry was so violent, that Æschylus died with grief, because in a publick contention with Sophocles the prize was adjudged to his antagonist.¹⁵⁷ But though we owe the finest pieces of

that kind now extant to that prevailing taste, yet it introduced such a rage for theatrical entertainments as fatally contributed to the ruin of the republick.

Justin informs us that the publick virtue of Athens declined immediately after the death of Epaminondas.¹⁵⁸ No longer awed by the virtue of that great man, which had been a perpetual spur to their ambition, they sunk into a lethargy of effeminate indolence. The publick revenues appropriated for the service of the fleet and army were squandered in publick festivals and publick entertainments. The stage was the chief object of the publick concern, and the theatres were crowded whilst the camp was a desert. Who trod the stage with the greatest dignity, or who excelled most in the conduct of the drama; not who was the ablest general, or most experienced admiral, was the object of the publick research and publick applause. Military virtue and the science of war were held cheap, and poets and players engrossed those honours due only to the patriot and the hero; whilst the hard-earned pay of the soldier and the sailor was employed in corrupting the indolent pleasure-taking citizen. The fatal consequence of this degeneracy of manners, as Justin assures, was this: that the able Philip, taking advantage of the indolence and effeminacy of the Athenians, who before took the lead in defence of the liberty of Greece, drew his beggarly kingdom of Macedon out of its primitive obscurity, and at last reduced all Greece under the yoke of servitude. Plutarch, in his inquiry whether the Athenians were more eminent in the arts of war or in the arts of peace, severely censures their insatiable fondness for diversions.¹⁵⁹ He asserts, that the money idly thrown away upon the representation of the tragedies of Sophocles and Euripides alone, amounted to a much greater sum than had been expended in all their wars against the Persians, in defence of their liberty and common safety. That judicious philosopher and historian, to the eternal infamy of the Athenians, records a severe but sensible reflection of a Lacedemonian who happened to be present at these diversions. The generous Spartan, trained up in a state where publick virtue still continued to be the object of publick applause could not behold the ridiculous assiduity of the choragi, or magistrates who presided at the publick shows, and the immense sums which they lavished in the decorations of a new tragedy, without indignation. “He therefore, frankly told the Athenians, that they were highly criminal in wasting so much time, and giving that serious attention to trifles, which ought to be dedicated to the affairs of the publick.¹⁶⁰ That it

was still more criminal to throw away upon such bawbles as the decorations of a theatre, that money which ought to be applied to the equipment of their fleet, or the support of their army. That diversions ought to be treated merely as diversions, and might serve to relax the mind at our idle hours,¹⁶¹ or when over a bottle; if any kind of utility could arise from such trifling pleasures. But to see the Athenians make the duty they owed to their country give way to their passion for the entertainments of the theatre, and to waste unprofitably that time and money upon such frivolous diversions, which ought to be appropriated to the affairs and the necessities of the state, appeared to him to be the height of infatuation.”

Could we raise the venerable philosopher from the grave to take a short survey of the present manners of our own countrymen, would he not find them an amazingly exact copy of those of the Athenians, in the times immediately preceding their subjection to Macedon? Would he not see the same series of daily and nightly diversions, adapted to the taste of every class of people, from the publick breakfasting (that bane to the time and industry of the tradesman) up to our modern orgies, the midnight-revels of the masquerade? If he censured the Athenians for throwing away so much time and attention upon the chaste and manly scenes of Sophocles and Euripides, what must he have thought of that strange *Shakespearomania* (as I may term it) which prevailed so lately, and so universally amongst all ranks and all ages? Had he inquired of those multitudes who so long crowded both theatres at the representation of *Romeo and Juliet*, what were the striking beauties which so strongly and so repeatedly engaged their attention, could a tenth part of the affected admirers of that pathetick poet, have given him a more satisfactory answer than, “that it was the fashion?” would he not be convinced that fashion was the only motive, when he saw the same people thronging with the same eagerness, and swallowing the ribaldry of modern farce, and the buffoonery of pantomime with the same fury of applause? must he not have pronounced, that they as much exceeded the Athenians in thoughtless levity and folly, as they sunk beneath them in taste and judgment? For Plutarch does not find fault with the fine taste of the Athenians for the noble compositions of those incomparable poets; but for that excess of passion for the theatre, which, by setting up a new object of applause, had almost extinguished that publick virtue, for which they had been so greatly eminent; and made them more solicitous about the fate of a new tragedy, or the decision of the pretensions of two rival players, than

about the fate of their country. But what idea must he have of the higher class of our people, when he saw those who should be foremost in a time of distress and danger, to animate the drooping spirit of their countrymen by the lustre of their example, attentive only to the unmanning trills of an opera; a degree of effeminacy which would have disgraced even the women of Greece, in times of greatest degeneracy. If he was informed that this species of diversion was so little natural to the rougher genius, as well as climate of Britain, that we were obliged to purchase and fetch over the worst performers of Italy at the expense of vast sums; what opinion must he form of our understanding? but if he was to see the insolence of these hirelings, and the servile prostration of their paymasters to these idols of their own making, how must such egregious folly excite his contempt and indignation! In the midst of these scenes of dissipation, this varying round of unceasing diversions, how must he be astonished at the complaint of poverty, taxes, the decay of trade, and the great difficulty of raising the necessary supplies for the publick service, which would strike his ear from every quarter! would not his censure upon our inconsistent conduct be just the same which the honest Spartan passed upon the infatuated Athenians? when a national militia of sixty thousand men only was asked for, would he not have blushed for those who opposed a measure (once the support and glory of every free state in Greece) and whittled it down to half the number from a pretended principle of economy? but could his philosophick gravity refrain a smile, when he saw the same people lavishing their thousands in subscriptions to balls, concerts, operas, and a long train of expensive et cætera's, yet so wonderous frugal in pounds, shillings, and pence, in a measure so essential to the very safety of the nation? If therefore he saw a people bending under an accumulating load of debt, almost to bankruptcy, yet sinking more and more into a luxury, known in his time only to the effeminate Persians, and which required the wealth of Persia to support it: involved in a war, unsuccessful until measures were changed with ministers; yet indulging in all the pleasures of pomp and triumph, in the midst of national losses and national dishonour: ... contracting daily fresh debts of millions, to carry on that war, yet idly consuming more wealth in the useless pageantry of equipage, dress, table, and the almost innumerable articles of expensive luxury, than would support their fleets and armies; he could not help pronouncing such a people mad past the cure of Hellebore, and self-devoted to destruction.

This strange degeneracy of the Athenian manners, which Plutarch so severely censures, was first introduced (as that great man informs us) by Pericles.¹⁶² That ambitious man determined to supplant his rival Cimon, who, by the *eclat* of his victories, and the services he had done the publick, was considered as the first man in Athens, and supported his popularity by the distribution of a large fortune. Pericles, greatly inferior in point of fortune, and no way able to contend with him in liberality and magnificence, struck out a new method of gaining over the people to his party. He procured a law, by which every citizen was entitled to a gratuity out of the publick money, not only for attending at the courts of judicature, and assemblies of the states; but even at the entertainments of the theatre, and the publick games and sacrifices on their numerous days of festivity. Thus Pericles bought the people with their own money; a precedent which has been so successfully followed by corrupt and ambitious statesmen in all succeeding ages. To this piece of state-craft, not to superior abilities, late ministers owed their long reigns, which enabled them to reduce corruption into system.

The consequence of this corruption, as we may gather from the writings of Demosthenes, was, that in a few years time the Athenians were no more the same people. The annual fund, appropriated to the publick service for the army and navy, was wholly diverted to the support of the theatre. Their officers regarding nothing but their rank and pay, instead of patriots, were degenerated into mere mercenaries.¹⁶³ The emulation, of who should serve their country best, no longer subsisted amongst them; but of who should obtain the most lucrative command. The people tasting the sweets of corruption, and enervated by the luxury of a city, which was one perpetual scene of festivals and diversions, grew averse to the toils and dangers of war, which now seemed an insupportable slavery, and beneath the dignity of free citizens. The defence of the state was committed to mercenary hirelings, who behaved so ill that their affairs were in the utmost disorder. Of all their leading men, Demosthenes and Phocion were alone proof against the gold of Macedon; the rest were Philip's known and avowed pensioners. Demosthenes, at this alarming juncture, laid before the people the ambitious views of Philip, and the distressed situation of their country, with the utmost freedom. He employed all the energy and pathos of eloquence, to rouse them out of that lethargy of indolence and inattention to

the publick safety, into which their own luxury, and the flatteries of their corrupt demagogues, had thrown them.

He demonstrated to them, that the glorious principle, which had so long preserved the liberty of Greece, and had enabled them to triumph over the whole force and opulence of the mighty power of Persia, was that common hatred, that general detestation of corruption, which prevailed so universally amongst their generous forefathers.¹⁶⁴ That, in those times of publick virtue, to receive presents from any foreign power was deemed a capital crime. That if any man should be found so shamefully profligate, as to sell himself to any one, who had designs upon the liberty of Greece; or should endeavour to introduce corruption into his own country; death without mercy would have been his punishment here, and his memory branded with indelible and eternal infamy hereafter. That the statesmen and generals of those happier times, were absolute strangers to that most criminal and infamous kind of traffick; which was grown so common and so universal, that honour, fame, character, the liberty and welfare of their country were all set to sale, and sold publicly by auction to the best bidder.¹⁶⁵ He then made use of his utmost art, backed with the greatest strength of reasoning, to persuade the people, to give up that fund to the support of the army and navy (the service to which it had been originally appropriated) which from the time of Pericles had been applied solely to defray the expenses of the theatre. He showed next the folly and danger of confiding the defence of the state to mercenary forces, who had already served them so ill. He informed them, that their allies the Olynthians earnestly insisted, that the troops sent to their assistance might no longer be composed of venal hirelings as before, but of native Athenians, animated with a zeal for the glory of their country, and warm in the interest of the common cause. Both these motions were opposed by the corrupt party who adhered to Philip. The people were unwilling to give up that fund, even to the most pressing exigencies of the state, which enabled them to gratify their favourite passion; thus the opposition of the people quashed the former of these motions. But though the urgent, and repeated remonstrances of Demosthenes prevailed in favour of the latter, yet the demagogues, who omitted no opportunity of convincing Philip, how well he employed his money, took care to reduce the promised succours to a very small number, and to procure Chares, a creature of their own, to be placed at the head of the expedition.¹⁶⁶ Small as those succours were, yet they did the Olynthians essential service. But as all the eloquence

of Demosthenes could not prevail upon his countrymen to make more vigorous efforts, the city of Olynthus fell the year following into the hands of Philip by the treachery of Euthycrates and Lasthenes, two of the leading citizens.¹⁶⁷ Philip still continued his encroachments upon the allies of Athens; sometimes cajoling, sometimes bullying the Athenians; just as he found either method most conducive to his purpose, in which he was punctually seconded by the corrupt demagogues. But at last the joint attack which he made upon the cities of Perynthus and Byzantium, from whose territories the Athenians drew their chief supplies of corn, at once opened their eyes, and roused them from their indolence. They equipped a very large armament with great expedition; but the Philippick faction had still influence enough with the people, to obtain the command of it for their friend Chares. The conduct of this general was exactly answerable to the opinion and hopes of his friends, who had procured him that employment. Chares, voluptuous, yet sordidly avaricious; vain and assuming, yet without either courage or capacity; rapacious, and intent only upon enriching himself at the expense either of friend or foe, was refused admittance by the inhabitants of Byzantium; who from experience were too well acquainted with his character. Enraged at such an unexpected affront; this doughty general employed his time in parading along the coasts, detested by his allies whom he plundered, and despised by his enemies whom he had not the courage to face. The Athenians, sensible of their folly, displaced Chares, and gave the command to Phocion. The able and honest Phocion was received with open arms by the Byzantines, and quickly convinced his countrymen, that he was more than a match for Philip. He not only drove that ambitious monarch out of the territories of the allies; but compelled him to retire with great loss and precipitation into his own dominions, where Phocion made several glorious and successful incursions. Philip now throwing off the masque, marched his army towards Athens, with a resolution to humble that people, who were the chief obstacle to his ambitious views. Demosthenes alone took the lead upon this occasion, and persuaded his countrymen to join the Thebans with all the force they could raise, and make head against the invader. Philip finding his measures quite disconcerted by this confederacy, sent an embassy to Athens to propose terms of peace, and to profess his desire of living in amity with the Athenians. Phocion, anxious about the success of a war, which he knew his countrymen had not virtue enough to support, and where the loss of a single

battle must be fatal to the state, pleaded strongly for pacifick measures. But the flaming zeal of Demosthenes prevailed. Phocion was not only insulted, but excluded from all share in the command of the army by the infatuated people. Chares, so notorious for his cowardice and incapacity, who (as Diodorus Siculus informs us¹⁶⁸) knew no more the duty of a general than the meanest private soldier in the army, and one Lysicles, a man of daring courage, but rash and ignorant, were appointed commanders in chief. As Demosthenes had pushed on the people to this war, and was at that time at the head of affairs, this fatal step must be entirely attributed to his private pique at Phocion for opposing his measures. Phocion had more than once beaten Philip with much inferior forces, and was indisputably the ablest general of the age, and the only man whom Philip was afraid of. The conduct therefore of Demosthenes was so rash and weak in the management of this war,¹⁶⁹ that Plutarch resolves the whole into a certain divine fatality; which, in the circumvolution of mundane affairs, had limited the freedom of Greece to that particular point of time. The battle of Chæronea, which ensued quickly after, gave the Athenians a too fatal proof of the superior foresight and sagacity of Phocion, and their own superlative folly in the choice of their generals. The battle was fought with equal bravery and obstinacy on both sides, and the confederates behaved as well as men could do upon the occasion; but their defeat was owing entirely to the incapacity of the Athenian commanders. This was so apparent,¹⁷⁰ that Philip observing a capital blunder committed by Lysicles in the heat of the action,¹⁷¹ turned about coolly, and remarked to his officers, “that the Athenians knew not how to conquer.” This fault in point of generalship quickly turned the scale in favour of the abler Philip, who knew his trade too well to let slip so material an advantage. The Athenians were totally routed, and that fatal day put a period to the liberty and independency of Greece.¹⁷²

Thus fell the Athenians, and their fall involved the rest of Greece in one common ruin. The decadence of this once glorious and free state was begun by Pericles, who first introduced venality amongst the people for the support of luxury; continued by the venal orators, who encouraged that corruption to maintain their influence over the people; but finished by that fatal disunion between the only two men, whose publick virtue and abilities could have saved their country from destruction.

Athens, however, by her fall, has left us some instructions highly useful for our present conduct. Warned by her fate we may learn ... that the most effectual method which a bad minister can take, to tame the spirit of a brave and free people, and to melt them down to slavery, is to promote luxury, and encourage and diffuse a taste for publick diversions ... that luxury, and a prevailing fondness for publick diversions, are the never-failing forerunners of universal idleness, effeminacy, and corruption ... that there cannot be a more certain symptom of the approaching ruin of a state than when a firm adherence to party is fixed upon as the only test of merit, and all the qualifications requisite to a right discharge of every employment, are reduced to that single standard ... that these evils take root, and spread by almost imperceptible degrees in time of peace and national affluence; but, if left to their full and natural effects without controul, they will inevitably undermine and destroy the most flourishing and best founded constitution ... that in times of peace and affluence, luxury, and a fondness for diversions, will assume the specious names of politeness, taste, and magnificence. Corruption will put on different masks. In the corruptors it will be termed able management, encouraging the friends of the administration, and cementing a mutual harmony, and mutual dependence between the three different estates of the government.¹⁷³ In the corrupted it will be denominated loyalty, attachment to the government, and prudence in providing for one's own family. That in such times these evils will gain a fresh accession of strength from their very effects; because corruption will occasion a greater circulation of the publick money; and the dissipation of luxury, by promoting trade,¹⁷⁴ will gild over private vices with the plausible appearance of publick benefits ... that when a state so circumstanced, is forced into a war with any formidable power, then, and not until then, these baleful evils will show themselves in their true colours, and produce their proper effects. The counsels in such a state will be weak and pusillanimous, because the able and honest citizens, who aim solely at the publick welfare, will be excluded from all share in the government from party motives ... their measures will terminate in poor shifts, and temporary expedients, calculated only to amuse, or divert the attention of the people from prying too closely into their iniquitous conduct. Their fleets and armies will be either employed in useless parade, or will miscarry in action from the incapacity of their commanders, because, as all the chief posts will be filled up with the creatures of the prevailing faction, such officers will be more

intent upon enriching themselves than annoying the enemy; and will act as shall be judged most conducive to the private interest of their party, not to the publick service of their country. For they will naturally imagine, that the same power, which placed them in the command, will have weight enough to screen them from the resentment of an injured people ... their supplies for the extraordinary expenses of the war will be raised with difficulty; ... because, as so great a part of the publick money will be absorbed by the number of pensions and lucrative employments, and diverted to other purposes of corruption, the funds destined for the publick service will be found greatly deficient. If the rich are applied to, in such depraved times, to contribute their superfluous wealth towards the publick expenses, their answer will be the same which Scopas the rich Thessalian made to a friend, who asked him for a piece of furniture, which he judged wholly useless to the possessor, because it was quite superfluous.¹⁷⁵ “You mistake, my friend; the supreme happiness of our lives consists in those things which you call superfluous, not in those things which you call necessaries.” The people, accustomed to sell themselves to the best bidder, will look upon the wages of corruption as their birthright, and will necessarily rise in their demands, in proportion as luxury, like other fashions, descends from the higher to the lower classes. Heavy and unequal taxes must consequently be imposed to make up this deficiency; and the operations of the war must either be retarded by the slowness in collecting the produce, or the money must be borrowed at high interest and excessive premiums, and the publick given up a prey to the extortion of usurers. If a venal and luxurious Demades should be at the head of the ruling party,¹⁷⁶ such an administration would hardly find credit sufficient to support their measures, as the moneyed men would be averse to trusting their property in such rapacious hands;¹⁷⁷ for the chain of self-interest, which links such a set of men together, will reach from the highest quite down to the lowest officer of the state; because the higher officers, for the mutual support of the whole, must connive at the frauds and rapines of the inferior, or screen them if detected.

If therefore the united voice of a people, exhausted by the oppressions of a weak and iniquitous administration, should call a truly disinterested patriot to the helm, such a man must be exposed to all the malice of detected villany, backed by the whole weight of disappointed faction. Plutarch has handed down to us a striking instance of this truth in the case of Aristides, which is too remarkable to be omitted.

When Aristides was created quæstor, or high treasurer of Athens, he fairly laid before the Athenians what immense sums the publick had been robbed of by their former treasurers,¹⁷⁸ but especially by Themistocles, whom he proved to be more criminal than any of the others. This warm and honest remonstrance produced such a powerful coalition between these publick plunderers, that when Aristides, at the expiration of his office, (which was annual and elective) came to give up his accompts to the people, Themistocles publicly impeached him of the same crime, and, by the artifice of his corrupt party, procured him to be condemned and fined; but the honester, and more respectable part of the citizens highly resenting such an infamous method of proceeding, not only acquitted Aristides honourably, and remitted his fine, but, to show their approbation of his conduct, elected him treasurer for the following year. At his entrance upon his office the second time, he affected to appear sensible of his former error, and, by winking at the frauds of the inferior officers, and neglecting to scrutinize into their accompts, he suffered them to plunder with impunity. These state-leeches thus gorged with the publick money, grew so extremely fond of Aristides, that they employed all their interest to persuade the people to elect him a third time to that important office. On the day of election, when the voices of the Athenians were unanimous in his favour, this real patriot stood up with honest indignation, and gave the people this severe, but just reprimand. “When,” says he, “I discharged my duty in this office the first time, with that zeal and fidelity which every honest man owes to his country, I was vilified, insulted, and condemned. Now I have given full liberty to all these robbers of the publick here present to pilfer, and prey upon your finances at pleasure, I am, it seems, a most upright minister, and a most worthy citizen. Believe me, O Athenians! I am more ashamed of the honour, which you have so unanimously conferred upon me this day, than of that unjust sentence which you passed upon me with so much infamy the year before. But it gives me the utmost concern, upon your account, when I see that it is easier to merit your favour and applause by flattering, and conniving at the rogueries of a pack of villains, than by a frugal and uncorrupt administration of the publick revenues.” He then disclosed all the frauds and thefts, which had been committed that year in the treasury, which he had privately minuted down for that purpose. The consequence was, that all those, who just before had been so loud in his praise, were struck dumb with shame and confusion; but he himself

received those high encomiums, which he had so justly merited, from every honest citizen. It is evident from this whole passage, as related by Plutarch, that Aristides might have made his own fortune, at the expense of the publick, with the same ease, and to as great a degree, as any of his predecessors had done before, or any ministers in modern states have done since. For the rest of the officers, who seemed to think their chief duty consisted in making the most of their places, showed themselves extremely ready to conceal the speculation of their chief, because it gave them a right to claim the same indulgence from him in return. A remark not restricted to the Athenians alone, but equally applicable to every corrupt administration under every government. History, both ancient and modern, will furnish us with numerous instances of this truth, and posterity will probably make the same remark, when the genuine history of some late administrations shall see the light in a future age.

If the Athenians were so corrupt in the time when Aristides lived, ought we to wonder at that amazing height to which that corruption arrived in the time of Demosthenes, when left to its full effects for so long a term of years? Could the state of Athens at that time have been preserved by human means; the indefatigable zeal of Demosthenes, joined to the strict economy, the inflexible integrity, and superior abilities of Phocion, might have raised her once more to her ancient lustre. But the event showed, that luxury, corruption and faction, the causes of her ruin, had taken too deep root in the very vitals of the republick. The Grecian history indeed affords us ever memorable instances of republicks bending under the yoke of foreign or domestick oppression, yet freed and restored to their former liberty and dignity by the courage and virtue of some eminent patriot-citizen. But if we reflect upon the means, by which these great events were so successfully conducted, we shall always find, that there yet remained in the people a fund of publick virtue sufficient to support their chiefs in those arduous enterprises. The spirit of liberty in a free people may be cramped and pressed down by external violence; but can scarce ever be totally extinguished. Oppression will only increase its elastick force, and when roused to action by some daring chief, it will break out, like fired gunpowder, with irresistible impetuosity. We have no occasion to look back to antiquity for convincing proofs of this most important truth. Our own history is but one continued scene of alternate struggles between encroaching princes, aiming at absolute power, and a brave people

resolutely determined to vindicate their freedom. The genius of liberty has hitherto rose superior in all those conflicts, and acquired strength from opposition. May it continue to prevail to the end of time! The United Provinces are a striking proof that the spirit of liberty, when animated and conducted by publick virtue, is invincible. Whilst under the dominion of the house of Austria, they were little better than a poor assemblage of fishing towns and villages. But the virtue of one great man not only enabled them to throw off that inhuman yoke, but to make a respectable figure amongst the first powers in Europe. All the different states in Europe, founded by our Gothic ancestors, were originally free. Liberty was as truly their birthright as it is ours, and though they have been wormed out of it by fraud, or robbed of it by violence, yet their inherent right to it still subsists, though the exercise of that right is superseded, and restrained by force. Hence no despotick government can ever subsist without the support of that instrument of tyranny and oppression, a standing army. For all illegal power must ever be supported by the same means by which it was at first acquired. France was not broke into the yoke of slavery until the in famous administrations of Richelieu and Mazarin. But though loyalty and zeal for the glory of their prince seem to form the characteristick of the French nation, yet the late glorious stand against the arbitrary impositions of the crown, which will immortalize the parliament of Paris, proves that they submit to their chains with reluctance. Luxury is the real bane of publick virtue, and consequently of liberty, which gradually sinks in proportion as the manners of a people are softened and corrupted. Whenever, therefore, this essential spirit, as I may term it, of a free nation is totally dissipated, the people become a mere *caput mortuum*, a dead inert mass, incapable of resuscitation, and ready to receive the deepest impressions of slavery. Thus the publick virtue of Thrasybulus, Pelopidas, and Epaminondas, Philopœmen, Aratus, Dion, &c. restored their respective states to freedom and power, because though liberty was suppressed, yet the spirit of it still remained, and acquired new vigour from oppression. Phocion and Demosthenes failed, because corruption had extinguished publick virtue, and luxury had changed the spirit of liberty into licentiousness and servility.

That luxury and corruption, encouraged and propagated by a most abandoned faction, have made an alarming progress in our nation, is a truth too evident to be denied. The effects have been too sensibly felt during the course of the late and present wars, which, until the last campaign, were the

most expensive, and the least successful of any we ever yet engaged in. But a late signal change must convince our enemies, that we have a fund of publick virtue still remaining capable of vindicating our just rights, and raising us out of that calamitous situation, into which we were plunged, under some late administrations. When the publick imagined the helm in the hands of corruption, pusillanimity and ignorance, they transferred it to a virtuous citizen, possessed, in their opinion, of the zeal and eloquence of Demosthenes, joined to the publick economy, incorrupt honesty, and immovable fortitude of Aristides and Phocion. The numerous disinterested marks of approbation, so lately given from every part of this kingdom, demonstrate the resolution and ability of the publick to support that minister, as long as he pursues his upright plan of conduct with undeviating firmness.

From the time of Phocion, the Athenian history affords little more than a detail of scandalous decrees, and despicable instances of the levity and servile adulation of that abject people.^{[179](#)} Reduced at last to a province of the Romans, Athens contributed her taste for arts and sciences towards polishing, and her passion for theatrical performances towards corrupting the manners of that warlike people.

CHAPTER III.

OF THEBES.

THE accounts of the earlier ages of this ancient republick are so enveloped in fable, that we must rather apply for them to the poets than to the historians. Pausanias gives us a list of sixteen kings of this country, down from Cadmus inclusive, who evidently belong to the fabulous times of the heroes.¹⁸⁰ He seems indeed to acknowledge as much, since he confesses, that as he could find no better account of their origin, he was obliged to take up with fable.¹⁸¹ After the death of Xanthus,¹⁸² the last of those kings, the Thebans, as the same author relates, disgusted at monarchy, changed the form of their government into a republick. But it is in vain to search for the cause, or manner how this revolution was effected either in Pausanias, or any other historian. All we can learn of the Thebans or Bœotians from history,¹⁸³ is, that they were remarkable for their dulness and stupidity, even to a proverb,¹⁸⁴ that, until the time of Pelopidas and Epaminondas, they made as poor a figure in the art of war as in the sciences: that their form of government was democrattick, and that, as usually happens in that kind of government, they were divided into factions.

After the famous peace of Antalcidas, by which the honour and true interest of Greece was sacrificed to the ambition of the Spartans, whatever state refused to come into their measures, was condemned to feel the effects of their resentment. They had compelled the Thebans to accede to that treaty, though it deprived them of the dominion over Bœotia; and afterwards, by the perfidy of the aristocrattick faction, got possession of their citadel, and reduced them to a state of absolute subjection. This was the wretched state of the Thebans, until they were delivered both from foreign and domestick slavery, and raised to a height of power superior to every other state of Greece by the virtue of Pelopidas and Epaminondas. I have selected therefore this revolution as the most interesting, and most worthy of our attention; because it exhibits a convincing proof, that a brave and warlike people are not the produce of any particular spot,¹⁸⁵ but are the growth of every place and country, where the natives are trained up in a true

sense of shame at mean and base actions, and inspired with that manly courage which arises from the emulation after what is just and honourable. And that those who are taught to dread infamy more than the greatest dangers, prove the most invincible, and the most formidable to an enemy. It instructs us too, that the most depressed, and most abject state may be extricated from the calamities of oppression, and raised to superior dignity and lustre by a very small number of virtuous patriots, whilst the spirit of liberty yet remains, and the people second the efforts of their leaders with unanimity and vigour.

The Thebans, by a fatal error in politicks, had chosen Ismenias and Leontidas, who were at that time heads of two opposite parties, their supreme annual magistrates. Ismenias was a steady assertor of the liberty and just rights of the people, and laboured to preserve a due balance in the powers of the constitution. Leontidas wanted to engross the whole power into his own hands, and to govern, by a small, but select number of his own creatures. It was impossible for union and harmony to subsist between two men, who had views so diametrically opposite. Leontidas therefore, who found his party the weakest, bargained by a private convention with Phæbidas, the Spartan general, to deliver up his country to the Lacedæmonians upon condition that the government should be lodged in himself, and such as he should think proper to intrust. The agreement was made, and Leontidas conveyed Phæbidas with a strong body of troops into the citadel, at a time when the poor Thebans, wholly unapprehensive of any danger from the Spartans, with whom they had lately concluded a peace, were celebrating a publick religious festival. Leontidas, now sole governor, gave an immediate loose to his passions. He seized his colleague Ismenias, and, by the assistance of the Spartans, procured him to be tried, condemned and executed, for caballing against the state. A pretence however stale, yet constantly urged by every iniquitous administration against all who have the resolution to oppose their measures. The party of Ismenias, upon the first news of the imprisonment of their chief, fled the city, and were afterwards banished by a publick decree. A strong proof of the fatal lengths a faction will run, which is composed of those profligate wretches whose sole aim is their own private emolument! Yet such a faction, in all free states, when once luxury and corruption are introduced, is generally the most numerous, and most prevalent. Athens, not long before, had been betrayed to the Spartans in the same manner, and on the same infamous terms by a

detestable faction, composed of the most abandoned of her citizens, and groaned under the same species of tyranny until she was freed by the great Thrasybulus. And, I believe, we have not yet forgot the strong apprehensions we were lately under, that a certain free state, upon the continent, was on the point of being sold to a powerful neighbour by a similar faction, and by a like iniquitous contract. We must remember too, after what manner that scheme was defeated by the glorious efforts of patriotism and publick spirit. I shall make no apology for this digression, because I thought the remark too apposite to be omitted.

The honest citizens, who had fled Athens, enraged to see their country thus tricked out of her liberty, and groaning under the most ignominious servitude, determined to set her free, or perish in so glorious an attempt. The scheme was well concerted, and as boldly executed by Pelopidas, who entering the city with a small number of the most resolute of his party in disguise, destroyed Leontidas and his colleague Archias, with the most dangerous of his faction; and, by the assistance of Epaminondas and his friends,¹⁸⁶ with the additional aid of a large body of Athenians, recovered the citadel. The Spartans,¹⁸⁷ at the first news of this surprising event, entered the Theban territories with a powerful army to take vengeance of the authors of this rebellion, as they termed it, and to reduce Thebes to its former subjection. The Athenians, conscious of their own weakness, and the mighty power of Sparta, which they were by no means able to cope with, not only renounced all friendship with the Thebans, but proceeded with the utmost severity against such of their citizens as favoured that people. Thus the Thebans, deserted by their allies, and destitute of friends, appeared to the rest of Greece as devoted to inevitable destruction. In this desperate situation of affairs, the virtue and abilities of these two great men shone forth with greater lustre. They began by training their countrymen to the use of arms as well as the shortness of the time would permit, and inspiring them with a hatred of servitude, and the generous resolution of dying in defence of the liberty and glory of their country. As they judged it imprudent to hazard a decisive battle against the best troops in the world, with their new raised militia, they harrassed the Spartans with daily skirmishes to instruct their men in military discipline, and the trade of war. By this method they animated the minds of their people with the love of glory, and inured their bodies to the fatigues of war by exercise and labour, whilst they acquired experience and courage by those frequent encounters.

Thus, as Plutarch remarks, when these able generals, by never engaging rashly, but watching every favourable opportunity, had fleshed the Thebans, like young stag-hounds, upon their enemies, and rendered them staunch by tasting the sweets of victory, and bringing them off in safety, they made them fond of the sport, and eager after the most arduous enterprises. By this able management they defeated the Spartans at Platea and Thespia,^{[188](#)} where they killed Phæbidas who had before so treacherously surprised their citadel, and again routed them at Tenagra, the Spartan general himself falling by the hand of Pelopidas. Flushed with this success, the Thebans feared no enemy, however superior in number; and the battle of Tegyra soon after raised the reputation of their arms to a degree unknown before.^{[189](#)} In this action the brave Pelopidas, with a small body of horse, and no more than three hundred foot, broke through, and dispersed a body of Spartans consisting of above three times that number, made a terrible slaughter of the enemy, killed both their generals upon the spot, took the spoils of the dead, raised a trophy on the field of battle, and brought his little army home in triumph. Here the astonished Greeks first saw the Spartans defeated by a much inferior number, and by an enemy too whom they had always held in the greatest contempt. They had never, until that time, been beaten by equal, and rarely by much superior numbers, and, until that fatal day, were justly reputed invincible. But this action was only the prelude to that decisive stroke at Leuctra, which gave a fatal turn to the Spartan affairs, and stripped them of that dominion which they had so long exercised over the rest of Greece. For this series of success, though it greatly elated the Thebans, yet rather enraged than discouraged the Spartans. The Athenians, jealous of the growing power of Thebes, struck up a peace with their ancient rivals, in which all the Grecian states were included, except the Thebans, who were given up a sacrifice to the Spartan vengeance. Cleombrotus, joint king with Agesilaus, entered Bœotia with the largest, and finest army the Spartans had ever sent into the field. The great Epaminondas engaged them at Leuctra with a body of six thousand Thebans, which scarce equalled a third part of their enemies, but the admirable disposition he made, joined to the skill and dexterity of Pelopidas, and the bravery of their troops supplied the defect of numbers. Cleombrotus was slain on the spot, his army totally routed, and the greatest slaughter made of the native Spartans that had ever happened until that day, with the loss only of three hundred Thebans. Diodorus Siculus gives a concise account of this action in these remarkable words,^{[190](#)}

“that Epaminondas, being reduced to the necessity of engaging the whole confederate force of the Lacedæmonians, and their allies, with only a handful of his city militia, gained so complete a victory over those hitherto invincible warriors, that he slew their king Cleombrotus, and cut off the Spartan division, which was opposed to him, almost to a man.”

This victory gave so happy a turn to the affairs of the Thebans, that their alliance was now as much courted as before it had been despised and shunned. The Arcadians applied to them for succours against the Spartans. Epaminondas and Pelopidas were sent with a powerful army to their assistance. At the head of the joint forces these two great men entered Laconia, and appeared with a hostile army at the gates of Sparta. The first sight of that kind ever seen by that haughty people. The masterly conduct of Agesilaus, and the desperate valour of the Spartans saved the city, but could not prevent the ravage of their territories by the two Theban generals, who restored the Messenians to their kingdom, of which the Spartans had deprived them near three hundred years before, defeated the Athenians, who came to the assistance of the Spartans, and returned home with glory.

The Theban arms were now so terrible, and their power grown so formidable, that whilst some states applied to them for protection, and others for assistance, the Macedonians referred the disputes about the succession to that crown to their decision, and gave hostages as a security that they would abide by their determination. The chief of these hostages was the famous Philip, father of Alexander the Great, who employed his time so well, under those two able masters, in the art of war, that from them he acquired that military knowledge which proved afterwards so fatal to all Greece in general. Thus the publick virtue of two private citizens not only restored Thebes to her former liberty, but raised her to a much more respectable rank than she had ever held before amongst the Grecian republicks.

But this eminent, and newly acquired degree of power was but of short duration. Pelopidas had freed the Thessalians from the insults of Alexander the Pherean; but going to him afterwards, accompanied only by Ismenias, to compose some differences, he was not only unjustly made prisoner, but treated with the most spiteful cruelty by that perfidious tyrant. The Thebans, enraged at this treacherous act, sent an army against the tyrant, under the command of two new generals, who returned with loss and dishonour. The

command was again committed to Epaminondas, who, by the terror of his name alone, brought the tyrant to reason, and procured the release of his friend Pelopidas and Ismenias. But the tyrant soon after renewing his usual depredations upon the Thessalians, Pelopidas was once more sent with forces to their assistance. The two armies came soon to action, when Pelopidas, blinded by resentment, and eager after revenge, rushed into the right wing, where the tyrant commanded in person, and fell, covered with wounds, in the midst of his surrounding enemies. His death however was not unrevenged, for his troops, quite furious at the loss of a general they so much revered and loved, routed the enemy, and sacrificed three thousand of them to his *manes*.

Though the death of this truly great man was an irretrievable loss to Thebes, yet Epaminondas still survived, and whilst he lived, the good fortune and power of his country remained unaltered. But new disturbances breaking out not long after, Epaminondas, at the head of his Thebans, broke again into Peloponnesus, eluded the vigilance of Agesilaus, and advanced into the very suburbs of Sparta. But as they had just before received intelligence of his approach by a messenger from Agesilaus, they were so well prepared for his reception, that he judged proper to retire, and, in his return, fell unexpectedly upon the Spartans and their allies at Mantinea. The disposition of his forces upon this occasion is esteemed a masterpiece of generalship; nor was his valour inferior to his conduct. He routed and made a terrible slaughter of the Spartans, but, pushing on too eagerly to complete his victory, he received a mortal wound in his breast, and was carried to his tent. As soon as he recovered his speech, and was satisfied that his shield was safe, and the Thebans were victors, he ordered the broken part of the weapon to be drawn out of his wound, and died rejoicing at the good fortune of his country. Thus fell the incomparable Epaminondas, who, as Polybius observes, overcame his enemies, but was overcome by fortune.^{[191](#)}

The same judicious historian,^{[192](#)} in his remarks on the different constitutions of the ancient republics, observes, “that the flourishing state of the Thebans was but of short duration, nor was their decay gradual, because their sudden rise was not founded on right principles. He affirms that the Thebans took the opportunity of attacking the Spartans when the imprudence and haughtiness of that people had made them quite odious to their allies; and that they had acquired amongst the Greeks their high reputation for valour by the virtue and abilities of one or two great men,

who knew how to make the best use of those unexpected incidents, which so fortunately offered. He adds, that the sudden change in their affairs made it quickly appear to all, that their remarkable success was not owing to the system of their government, but to the publick virtue of those who were at the head of the administration. For that the power and grandeur of the Thebans arose, flourished, and fell with Epaminondas and Pelopidas is too evident, he says, to be denied. Whence he concludes, that the splendid figure the Thebans at that time made in the world must not be ascribed to their civil polity, but to those two great men only." I have hitherto considered them only in the light of virtuous citizens, and able generals; perhaps a short sketch of their characters as patriot-statesmen may not be unacceptable nor uninteresting.

Pelopidas and Epaminondas were both descended from ancient and worthy families. Pelopidas inherited a large fortune, which he enjoyed with honour to himself and utility to his friends, and by avoiding the two extremes of avarice and dissipation, showed that he was the master of, not the slave to riches. The patrimony of Epaminondas on the contrary was extremely small, yet equal to his utmost wants or desires. Devoted wholly to the sciences and the study of history and philosophy, which mend the heart, whilst they instruct the head, he preferred the sweets of retirement and study to a life of pleasure and ostentation. He avoided all lucrative employments and state honours, with as much assiduity, as they were courted and intrigued for by others: nor did he accept of the highest office in the state, until he was called to it by the united cry of the people, and the exigencies of the publick. When dragged out of his retirement, and placed by force, as it were, at the head of affairs, he convinced his countrymen, as Justin informs us, that he was fully equal to the task, and seemed rather to give lustre to, than receive any from the dignity of his employment.¹⁹³ He excelled in the art of speaking, and was the most consummate orator of his time; persuasion hung upon his tongue, and he was the master of the passions of his auditors by his eloquence, and of his own by philosophy. With this truly great man Pelopidas was joined as colleague, who, when he could not prevail upon his friend Epaminondas to share the enjoyment of his own fortune with him, copied him in the humble virtues of private life. Thus both became the admiration of their countrymen for their temperance and moderation, as well as their plainness in dress; and frugality at their table. But the most striking part of their character, was that unexampled

union and perfect harmony which subsisted between these two great men, and ended only with their lives. They filled at one and the same time the two highest posts in the state. The whole management of publick affairs was intrusted to their conduct, and all business passed through their hands. Yet during all that time, no latent spark of envy, jealousy or ambition, no private or selfish views or difference of sentiments (the fatal, but too general sources of disunion amongst statesmen) could in the least affect their friendship, or ever make any impression upon an union, which was founded upon the immovable basis of publick virtue. Animated, as Plutarch observes, and directing all their actions by this principle only, they had no other in view but that of the publick; and instead of enriching or aggrandizing their own families, the only emulation between them was, which should contribute most to the advancement of the dignity and happiness of his country. To crown all, they both died gloriously in defence of that independency, which they had acquired and preserved to the state, and left the Thebans free, great, and flourishing.

It is natural to think, that men of such superior merit, and so eminently disinterested, could never possibly be the objects of party resentment. Yet we are assured in history, that they were frequently persecuted by a virulent faction composed of the selfish, those leeches whom these two virtuous men prevented from fattening upon the blood of the publick, and of the envious, from that strong antipathy which bad men naturally bear to the good.¹⁹⁴ For envy, that passion of low uncultivated minds, has a greater share in party opposition than we are apt to imagine. A truth of which we have strong proof in that celebrated passage, recorded by Plutarch,¹⁹⁵ between Aristides and the Athenian countrymen. Though the virtue of these great men triumphed over all the malicious efforts of these domestick enemies; yet they had power enough at one time to impeach and bring them both to a publick trial for a breach of formality relative to their office, though that very act had enabled them to render the most signal services to their country.¹⁹⁶ They were tried however, but honourably acquitted. At another time, whilst Pelopidas was detained prisoner by Alexander the Pherean, this malignant faction had weight enough to exclude Epaminondas from the office of polemarche or general, and to procure for two of their friends, the command of that army which was sent to punish the tyrant for his treachery. But the new generals made such wretched work of it, when they came to face the enemy, that the whole army was quickly thrown into

the utmost confusion, and compelled for their own preservation, to put Epaminondas at their head, who was present at the action only as a volunteer: for the malice of his enemies had excluded him from the least shadow of trust or power. This able man, by a *manœuvre* peculiar to himself, extricated the Theban troops out of those difficulties in which the ignorance and incapacity of their generals had involved them, repulsed the enemy, and by a fine retreat brought the army safe to Thebes. His countrymen, now sensible of their error, and how greatly they had been imposed upon by the faction, immediately recalled him to the highest offices in the state, which he continued to execute until his death, with the greatest honour to himself, and emolument, as well as glory, to his country. As the management of publick affairs, after the death of these two illustrious patriots fell by the intrigues of faction, into the hands of men of a quite different character, we need not wonder that the Thebans sunk alike in power and reputation until Thebes itself was totally destroyed by Alexander the Great, and their country, with the rest of Greece, swallowed up at last by the insatiable ambition of the Romans.

CHAPTER IV.

OF CARTHAGE.

OF all the free states whose memory is preserved to us in history, Carthage bears the nearest resemblance to Britain, both in her commerce, opulence, sovereignty of the sea, and her method of carrying on her land wars by foreign mercenaries. If to these we add the vicinity of the Carthaginians to the Romans, the most formidable and most rapacious people at that time in Europe, and the specifick difference, as I may term it, of the respective military force of each nation, the situation of Carthage with respect to Rome, seems greatly analogous to that of Britain with respect to France, at least for this last century. Consequently, the dreadful fate of that republick, once the most flourishing state in the universe, and the most formidable rival Rome ever had to cope with, must merit our highest attention at this juncture: both as the greatness of her power arose from, and was supported by commerce, and as she owed her ruin more to her own intestine divisions, than to the arms of the Romans.

We know very little of this opulent and powerful people until the time of the first Punick war. For as not one of their own historians has reached our times, we have no accounts of them but what are transmitted to us by their enemies. Such writers consequently deserve little credit, as well from their ignorance of the Carthaginian constitution, as their inveterate prejudice against that great people. Hence it is that we know so little of their laws, and have but an imperfect idea of their constitutional form of government.

The government of Carthage, if we may credit the judicious Aristotle, seems to have been founded on the wisest maxim of policy. For he affirms, the different branches of their legislature were so exactly balanced,¹⁹⁷ that for the space of five hundred years, from the commencement of the republick down to his time, the repose of Carthage had never been disturbed by any considerable sedition, or her liberty invaded by any single tyrant: the two fatal evils to which every republican government is daily liable, from the very nature of their constitution. An additional proof too may be drawn from this consideration, that Carthage was able to support herself upwards

of seven hundred years in opulence and splendour in the midst of so many powerful enemies, and during the greater part of that time, was the centre of commerce of the known world, and enjoyed the uninterrupted sovereignty of the sea without a rival.

The genius of the Carthaginians was warlike as well as commercial, and affords undeniable proof, that those qualities are by no means incompatible to the same people. It is almost impossible indeed to discover the real character of this great people. The Roman historians, their implacable enemies, constantly paint them in the blackest colours, to palliate the perfidious and merciless behaviour of their own countrymen towards that unfortunate republick. A fact so notorious, that neither Livy, nor any other of their writers, with all their art, were able to conceal it. The Greek historians, whose countrymen had suffered so greatly by the Carthaginian arms in Sicily and all the other islands in the Mediterranean, betray as strong a prejudice against them as the Roman. Even the respectable Polybius, the only author amongst them who deserves any degree of credit, is plainly partial, when he speaks of the Carthaginian manners. The Romans continually charge them with the want of publick faith, and have handed down the *Punica fides* as a proverb. I shall take notice of this scandalous charge in another place, where I shall show how much more justly it may be retorted upon the Romans.

As the desire of gain is the chief spur to commerce, and as the greatest men in Carthage never thought it beneath them to engage in that lucrative employment, all the historians have represented the whole body of the people as so insatiably fond of amassing wealth, that they esteemed even the lowest and dirtiest means lawful, that tended to the acquisition of their darling object. “Amongst the Carthaginians,” says Polybius, when he compares the manners of that people with those of the Romans, “nothing was infamous that was attended with gain.”¹⁹⁸ Amongst the Romans nothing so infamous as bribery,¹⁹⁹ and to enrich themselves by unwarrantable means.” He adds in proof of his assertion, that, “at Carthage all the dignities, and highest employments in the state were openly sold.”²⁰⁰ A practice, he affirms, which at Rome was a capital crime.” Yet but a few pages before, where he inveighs bitterly against the sordid love of money, and rapacious avarice of the Cretans, he remarks that, “they were the only people in the world to whom no kind of gain appeared either infamous or

unlawful.”²⁰¹ In another place where he censures the Greeks for aspersing Titus Flamius the Roman general, as if he had not been proof against the gold of Macedon, he affirms, “that whilst the Romans preserved the virtuous manners of their forefathers, and had not yet carried their arms into foreign countries, not a single man of them would have been guilty of a crime of that nature.”²⁰² But though he can boldly assert, as he says, “that in his time many of the Romans, if taken man by man, were able to preserve he trust reposed in them inviolable as to that point, yet he owns he durst not venture to say the same of all.” Though he speaks as modestly as he can to avoid giving offence, yet this hint is sufficient to convince us, that corruption was neither new nor uncommon at that time amongst the Romans. But as I shall resume this subject in a more proper place, I shall only observe from Polybius’s own detail of the history of the Carthaginians, that unless when the intrigues of faction prevailed, all their great posts were generally filled by men of the most distinguished merit.

The charge of cruelty is brought against them with a very ill grace by the Romans, who treated even monarchs themselves, if they were so unhappy as to become their prisoners of war, with the utmost inhumanity, and threw them to perish in dungeons, after they had exposed them in triumph to the insults of their own populace.²⁰³

The story indeed of Regulus has afforded a noble subject for Horace, which he has embellished with some of the most beautiful strokes of poetry, and that fine ode has propagated and confirmed the belief of it, more perhaps than the writings of all their historians. But as neither Polybius nor Diodorus Siculus makes the least mention of such an event (though the Greeks bore an equal aversion to the Carthaginians) and as the Roman writers from whom we received it, differ greatly in their accounts of it, I cannot help joining in opinion with many learned men, that it was a Roman forgery.

The Greek writers accuse them of barbarism and a total ignorance of the *belles lettres*, the study of which was the reigning taste of Greece. Rollin contemptuously affirms, that their education in general amounted to no more than writing and the knowledge of merchants accounts; that a Carthaginian philosopher would have been a prodigy amongst the learned; and then asks, “what would they have thought of a geometrician or astronomer of that nation?” Rollin seems to have put this question too

hastily, since it is unanimously confessed; that they were the best ship builders, the ablest navigators, and the most skilful mechanicks at that time in the world: that they raised abundance of magnificent structures, and very well understood the art of fortification; all which (especially as the use of the compass was then unknown) must of necessity imply a more than common knowledge of astronomy, geometry, and every other branch of mathematicks. Let me add too that their knowledge in agriculture was so eminent;²⁰⁴ that the works of Mago the Carthaginian upon that subject were ordered to be translated by a decree of the senate for the use of the Romans and their colonies.

That the education of their youth was not confined to the mercantile part only, must be evident from that number of great men, who make such a figure in their history; particularly Hannibal, perhaps the greatest captain which any age has ever yet produced, and at the same time the most consummate statesman, and disinterested patriot. Painting, sculpture, and poetry, they seem to have left to their more idle and more luxurious neighbours the Greeks, and applied their wealth to the infinitely nobler uses of supporting their marine, enlarging and protecting their commerce and colonies. What opinion even the wiser part of the Romans had of these specious arts, and how unworthy they judged them of the close attention of a brave and free people, we may learn from the advice which Virgil gives his countrymen by the mouth of his hero's father Anchises.²⁰⁵ I have endeavoured here to clear the much injured character of this great people from the aspersions and gross misrepresentations of historians, by proofs drawn from the concessions and self-contradictions of the historians themselves.

The state of Carthage bears so near a resemblance to that of our own nation, both in their constitution (as far as we are able to judge of it) maritime power, commerce, party divisions, and long as well as bloody war which they carried on with the most powerful nation in the universe, that their history, I again repeat it, affords us, in my judgment, more useful rules for our present conduct than that of any other ancient republick. As we are engaged in a war (which was until very lately unsuccessful) with an enemy, less powerful indeed, but equally rapacious as the Romans, and acting upon the same principles, we ought most carefully to beware of those false steps both in war and policy, which brought on the ruin of the Carthaginians. For

should we be so unhappy as to be compelled to receive law from that haughty nation, we must expect to be reduced to the same wretched situation in which the Romans left Carthage at the conclusion of the second Punick war. This island has been hitherto the inexpugnable barrier of the liberties of Europe, and is as much the object of the jealousy and hatred of the French as ever Carthage was of the Romans. As they are sensible that nothing but the destruction of this country can open them a way to their grand project of universal monarchy, we may be certain that *delenda est Britannia* will be as much the popular maxim at Paris, as *delenda est Carthago* was at Rome.... But I shall wave these reflections at present, and point out the real causes of the total ruin of that powerful republick.

Carthage took its rise from a handful of distressed Tyrians who settled in that country by permission of the natives, like our colonies in America, and actually paid a kind of rent, under the name of tribute, for the very ground on which their city was founded. As they brought with them the commercial genius of their mother country they soon arrived at such a state of opulence by their frugality and indefatigable industry, as occasioned the envy of their poorer neighbours. Thus jealousy on the one hand, and pride naturally arising from great wealth on the other, quickly involved them in a war. The natives justly feared the growing power of the Carthaginians, and the latter feeling their own strength, wanted to throw off the yoke of tribute, which they looked upon as dishonourable and even galling to a free people. The contest was by no means equal. The neighbouring princes were poor and divided by separate interests, the Carthaginians were rich and united in one common cause. Their commerce made them masters of the sea, and their wealth enabled them to bribe one part of their neighbours to fight against the other, and thus by playing one against the other alternately, they reduced all at last to be their tributaries, and extended their dominions near two thousand miles upon that continent. It may be objected that the conduct of the Carthaginians in this case was highly criminal. I grant it: but if we view all those master strokes of policy, and all those splendid conquests which shine so much in history, in their true colours, they will appear to be nothing more than fraud and robbery, gilded over with those pompous appellations. Did not every nation that makes a figure in history rise to empire upon the ruin of their neighbours? did not France acquire her present formidable power, and is she not at this time endeavouring to worm us out of our American settlements by the very same means? but though the

motives are not to be justified, yet the conduct of the Carthaginians upon these occasions, will afford us some very useful and instructive lessons in our present situation.

It is evident that the mighty power of these people was founded in and supported by commerce, and that they owed their vast acquisitions, which extended down both sides of the Mediterranean quite into the main ocean, to a right application of the publick money, and a proper exertion of their naval force. Had they bounded their views to this single point, viz. the support of their commerce and colonies, they either would not have given such terrible umbrage to the Romans, who, as Polybius observes, could brook no equal, or might safely have bid defiance to their utmost efforts. For the immense sums which they squandered away in subsidies to so many foreign princes, and to support such numerous armies of foreign mercenaries, which they constantly kept in pay, to complete the reduction of Spain and Sicily, would have enabled them to cover their coasts with such a fleet as would have secured them from any apprehension of foreign invasions. Besides ... the Roman genius was so little turned for maritime affairs, that at the time of their first breach with Carthage they were not masters of one single ship of war, and were such absolute strangers to the mechanism of a ship, that a Carthaginian galley driven by accident on their coasts gave them the first notion of a model. But the ambition of Carthage grew as her wealth increased; and how difficult a task is it to set bounds to that restless passion! thus by grasping at too much, she lost all. It is not probable therefore that the Romans would ever have attempted to disturb any of the Carthaginian settlements, when the whole coast of Italy lay open to the insults and depredations of so formidable a maritime power. The Romans felt this so sensibly in the beginning of the first Punick war, that they never rested until they had acquired the superiority at sea. It is evident too, that the Romans always maintained that superiority: for if Hannibal could possibly have passed by sea into Italy, so able a general would never have harrassed his troops by that long and seemingly impossible march over the Alps, which cost him above half his army; an expedition which has been, and ever will be, the wonder of all succeeding ages. Nor could Scipio have landed without opposition so very near the city of Carthage itself, if the maritime force of that people had not been at the very lowest ebb.

The Carthaginians were certainly greatly weakened by the long continuance of their first war with the Romans, and that savage and

destructive war with their own mercenaries, which followed immediately after. They ought therefore, in true policy, to have turned their whole attention, during the interval between the first and second Punick wars, to the re-establishment of their marine; but the conquest of Spain was their favourite object, and their finances were too much reduced to be sufficient for both. Thus they expended that money in carrying on a continental war, which would have put their marine on so formidable a footing, as to have enabled them to regain once more the dominion of the sea; and the fatal event of the second Punick war convinced them of the false step they had taken, when it was too late to retrieve it.

I have here pointed out one capital error of the Carthaginians as a maritime power, I mean their engaging in too frequent, and too extensive wars on the continent of Europe, and their neglect of their marine. I shall now mention another, which more than once brought them to the very brink of destruction. This was ... their constantly employing such a vast number of foreign mercenary troops, and not trusting the defence of their country, nay not even Carthage itself wholly, to their own native subjects.

The Carthaginians were so entirely devoted to commerce, that they seem to have looked upon every native employed in their armies as a member lost to the community; and their wealth enabled them to buy whatever number of soldiers they pleased from their neighbouring states in Greece and Africa, who traded (as I may term it) in war as much as the Swiss and Germans do now, and were equally ready to sell the blood and lives of their subjects to the best bidder. From hence they drew such inexhaustible supplies of men, both to form and recruit their armies, whilst their own natives were at leisure to follow the more lucrative occupations of navigation, husbandry, and mechanick trades. For the number of native Carthaginians, which we read of, in any of their armies, was so extremely small as to bear no proportion to that of their foreign mercenaries. This kind of policy, which prevails so generally in all mercantile states, does, I confess, at first sight appear extremely plausible. The Carthaginians, by this method, spared their own people, and purchased all their conquests by the venal blood of foreigners: and, in case of a defeat, they could with great ease and expedition recruit their broken armies with any number of good troops, ready trained up to their hands in military discipline. But alas, these advantages were greatly over-balanced by very fatal inconveniences. The foreign troops were attached to the Carthaginians by no tie, but that of their

pay. Upon the least failure of that, or if they were not humoured in all their licentious demands, they were just as ready to turn their arms against the throats of their masters. Strangers to that heartfelt affection, that enthusiastick love of their country which warms the hearts of free citizens, and fires them with the glorious emulation of fighting to the last drop of blood in defence of their common mother; these sordid hirelings were always ripe for mutiny and sedition, and ever ready to revolt and change sides upon the least prospect of greater advantages.

But a short detail of the calamities, which they drew upon themselves by this mistaken policy, will better show the dangers which attend the admission of foreign mercenaries into any country, where the natives are unaccustomed to the use of arms. A practice which is too apt to prevail in commercial nations.

At the conclusion of the first Punick war the Carthaginians were compelled, by their treaty with the Romans, to evacuate Sicily. Gesco therefore, who then commanded in that island, to prevent the disorders which might be committed by such a multitude of desperate fellows, composed of so many different nations, and so long inured to blood and rapine, sent them over gradually in small bodies, that his countrymen might have time to pay off their arrears, and send them home to their respective countries. But either the lowness of their finances, or the ill timed parsimony of the Carthaginians totally defeated this salutary measure,²⁰⁶ though the wisest that, as their affairs were at that time circumstanced, could possibly have been taken. The Carthaginians deferred their payment until the arrival of the whole body, in hopes of obtaining some abatement in their demands by fairly laying before them the necessities of the publick. But the mercenaries were deaf to every representation and proposal of that nature. They felt their own strength, and saw too plainly the weakness of their masters. As fast as one demand was agreed to, a more unreasonable one was started; and they threatened to do themselves justice by military execution if their exorbitant demands were not immediately complied with. At last, when they were just at the point of an accommodation with their masters, by the mediation and address of Gesco, two desperate ruffians, named Speudius and Mathos,²⁰⁷ raised such a flame amongst this unruly multitude as broke out instantly into the most bloody, and destructive war ever yet recorded in history. The account we have of it from the Greek

historians must strike the most callous breast with horror; and though it was at last happily terminated by the superior conduct of Hamilcar Barcas, the father of the great Hannibal, yet it continued near four years, and left the territories around Carthage a most shocking scene of blood and devastation. Such was, and ever will be the consequence, when a large body of mercenary troops is admitted into the heart of a rich and fertile country, where the bulk of the people are denied the use of arms by the mistaken policy of their governors. For this was actually the case with the Carthaginians, where the total disuse of arms amongst the lower class of people, laid that opulent country open, an easy and tempting prey to every invader. This was another capital error, and consequently another cause which contributed to their ruin.

How must any nation but our own, which with respect to the bulk of the people, lies in the same defenceless situation; how, I say, must they censure the mighty state of Carthage, spreading terror, and giving law to the most distant nations by her powerful fleets, when they see her at the same time trembling, and giving herself up for lost at the landing of any invader in her own territories?

The conduct of that petty prince Agathocles, affords us a striking instance of the defenceless state of the territories of Carthage. The Carthaginians were at that very time masters of all Sicily, except the single city of Syracuse, in which they had cooped up that tyrant both by land and sea. Agathocles, reduced to the last extremity, struck perhaps the boldest stroke ever yet met with in history.²⁰⁸ He was perfectly well acquainted with the weak side of Carthage, and knew that he could meet with little opposition from a people who were strangers to the use of arms, and enervated by a life of ease and plenty. On this defect of their policy he founded his hopes; and the event proved that he was not mistaken in his judgment. He embarked with only thirteen thousand men on board the few ships he had remaining, eluded the vigilance of the Carthaginian fleet by stratagem, landed safely in Africa, plundered and ravaged that rich country up to the very gates of Carthage, which he closely blocked up, and reduced nearly to the situation in which he had left his own Syracuse. Nothing could equal the terror into which the city of Carthage was thrown at that time, but the panick which, in the late rebellion, struck the much larger, and more populous city of London, at the approach of a poor handful of Highlanders, as much inferior even to the small army of Agathocles in number, as they

were in arms and discipline. The success of that able leader compelled the Carthaginians to recall part of their forces out of Sicily to the immediate defence of Carthage itself; and this occasioned the raising of the siege of Syracuse, and ended in the total defeat of their army, and death of their general in that country. Thus Agathocles, by this daring measure, saved his own petty state, and, after a variety of good and ill fortune, concluded a treaty with the Carthaginians, and died at Syracuse at a time when, from a thorough experience of their defenceless state at home, he was preparing for a fresh invasion.

Livy informs us, that this very measure of Agathocles set the precedent which Scipio followed with so much success in the second Punick war, when that able general, by a similar descent in Africa, compelled the Carthaginians to recall Hannibal out of Italy to their immediate assistance, and reduced them to that impotent state, from which they never afterwards were able to recover.²⁰⁹ How successfully the French played the same game upon us, when they obliged us to recall our forces out of Flanders to crush the rebellion, which they had spirited up with that very view, is a fact too recent to need any mention of particulars. How lately did they drive us to the expense, and I may say the ignominy, of fetching over a large body of foreign mercenaries for the immediate defence of this nation, which plumes herself so much upon her power and bravery? How greatly did they cramp all our measures, how much did they confine all our military operations to our own immediate self-defence, and prevent us from sending sufficient succours to our colonies by the perpetual alarm of an invasion?

Though we may in part truly ascribe the ruin of Carthage to the two above-mentioned errors in their policy, yet the cause which was productive of the greatest evils, and consequently the more immediate object of our attention at this dangerous juncture, was party disunion; that bane of every free state, from which our own country has equal reason to apprehend the same direful effects, as the republicks of Greece, Rome, and Carthage experienced formerly.

By all the lights, which we receive from history, the state of Carthage was divided into two opposite factions; the Hannonian and the Barcan, so denominated from the respective leaders, who were heads of the two most powerful families in Carthage. The Hannonian family seems to have made the greatest figure in the senate; the Barcan in the field. Both were strongly

actuated by ambition, but ambition of a different kind. The Barcan family seems to have had no other object in view but the glory of their country, and were always ready to give up their private animosities, and even their passion for military glory to the publick good. The Hannonian family acted from quite opposite principles, constantly aiming at one point; the supporting themselves in power, and that only. Ever jealous of the glory acquired by the Barcan family, they perpetually thwarted every measure proposed from that quarter, and were equally ready to sacrifice the honour and real interest of their country to that selfish view. In short, the one family seems to have produced a race of heroes, the other of ambitious statesmen.

The chiefs of these two jarring families, best known to us in history, were Hanno and Hamilcar Barcas, who was succeeded by his son Hannibal, that terror of the Romans. The opposition between these two parties was so flagrant, that Appian does not scruple to call the party of Hanno, the Roman faction;²¹⁰ and that of Barcas, the popular, or the Carthaginian, from the different interests which each party espoused.

The first instance, which we meet with in history, of the enmity subsisting between the heads of these factions, was in that destructive war with the Mercenaries, from which I have made this explanatory digression.

Hanno was first sent with a powerful, and well provided army against these mutinous desperadoes; but he knew little of his trade, and made perpetual blunders. Polybius,²¹¹ who treats his character, as a soldier, with the utmost contempt, informs us, that he suffered himself to be surprised, a great part of his fine army to be cut to pieces, and his camp taken, with all the military stores, engines, and all the other apparatus of war.

The Carthaginians, terrified and distressed by the bad conduct of their general, were now compelled, by the necessity of their affairs, to restore Hamilcar to the chief command of their forces, from which he must have been excluded before by the influence of the Hannonian faction. That able commander with his small army (for his whole force amounted to no more than ten thousand men) quickly changed the face of the war, defeated Spendius in two pitched battles, and pushed every advantage to the utmost, which the incapacity of the rebel-generals threw in his way. Sensible that he was too weak alone to cope with the united forces of the rebels (which amounted to seventy thousand men) he ordered Hanno (who had still influence enough to procure himself to be continued in the command of a

separate body) to join him, that they might finish this execrable war by one decisive action.²¹² After they were joined, the Carthaginians soon felt the fatal effects of disunion between their generals. No plan could now be followed, no measure could be agreed on;²¹³ and the disagreement between these two leading men arose to such a height at last, that they not only let slip every opportunity of annoying the enemy, but gave them many advantages against themselves, which they could not otherwise have hoped for. The Carthaginians,²¹⁴ sensible of their error, and knowing the very different abilities of the two generals, yet willing to avoid the imputation of partiality, empowered the army to decide which of the two they judged most proper for their general, as they were determined to continue only one of them in the command. The decision of the army was,²¹⁵ that Hamilcar should take the supreme command, and that Hanno should depart the camp. A convincing proof that they threw the whole blame of that disunion, and the ill-success, which was the consequence of it, entirely upon the envy and jealousy of Hanno. One Hannibal, a man more tractable, and more agreeable to Hamilcar, was sent in his room. Union was restored, and the happy effects which attended it were quickly visible. Hamilcar now pushed on the war with his usual vigilance and activity, and soon convinced the generals of the rebels how greatly he was their master in the art of war. He harrassed them perpetually, and, like a skilful gamester,²¹⁶ (as Polybius terms him) drew them artfully every day into his snares, and obliged them to raise the siege of Carthage. At last he cooped up Spendius with his army in so disadvantageous a place, that he reduced them to such an extremity of famine as to devour one another, and compelled them to surrender at discretion, though they were upwards of forty thousand effective men.... The army of Hamilcar, which was much inferior to that of Spendius in number, was composed partly of mercenaries and deserters, partly of the city militia, both horse and foot (troops which the enemies to the militia-bill would have called raw and undisciplined, and treated as useless) of which the major part of his army consisted.²¹⁷ The rebel army was composed chiefly of brave and experienced veterans, trained up by Hamilcar himself in Sicily during the late war with the Romans, whose courage was heightened by despair. It is worthy of our observation therefore, that these very men who, under the conduct of Hamilcar, had been a terror to the Romans, and given them so many blows in Sicily towards the latter end of

the first Punick war, should yet be so little able to cope with an army so much inferior in number, and composed in a great measure of city militia only, when commanded by the same general. Polybius,²¹⁸ who esteems Hamilcar by far the greatest captain of that age, observes, that though the rebels were by no means inferior to the Carthaginian troops in resolution and bravery, yet they were frequently beaten by Hamilcar by mere dint of generalship. Upon this occasion he cannot help remarking the vast superiority which judicious skill and ability of generalship has over long military practice,²¹⁹ where this so essentially necessary skill and judgement is wanting. It might have been thought unpardonable in me, if I had omitted this just remark of Polybius, since it has been so lately verified by his Prussian majesty in those masterly strokes of generalship, which are the present admiration of Europe. Hamilcar, after the destruction of Spendius and his army, immediately blocked up Mathos, with the remaining corps of the rebels, in the city of Tunes. Hannibal, with the forces under his command, took post on that side of the city which looked towards Carthage. Hamilcar prepared to make his attack on the side which was directly opposite; but the conduct of Hannibal, when left to himself, was the direct contrast to that of Hamilcar, and proves undeniably, that the whole merit of their former success was entirely owing to that abler general. Hannibal, who seems to have been little acquainted with the true genius of those daring veterans, lay secure, and careless in his camp, neglected his out-guards, and treated the enemy with contempt, as a people already conquered. But Mathos observing the negligence and security of Hannibal,²²⁰ and well knowing that he had not Hamilcar to deal with, made a sudden and resolute sally, forced Hannibal intrenchments, put great numbers of his men to the sword, took Hannibal himself, with several other persons of distinction prisoners, and pillaged his camp. This daring measure was so well concerted, and executed with so much rapidity, that Mathos, who made good use of his time, had done his business before Hamilcar, who lay encamped at some distance, was in the least apprized of his colleague's misfortune. Mathos fastened Hannibal, whilst alive, on the same gibbet to which Hamilcar had lately nailed the body of Spendius: A terrible, but just reward for the shameful carelessness in a commanding officer, who had sacrificed the lives of such a number of his fellow citizens by his own indolence and presumptuous folly. For Mathos crucified thirty of the first nobility of Carthage, who attended Hannibal in this expedition. A

commander who is surprised in the night-time, though guilty of an egregious fault, may yet plead something in excuse; but, in point of discipline, for a general to be surprised by an enemy just under his nose in open daylight, and caught in a state of wanton security, from an overweening presumption on his own strength, is a crime of so capital a nature as to admit neither of alleviation nor pardon. This dreadful and unexpected blow threw Carthage into the utmost consternation, and obliged Hamilcar to draw off his part of the army to a considerable distance from Tunes. Hanno had again influence enough to procure the command, which he was compelled before by the army to give up to Hamilcar. But the Carthaginians, sensible of the fatal consequences of disunion between the two generals, especially at such a desperate crisis, sent thirty of the most respectable amongst the senators to procure a thorough reconciliation between Hamilcar and Hanno before they proceeded upon any operation;^{[221](#)} which they effected at last, though not without difficulty. Pleased with this happy event, the Carthaginians (as their last, and utmost effort) sent every man in Carthage,^{[222](#)} who was able to bear arms, to re-enforce Hamilcar, on whose superior abilities they placed their whole dependance. Hamilcar now resumed his operations, and, as he was no longer thwarted by Hanno, soon reduced Mathos to the necessity of putting the whole issue of the war upon one decisive action, in which the Carthaginians were most completely victors by the exquisite disposition and conduct of Hamilcar.

I hope the enemies to a militia will at least allow these new levies, who composed by far the greatest part of Hamilcar's army upon this occasion, to be raw, undisciplined, and ignorant of the use of arms; epithets which they bestow so plentifully upon a militia. Yet that able commander, with an army consisting chiefly of this kind of men, totally destroyed an army of desperate veterans, took their general, and all who escaped the slaughter prisoners, and put an end to the most ruinous, and most inhuman war ever yet mentioned in history. These new levies had courage (a quality never yet, I believe, disputed to the British commonality) and were to fight *pro aris et focus*, for whatever was dear and valuable to a people; and Hamilcar, who well knew how to make the proper use of these dispositions of his countrymen, was master of those abilities which Mathos wanted. Of such infinite advantage is it to an army to have a commander superior to the enemy in the art of generalship; an advantage which frequently supplies a deficiency even in the goodness of troops, as well as in numbers.

The enmity of Hanno did not expire with Hamilcar, who fell gloriously in the service of his country, in Spain some years after. Hannibal the eldest son, and a son worthy of so heroick a father, immediately became the object of his jealousy and hatred. For when Asdrubal (son-in-law to Hamilcar) had been appointed to the command of the army in Spain, after the death of that general, he desired that Hannibal, at that time but twenty-two years of age, might be sent to Spain to be trained up under him in the art of war. Hanno opposed this with the utmost virulence in a rancorous speech (made for him by Livy) fraught with the most infamous insinuations against Asdrubal, and a strong charge of ambition against the Barcan family. But his malice, and the true reason of his opposition, varnished over with a specious concern for the publick welfare, were so easily seen through, that he was not able to carry a point which he so much wished for.

Asdrubal not long after being assassinated by a Gaul,^{[223](#)} in revenge for some injury he had received, the army immediately appointed Hannibal to the command; and sending advice to Carthage of what they had done, the senate was assembled, who unanimously confirmed the election then made by the soldiers.^{[224](#)} Hannibal in a short time reduced all that part of Spain which lay between New Carthage and the river Iberus, except the city of Saguntum, which was in alliance with the Romans. But as he inherited his father's hatred to the Romans, for their infamous behaviour to his country at the conclusion of the war with the mercenaries,^{[225](#)} he made great preparations for the siege of Saguntum. The Romans (according to Polybius) receiving intelligence of his design,^{[226](#)} sent ambassadors to him at New Carthage, who warned him of the consequences of either attacking the Saguntines, or crossing the Iberus, which, by the treaty with Asdrubal, had been made the boundary of the Carthaginian and Roman dominions in that country. Hannibal acknowledged his resolution to proceed against Saguntum, but the reasons he assigned for his conduct were so unsatisfactory to the ambassadors, that they crossed over to Carthage to know the resolution of their senate upon that subject. Hannibal in the mean time, according to the same author,^{[227](#)} sent advice to Carthage of this embassy, and desired instructions how to act, complaining heavily that the Saguntines depending upon their alliance with the Romans, committed frequent depredations upon the Carthaginian subjects.

We may conclude that the ambassadors met with as disagreeable a reception from the Carthaginian senate as they had done from Hannibal, and that he received orders from Carthage to proceed in his intended expedition. For Polybius,^{[228](#)} reflecting upon some writers, who pretended to relate what passed in the Roman senate when the news arrived of the capture of Saguntum, and even inserted the debates which arose when the question was put, whether, or no, war should be declared against Carthage, treats their whole accounts as absurd and fictitious. “For how, says he, with indignation, could it possibly be, that the Romans, who had denounced war the year before at Carthage, if Hannibal should invade the Saguntine territories, should now after that city was taken by storm assemble to deliberate, whether war should be commenced against the Carthaginians or not.” Now as this declaration of war was conditional, and not to take place unless Hannibal should attack the Saguntines, it must have been made before that event happened, and consequently must be referred to the embassy above-mentioned. And as Hannibal undertook the siege of Saguntum notwithstanding the Roman menaces, he undoubtedly acted by orders from the Carthaginian senate.

When the Romans received the news of the destruction of Saguntum, they dispatched another embassy to Carthage (as Polybius relates) with the utmost expedition;^{[229](#)} their orders were to insist that Hannibal and all who advised him to commit hostilities against the Saguntines should be delivered up to the Romans, and in case of a refusal, to declare immediate war. Their demand was received by the Carthaginian senate with the utmost indignation, and one of the senators, who was appointed to speak in the name of the rest, begun in an artful speech to recriminate upon the Romans, and offered to prove, that the Saguntines were not allied to the Romans when the peace was made between the two nations, and consequently could not be included in the treaty. But the Romans cut the affair short, and told them that they did not come there to dispute, but only to insist upon a categorical answer to this plain question: whether they would give up the authors of the hostilities, which would convince the world that they had no share in the destruction of Saguntum, but that Hannibal had done it without their authority; or, whether by protecting them, they chose to confirm the Romans in the belief, that Hannibal had acted with their approbation? As their demand of Hannibal was refused, war was declared by the Romans,^{[230](#)}

and accepted with equal alacrity and fierceness by the majority of the Carthaginian senate.

Livy affirms that the first embassy was decreed by the Roman senate,^{[231](#)} but not sent until Hannibal had actually invested Saguntum, and varies from Polybius in his relation of the particulars. For according to Livy,^{[232](#)} Hannibal received intelligence of the Roman embassy, but he sent them word, that he had other business upon his hands at that time than to give audience to ambassadors, and that he wrote at the same time to his friends of the Barcan faction to exert themselves, and prevent the other party from carrying any point in favour of the Romans.

The ambassadors, thus denied admittance by Hannibal, repaired to Carthage and laid their demands before the senate. Upon this occasion Livy introduces Hanno inveighing bitterly in a formal harangue against the sending Hannibal into Spain, a measure which he foretells, must terminate in the utter destruction of Carthage.^{[233](#)} And after testifying his joy for the death of his father Hamilcar, whom he acknowledges he most cordially hated, as he did the whole Barcan family, whom he terms the fire-brands of the state, he advises them to give up Hannibal, and make full satisfaction for the injury then done to the Saguntines. When Hanno had done speaking, there was no occasion, as Livy observes, for a reply.^{[234](#)} For almost all the senate were so entirely in the interest of Hannibal, that they accused Hanno of declaiming against him, with more bitterness and rancour than even the Roman ambassadors, who were dismissed with this short answer, “that not Hannibal, but the Saguntines, were the authors of the war, and that the Romans treated them with great injustice, if they preferred the friendship of the Saguntines before that of their most ancient allies the Carthaginians.” Livy’s account of the second embassy, which followed the destruction of Saguntum, differs so very little from that of Polybius, both as to the question put by the Romans, the answer given by the Carthaginian senate, and the declaration of war which was the consequence, that it is needless to repeat it.^{[235](#)}

If what Hanno said in the speech above-mentioned, had been his real sentiments from any consciousness of the superior power of the Romans, and the imprudence of engaging in a war of that consequence before his country had recovered her former strength, he would have acted upon principles worthy of an honest and prudent patriot. For Polybius,^{[236](#)} after

enumerating the superior excellencies of Hannibal as a general, is strongly of opinion, that if he had begun with other nations, and left the Romans for his last enterprise, he would certainly have succeeded in whatever he had attempted against them, but he miscarried by attacking those first, whom he ought to have reserved for his last enterprise. The subsequent behaviour of Hanno, during the whole time that Italy was the seat of war, evidently proves, that his opposition to this war proceeded entirely from party motives, and his personal hatred to the Barcan family, consequently is by no means to be ascribed to any regard for the true interest of his country. Appian informs us,^{[237](#)} that when Fabius had greatly streightened Hannibal by his cautious conduct, the Carthaginian general sent a pressing message to Carthage for a supply both of men and money. But according to that author, he was flatly refused, and could obtain neither, by the influence of his enemies, who were averse to that war, and cavilled perpetually at every enterprise which Hannibal undertook. Livy,^{[238](#)} in his relation of the account, which Hannibal sent to the Carthaginian senate of his glorious victory at Cannæ by his brother Mago, with the demand for a large re-enforcement of men as well as money, introduces Hanno (in a speech of his own which he gives us on that occasion) strongly opposing that motion, and persisting still in his former sentiments in respect both to the war and to Hannibal. But the Carthaginians, elated with that victory, which was the greatest blow the Romans ever received in the field since the foundation of their republick, and thoroughly sensible (as Livy informs us) of the enmity which Hanno and his faction bore to the Barcan family, immediately decreed a supply of forty thousand Numidians, and twenty-four thousand foot and horse to be immediately levied in Spain, besides elephants, and a very large sum of money. Though Hanno at that time had not weight enough in the senate to prevent that decree, yet he had influence enough by his intrigues to retard the supply then voted, and not only to get it reduced to twelve thousand foot and twenty-five hundred horse, but even to procure that small number to be sent to Spain upon a different service. That Hanno was the true cause of this cruel disappointment, and the fatal consequences which attended it, is equally evident from the same historian. For Livy tells us,^{[239](#)} “that when orders were sent to him by the Carthaginian senate to quit Italy, and hasten to the immediate defence of his own country, Hannibal inveighed bitterly against the malice of his enemies, who now openly and avowedly recalled him from Italy, out of which they had long before endeavoured to drag him,

when they tied up his hands by constantly refusing him any supply either of men or money. That Hannibal affirmed he was not conquered by the Romans, whom he had so often defeated, but by the calumny and envy of the opposite faction in the senate. That Scipio would not have so much reason to plume himself upon the ignominy of his return, as his enemy Hanno, who was so implacably bent upon the destruction of the Barcan family, that since he was not able to crush it by any other means, he had at last accomplished it, though by the ruin of Carthage itself.”

Had that large supply been sent to Hannibal with the same unanimity and despatch with which it was voted, it is more than probable, that so consummate a general would have soon been master of Rome, and transferred the empire of the world to Carthage. For the Romans were so exhausted after the terrible defeat at Cannæ, that Livy is of opinion, that Hannibal would have given the finishing blow to that republick, if he had marched directly to Rome from the field of battle, as he was advised to do by his general of horse Maherbal.²⁴⁰ That many of the nobility upon the first news of this fatal event, were in actual consultation about the means of quitting Italy, and looking out for a settlement in some other part of the world, and he affirms, that the safety both of the city and empire of Rome must be attributed (as it was then firmly believed at Rome) to the delay of that single day only, on which Maherbal gave that advice to Hannibal. Appian confirms the distressful situation of the Roman affairs at that juncture, and informs us, that including the slaughter at Cannæ, in which the Romans had lost most of their ablest officers, Hannibal had put to the sword two hundred and fifty thousand of their best troops in the space of two years only, from the beginning of the second Punick war inclusive.²⁴¹ It is easy, therefore, to imagine how little able the Roman armies, consisting chiefly of new levies, would have been to face such a commander as Hannibal, when supported by the promised re-enforcement of sixty-four thousand fresh men, besides money and elephants in proportion. For Hannibal, though deprived of all supplies from Carthage by the malice of the Hannonian faction, maintained his ground above fourteen years more after his victory at Cannæ, in spite of the utmost efforts of the Romans. A truth which Livy himself acknowledges with admiration and astonishment at his superior military capacity. From that period therefore, after the battle of Cannæ, when Hannibal was first disappointed of the promised supplies from Carthage, we ought properly to date the fall of that republick, which

must be wholly imputed to the inveterate malice of the profligate Hanno and his impious faction, who were determined, as Hannibal observed before, to ruin the contrary party, though by means which must be inevitably attended with the destruction of their country. Appian insinuates,²⁴² that Hannibal first engaged in this war more from the importunity of his friends, than even his own passion for military glory and hereditary hatred to the Romans. For Hanno and his faction (as Appian tells us) no longer dreading the power of Hamilcar and Asdrubal his son-in-law,²⁴³ and holding Hannibal extremely cheap upon account of his youth, began to persecute and oppress the Barcan party with so much rage and hatred, that the latter were obliged by letter to implore assistance from Hannibal, and to assure him that his own interest and safety was inseparable from theirs. Hannibal (as Appian adds) was conscious of the truth of this remark, and well knew that the blows, which seemed directed at his friends, were levelled in reality at his own head, and judged that a war with the Romans, which would be highly agreeable to the generality of his countrymen, might prove the surest means of counter-working his enemies, and preserving himself and his friends from the fury of a pliant and fickle populace, already inflamed against his party by the intrigues of Hanno. He concluded therefore, according to Appian, that a war with so formidable and dangerous a power, would divert the Carthaginians from all inquiries relative to his friends, and oblige them to attend wholly to an affair, which was of the last importance to their country. Should Appian's account of the cause of this war be admitted as true, it would be a yet stronger proof of the calamitous effects of party disunion; though it would by no means excuse Hannibal. For Hanno and his party would be equally culpable for driving a man of Hannibal's abilities to such a desperate measure, purely to screen himself and his party from their malice and power. But the blame for not supporting Hannibal after the battle of Cannæ, when such support would have enabled him to crush that power, which by their means recovered strength sufficient to subvert their own country, must be thrown entirely upon Hanno and his party. It was a crime of the blackest dye, and an act of the highest treason against their country, and another terrible proof of the fatal effects of party disunion. Nor was this evil peculiar to Carthage only, but was equally common in the Roman and Grecian republics. Nay, could we trace all our publick measures up to their first secret springs of action, I do not doubt (notwithstanding the plausible reasons which might have been

given to the publick to palliate such measures) but we should find our own country rashly engaged in wars detrimental to her true interests, or obliged to submit to a disadvantageous peace, just as either was conducive to the private interest of the prevailing party. Will not our own annals furnish us with some memorable instances of the truth of this assertion too recent to be denied? was not the treatment which the great duke of Marlborough received from Bolingbroke, the English Hanno, parallel to that which the victorious Hannibal met with from the Carthaginian, after the battle of Cannæ? did not Bolingbroke, from the worst of party motives, displace that ever victorious general, desert our allies, and sacrifice the brave and faithful Catalans, and the city of Barcelona, in at least as shameful a manner as the Romans did their unhappy friends at Saguntum? did not the same minister by the fatal treaty of Utrecht, rob the nation of all those advantages, which she had reason to hope for from a long and successful war? did he not by the same treaty, give our mortal enemy France time to retrieve her affairs, and recover from that low state to which the duke of Marlborough had reduced her, and even to arrive at that power, at present so terrible to us and to all Europe?

To what can we attribute the late ill conducted war with Spain, but to the ambition of party. How was the nation stunned with the noise of Spanish depredations from the press! how loudly did the same outcry resound in parliament! yet when the leaders of that powerful opposition had carried their point by their popular clamours; when they had pushed the nation into that war; when they had drove an overgrown minister from the helm, and nestled themselves in power, how quickly did they turn their backs upon the honest men of their party, who refused to concur in their measures! how soon did they convince the nation, by screening that very minister who had been so many years the object of their resentment, and by carrying on their own war (as I may term it) with the same or greater lukewarmness than what they had so lately exclaimed against in the same minister. They convinced, I say, the whole nation, that the welfare of the publick, and the protection of our trade, had not the least share in the real motives of their conduct.

But as the Carthaginian history, during this period, is intimately blended with the Roman, to avoid repetition, I am obliged to defer my farther remarks upon the conduct of this people, until I speak of the difference between the civil and military polity, and manners of both those nations.

CHAPTER V.

OF ROME.

THOUGH there is a concurrence of several causes which bring on the ruin of a state, yet where luxury prevails, that parent of all our fantastick imaginary wants, ever craving and ever unsatisfied, we may justly assign it as the leading cause: since it ever was and ever will be the most baneful to publick virtue. For as luxury is contagious from its very nature, it will gradually descend from the highest to the lowest ranks, until it has ultimately infected a whole people. The evils arising from luxury have not been peculiar to this or that nation, but equally fatal to all wherever it was admitted. Political philosophy lays this down as a fundamental and incontestable maxim,²⁴⁴ that all the most flourishing states owed their ruin, sooner or later, to the effects of luxury; and all history, from the origin of mankind, confirms this truth by the evidence of facts to the highest degree of demonstration. In the great despotick monarchies it produced avarice, dissipation, rapaciousness, oppression, perpetual factions amongst the great, whilst each endeavoured to engross the favour of the prince wholly to himself; venality, and a contempt of all law and discipline both in the military and civil departments. Whilst the people, following the pernicious example of their superiors, contracted such a dastardly effeminacy, joined to an utter inability to support the fatigues of war, as quickly threw them into the hands of the first resolute invader. Thus the Assyrian empire sunk under the arms of Cyrus with his poor but hardy Persians. The extensive and opulent empire of Persia fell an easy conquest to Alexander and a handful of Macedonians; and the Macedonian empire, when enervated by the luxury of Asia, was compelled to receive the yoke of the victorious Romans.

Luxury, when introduced into free states, and suffered to be diffused without controul through the body of the people, was ever productive of that degeneracy of manners, which extinguished publick virtue, and put a final period to liberty. For as the incessant demands of luxury quickly induced necessity, that necessity kept human invention perpetually on the rack to find out ways and means to supply the demands of luxury. Hence the lower classes at first sold their suffrages in privacy and with caution; but

as luxury increased, and the manners of the people grew daily more corrupt, they openly set them up to sale to the best bidder. Hence too the ambitious amongst the higher classes, whose superior wealth was frequently their only qualification, first purchased the most lucrative posts in the state by this infamous kind of traffick, and then maintained themselves in power by that additional fund for corruption, which their employments supplied, until they had undone those they had first corrupted.

But of all the ancient republicks, Rome in the last period of her freedom was the scene where all the inordinate passions of mankind operated most powerfully and with the greatest latitude. There we see luxury, ambition, faction, pride, revenge, selfishness, a total disregard to the publick good, and an universal dissoluteness of manners, first make them ripe for, and then complete their destruction. Consequently that period, by showing us more striking examples, will afford us more useful lessons than any other part of their history.

Rome, once the mighty mistress of the universe, owed her rise, according to Dionysius of Halicarnassus, the most curious and most exact inquirer into the Roman antiquities, to a small colony of the Albans under the conduct of Romulus, the supposed grandson of Numitor king of Alba. That the Albans derived their origin from the Greeks seems highly probable from the nature of the Alban and Roman monarchical government, which appears to be plainly copied from Lycurgus.

The government first instituted by Romulus, the founder of this extraordinary empire, was that perfect sort, as it is termed by Dionysius and Polybius, which consisted of a due admixture of the regal, aristocratick, and democratick powers. As this great man received the crown as a reward for his superior merit, and held it by the best of all titles, the willing and unanimous choice of a free people; and as he is universally allowed to be the sole institutor of their first form of government, I cannot help ranking him amongst the most celebrated lawgivers and heroes of antiquity. Romulus's plan of government, though formed upon the model of Lycurgus, was evidently, in some respects, superior to the Spartan. For the executive power in the Roman government was lodged in one man only; the number of the senators was much greater, and though the whole body of the Romans was formed into one regular militia, yet the lowest class of the people were directed to apply themselves to agriculture, grazing, and other

lucrative employments; a practice wholly prohibited to the free Spartans. The great employments of the state were solely confined to the Patricians, or aristocratick part; but the Plebeians, or commonalty, had in return the power of choosing magistrates, enacting laws, and determining about all wars when proposed by the king. But still their decrees were not final, for the concurrence of the senate was absolutely necessary to give a sanction to whatever the people had determined.

Whether the Romans would have continued the regal power in their founder's family by hereditary succession, cannot possibly be determined, because, when Romulus was put to death by the Patricians for aiming at more power than was consistent with their limited monarchy, he left no children. This however is certain, that their monarchy continued to be elective, and was attended with those disorders which are the usual effects of that capital error in politicks, until the usurpation of Tarquinius Superbus.

After the death of Romulus, Numa, a man of a very different genius, was invited to the throne by the unanimous consent of the whole body of the Romans. This worthy prince reclaimed his subjects from their savage fondness for war and plunder, and taught them the arts of peace, and the happiness of civil and social life, by instructing them in the great duties of religion, or piety towards their gods, and the laws of justice and humanity, which contained their duty towards their fellow creatures. The long reign of this wise and good prince was the most remarkable, and the most happy period of time Rome ever knew from her foundation to her dissolution. For during the whole term of forty-three years, which was the extent of his reign, the harmony of the Roman state was neither interrupted by any civil dissension at home, nor the happiness of the people disturbed by any foreign war or invasion. After the death of Numa, who died universally lamented as the father of the people, Tullus Hostilius, a man of real merit, was legally elected king, but, after a victorious reign of thirty-two years, was destroyed with his whole family by lightning, according to some authors, but, according to others, was murdered by Ancus Marcius, grandson to Numa by his only daughter, who looked upon his own right to the crown as prior to Tullus, or his family. Ancus Marcius however received the crown by a free election of the people, and died a natural death after a reign of twenty-four years, in which he restored such of the religious institutions of his grandfather Numa as had been neglected during the reign

of his predecessor. He greatly enlarged the city of Rome itself, and made it a seaport by fortifying the haven at the mouth of the river Tiber.

Lucius Tarquinius, a man of Greek extraction by his father's side, and admitted to the privilege of a Roman citizen under the reign of Ancus Marcius, was raised to the throne for his uncommon merit, and showed himself worthy of that high trust, which was reposed in him by the Romans. He increased the number of the senators to three hundred, greatly enlarged their territories, and beautified the city; and, after an illustrious reign of thirty-eight years, was assassinated in his palace by the contrivance of the two sons of Ancus Marcius, who hoped after his death to recover the kingdom, which their father had been possessed of. But their scheme was far from succeeding, for Tarquinius was so well beloved by his people, that the persons who committed the murder, were executed, and the sons of Ancus banished, and their estates confiscated. Tullius Servius, who had married the daughter of Tarquinius, succeeded to the crown by the artful management of his mother-in-law, and by the favour of the people, though without the concurrence either of the senate or Patricians. Tullius was certainly a man of real merit, and, as I think, superior in point of abilities to all the Roman kings, Romulus alone excepted. But as he seemed to affect a democracy, and was chiefly supported by the people, he was always disagreeable to the Patricians, who looked upon his advancement to the crown as an illegal intrusion. But as he did most signal services to his country, during a glorious reign of four and forty years, I cannot help taking notice of some of his institutions, without the knowledge of which it is hardly possible to form a perfect idea of the Roman constitution.

Tullius ordered all the Romans to register their names and ages, with those of their parents, wives and children, and the place of their abode, either in the city or the country. At the same time he enjoined them to give in upon oath a just valuation of their effects, on pain of being whipped and sold for slaves if they failed in registering all these particulars. From this register he formed his plan for a regular and general militia, which was invariably followed by the Romans, until the time of Marius. To effect this he divided the whole body of the citizens into six classes. The first class consisted of those whose possessions amounted to a hundred *minæ*.²⁴⁵ These he armed in the completest manner, and divided into eighty centuries; forty of which, composed of the younger men, were appointed to take the field in time of war; the other forty were assigned for the defence of the

city. To these eighty centuries of heavy armed foot he added eighteen centuries of horse, selected out of those who had the largest estates, and were of distinguished birth. Thus the first class contained ninety-eight centuries. The second, third, and fourth classes consisted each of twenty centuries only, and were composed of citizens, whose effects were estimated at seventy-five, fifty, and five and twenty *minæ*; and their arms were lighter according to their respective classes. To the second class he added two centuries of armourers and axe-men. To the fourth class two centuries of trumpeters and blowers on the horn, which contained the martial musick of the army. The fifth class consisted of those who were worth twelve *minæ* and a half, which he divided into thirty centuries, armed with darts and slings only, and were properly irregulars. The sixth class, which was by much the most numerous, was comprehended in one century only, and consisted of the poorest citizens, who were exempted from all kind of taxes, as well as all service in the army.

By this wise disposition the burthen of the war fell chiefly upon those who were best able to support it. Thus, for instance, if he wanted to raise twenty thousand men, he divided that number amongst the centuries of the first five classes, and ordered each century to furnish its respective quota. He then calculated the sum necessary for the support of the war, which he divided in the same manner amongst the centuries, and ordered every man to pay in proportion to his possessions. Hence the rich, who were fewer in number, but divided into more centuries, were not only obliged to serve oftener, but to pay greater taxes. For Tullius thought it just, that they who had the greatest property at stake should bear the greatest share of the burden, both in their persons and fortunes: as he judged it equitable, that the poor should be exempted from taxes, because they were in want of the necessaries of life; and from the service; because the Roman soldiers served at that time at their own expense; a custom which continued long after. For the Roman soldiers received no pay, as Livy informs us,²⁴⁶ until the three hundred and forty-eighth year from the foundation of the city.... As the rich, by this regulation, were subjected to the greatest share of the expense and danger, Tullius made them an ample recompense by throwing the chief power of the government into their hands, which he effected by the following scheme, too artful for the penetration of the common people.

By the fundamental constitution of the Romans, the electing magistrates, both civil and military, the enacting or repealing laws, and the declaring

war, or concluding peace, were all determined by the suffrages of the people. But as the people voted by their *curiæ*,²⁴⁷ into ten of which every tribe was divided, the meanest citizen had an equal vote with the greatest: consequently as the poor were much more numerous than the rich, they carried every point by a sure majority. Tullius altered this method, assembled the people, and took their votes by centuries, not by *curiæ*. This artful measure turned the scale, and transferred the majority to the rich. For as the votes of the first class were first taken, the votes of that class, which contained ninety-eight centuries, if unanimous, always constituted a majority of three votes, which decided the question without taking the votes of the five succeeding classes, as they were in that case wholly useless.

Tullius had married his two daughters to Tarquinius and Aruns, the grandsons of his predecessor, whose guardianship he had undertaken during their minority. But what tie is strong enough to restrain ambition! his younger daughter Tullia, the most ambitious, and most detestable of her sex, unable to prevail upon her husband Aruns to join in deposing her father, applied to her brother-in-law Tarquinius, whose temper was congenial with her own, and offered to be his wife if he would assert his just right, as she termed it, and attempt to supplant her father. The offer was accepted, and the incestuous match agreed upon, which was soon after completed by the death of her husband and sister, who were privately despatched, that there might be no obstacle remaining. Tarquinius, now the worthy husband of such a wife, attempted in the senate to procure the deposition of Tullius, but failing in his design, at the instigation of his impious wife, he procured the old king to be openly assassinated in the street before his palace, and the unnatural Tullia drove her chariot in triumph over the body of her murdered father. By this complicated scene of adultery, murder, and parricide, Tarquin, surnamed the Proud, forced his way to the throne, and to usurpation added the most execrable and avowed tyranny. The Patricians,²⁴⁸ who had favoured his usurpation, either from their hatred to Tullius and the Plebeians, or from the hopes of sharing in the government, with which, according to Dionysius, they had been privately allured, were the first who felt the bloody effects of his arbitrary temper. Not only the friends of Tullius, and those whom he suspected as uneasy under his usurpation, but all who were distinguished by their superior wealth fell a sacrifice to his suspicion or avarice. All such were accused, by his profligate emissaries, of many fictitious crimes, but particularly of a

conspiracy against his person; the common pretence of all tyrants. As the tyrant himself sat as judge, all defence was useless. Some received sentence of death, some of banishment, and the estates of both were alike confiscated. The greater number of those that were accused, knowing the true motives of the tyrant's conduct, and despairing of safety, voluntarily left the city; but some of the greatest note were privately murdered by his orders, whose bodies could never be found. When he had sufficiently thinned the senate by the death, or banishment of its most valuable members, he filled up the vacant seats with his own creatures. But as he allowed nothing to be proposed or done there, but in conformity to his orders, he reduced it to an empty form, without the least shadow of power. The Plebeians, who beheld with pleasure the sufferings of the Patricians, which they esteemed a just punishment for their behaviour under the reign of Tullius, were quickly treated with much greater severity.²⁴⁹ For the tyrant not only abolished all the laws which Tullius had established to secure them against the oppressions of the Patricians, but loaded them with ruinous taxes, and prohibited all their publick religious assemblies, that they might have no opportunity of meeting to form secret conspiracies. Proceeding then upon the constant maxim of all tyrants, that idleness in the people is the parent of sedition, he exhausted them so much by the slavish drudgery, in which he kept them constantly employed at the publick works, that the Patricians rejoiced in their turn at the heavier miseries of the Plebeians, whilst neither of them endeavoured to put a period to their common calamities. After the Romans had groaned five and twenty years under this cruel and ignominious bondage, the rape committed by Sextus, the eldest son of Tarquin, upon Lucretia, the wife of Collatinus, an eminent Patrician, and near relation of the Tarquin family, produced a coalition of both orders, which ended in the expulsion of Tarquin and his sons, and a solemn abjuration of monarchical government.

The tyranny of Tarquin had made the very name of king so odious to the Romans in general, that the Patricians, who were the chief conductors of this revolution, found it no difficult matter to establish an aristocracy upon the ruins of monarchy.²⁵⁰ Two magistrates were appointed, termed consuls, vested with the regal power, whose office was annual and elective. The senate was filled up out of the most eminent of the Plebeians, after they had first been created Patricians, and the people restored to their right of holding assemblies, of giving their votes and doing whatever they were entitled to

by former customs. But the power of the people was rather nominal than real. For though the consuls were annually elected by the suffrages of the people, a privilege which carried the appearance of a democracy, yet as the votes were taken by centuries, not by tribes, the Patricians were generally masters of the election. It is remarkable that, after the expulsion of Tarquin, Dionysius constantly terms the new government an aristocracy. It evidently appears too through the whole remaining part of his history, that there was a selfish and haughty faction amongst the Patricians, who affected a tyrannical oligarchy, and aimed at reducing the Plebeians to a state of servitude. Valerius, surnamed Poplicola, the most humane patriot of all those who were concerned in banishing the Tarquins, introduced some beneficent laws, which, according to Dionysius, gave great relief to the Plebeians. For by one he made it capital for any person to exercise any magistracy over the Romans, unless that office should be received from the people: as he ordered by another, that no Roman should be punished without a legal trial; and that if any Roman should be condemned by any magistrate to be fined, whipped, or put to death, the condemned person might appeal from the sentence of that magistrate to the people, and should be liable to no punishment until his fate had been determined by their suffrages. A plain proof that the Plebeians until that time laboured under grievances not very consistent with their pretended liberty. Another proof may be drawn from the wretched state of the Plebeians, under the cruel oppressions arising from the avarice and extortions of the Patricians, which first gave birth to those perpetual seditions, which fill the history of that republick. For as the Roman soldiers, who were all free citizens, not only paid their proportion of the taxes, but were obliged to serve in the field at their own expense during the whole campaign, this frequently obliged them to borrow money at high interest of the Patricians, who had engrossed by far the greater part of publick wealth. But as the Roman territories were often ravaged by their neighbours in those wars, which Tarquin perpetually incited to procure the recovery of his crown, the loss fell heaviest upon the Plebeians, who were frequently stript of all their effects, and reduced to the utmost poverty. Hence unable to pay the principal of their debts, joined to an accumulated load of usury upon usury, they were surrendered by the judges to the discretion of their creditors. These unfeeling wretches confined their debtors in chains, tortured their bodies with whips, and treated them with such inhumanity, that great numbers of the Romans were

in as bad a situation as the poor Athenians when Solon first undertook the administration. The effects of this detestable treatment of people, who had been taught to call themselves free, appeared about twelve years after the erection of their new government. For when the Tarquins had raised up a confederacy of thirty cities of the Latins against them, the Plebeians peremptorily refused to enlist until a vote was passed for the abolition of their debts. As persuasions had no effect, the senate met upon the occasion. Valerius, the son of the humane Poplicola, pleaded strongly in favour of the people, but was violently opposed by Appius Claudius, a haughty and imperious man, who is termed by Dionysius an abettor of the oligarchy, and head of that faction, which were enemies to the people. The moderate men amongst the senators proposed, that the debts should be paid out of the publick treasury; a measure which would preserve the poor for the service of the state, and prevent any injustice to the creditors. Salutary as this measure must seem, the opposition was so great that nothing was agreed to, and the result of the debates was, “that no decree should be made at present relating to this affair, but that as soon as the war should be concluded with success, the consuls should lay it before the senate, and take their vote upon the occasion. That in the mean time no debt should be sued for, and that the execution of all laws, except those relating to the war, should be suspended.” This decree did not wholly quiet the ferment amongst the people. Several of the poorer sort demanded an immediate abolition of their debts, as the condition for their taking a share in the dangers of the war, and looked upon this delay rather as an imposition. The senate, who, as the event showed, were determined never to grant their request, and yet were afraid of new commotions, resolved to abolish the consulship, and all other magistracies for the present, and to invest a new magistrate with absolute and unlimited power, and subject to no account for his actions. This new officer was termed the dictator, and the duration of his office was limited to six months, at the end of which term the consuls were to resume their former authority. The chief reason, as Dionysius informs us, which induced the senate to make use of this dangerous expedient, was to evade that law which Poplicola had procured in favour of the Plebeians, which made it death for a magistrate to punish a Roman without a legal trial, or before he was condemned by the people.²⁵¹ The senate then made a decree for the election of a dictator, and the Plebeians ignorant, as Dionysius observes, of the importance of that decree, not only confirmed the resolutions of the

senate, but gave up to them the power of choosing the person who should be invested with that dignity. Titus Lartius, one of the consuls, was nominated by his colleague according to the form at that time agreed upon in the senate. When the dictator appeared in all the pomp and grandeur of his new office, he struck a terror into the most turbulent, and the people, thus tricked out of that law which was their only protection, immediately submitted. Lartius, who seems to have been one of the greatest men of his time, ordered in a general register of all the Romans, and formed his army after that wise method first instituted by Servius Tullius. When he took the field he persuaded the Latins, by his singular address, to disband their forces and conclude a truce, and thus diverted the impending storm without fighting. He then returned home, and resigned his office before the time was expired, without having exercised any one act of severity upon a single Roman. A noble instance of moderation and publick virtue!

At the expiration of the truce, which was made for one year only, the Latins took the field with a powerful army. Aulus Posthumius was created dictator by the Romans, and a decisive battle was fought near the lake Regillus, in which the Romans were completely victors. Sextus Tarquin was killed upon the spot, and old Tarquin the father died soon after. As soon as this war was ended, the senate, regardless of their promise, ordered all those suits for debt to be determined according to law, which had been suspended during the war. This faithless proceeding raised such violent commotions amongst the people, that a foreign war was judged the best expedient to divert the storm which threatened the aristocracy. The haughty Appius Claudius, and Publius Servilius, a man of a very different character, were nominated consuls by Posthumius and his colleague, which seems a manifest invasion of the rights of the people.²⁵² A war was resolved upon against the Volscians, but the Plebeians again refused to obey the summons for enlisting. Servilius adhered to the maxims of Valerius, and advised an immediate decree for the abolition of the debts. But he was furiously opposed by the inexorable Appius,²⁵³ who called him a flatterer of the people, and declared that it would be giving up the government to the people when they had it in their power to live under an aristocracy. After much time was spent in these debates, Servilius, who was a popular man, prevailed upon the Plebeians, by his entreaties, and raised an army of volunteers, with which he marched against the enemy. The Volscians, who placed their chief dependance upon the disunion which prevailed amongst

the Romans, submitted to whatever terms the consul should think proper to impose, and delivered three hundred hostages chosen out of their principal families, as a security for their behaviour. But this submission was far from real, and was calculated only to amuse the Romans and gain time for their military preparations. War was once more decreed against the Volscians; but whilst the senate was deliberating about the number of the forces proper to be employed, a man advanced in years appeared in the forum and implored the assistance of the people. Famine sat pictured in his pale and meagre face,²⁵⁴ and the squalid hue of his dress indicated the extremes of poverty and wretchedness. This man, who was not unknown to the people, and, according to report, had borne a command in the army, first showed several honourable scars in his breast, remains of the wounds he had received in the service of his country, and then informed them: “that he had been present in eight and twenty battles, and frequently received rewards bestowed only upon superior bravery: that in the Sabine war his cattle were driven off by the enemy, his estate plundered, and his house reduced to ashes: that under these unhappy circumstances he was compelled to borrow money to pay the publick taxes; that this debt, accumulated by usury, reduced him to the sad necessity of selling the estate descended to him from his ancestors, with what little effects he had remaining: but that all this proving insufficient, his devouring debts, like a wasting consumption, had attacked his person, and he, with his two sons, were delivered up as slaves, and led away to the slaughterhouse by his creditors.” When he had said this, he threw off his rags, and showed his back yet bleeding from the scourge of his merciless master. This sight inflamed the people greatly, but the debtors breaking out of their creditor’s houses, most of whom were loaded with chains and fetters, raised their fury even to madness. If any one desired them to take up arms in defence of their country, the debtors showed their chains,²⁵⁵ as the reward they had met with for their past services, and asked with indignation, whether such blessings were worth fighting for. Whilst numbers of them openly declared that it was much more eligible to be slaves to the Volscians than the Patricians. The senate, quite disconcerted by the violence of the tumult, entreated Servilius to take the management of the people. For an express was just arrived from the Latins, with advice that a numerous army of the enemy had already entered their territories. Servilius remonstrated to the people the consequences of disunion at so critical a juncture, and pacified them by the assurance that the senate would

confirm whatever concessions he should make; he then ordered the crier to proclaim that no citizen who voluntarily enlisted should be subject to the demands or insults of his creditors whilst the army continued in the field. The people now flocked in with cheerfulness, and the levies were soon completed. Servilius took the field and defeated the Volscians, made himself master of their camp, took several of their cities, and divided the whole plunder amongst his soldiers. At the news of this success the sanguinary Appius ordered all the Volscian hostages to be brought into the forum,²⁵⁶ there to be whipped and publickly beheaded. And when at his return Servilius demanded a triumph, he loudly opposed it, called him a factious man, and accused him of defrauding the treasury of the booty, and prevailed upon the senate to deny him that honour. Servilius, enraged at this usage, entered the city in triumph with his army, amidst the acclamations of the people, to the great mortification of the Patricians.

Under the following consulship the Sabines prepared to invade the Romans, and the people again refused to serve unless the debts were first abolished. Lartius, the first dictator, pleaded strongly for the people, but the inflexible Appius proposed the nomination of a dictator, as the only remedy against the mutiny. His motion was carried in the senate by a majority of voices, and Manius Valerius, a brother to the great Poplicola, was created dictator. Valerius, who was a man of great honour, engaged his word to the Plebeians, that if they would serve cheerfully upon this occasion, he would undertake the senate should reward them by quieting the contests relating to their debts, and granting whatever they could reasonably desire, and commanded at the same time that no citizen should be sued for debt during his administration. The people had so often experienced the publick virtue of the Valerian family, and no longer apprehensive of being again imposed upon, offered themselves in such crowds, that ten legions of four thousand men each were levied, the greatest army of natives the Romans had ever brought into the field. The dictator finished the campaign with glory, was rewarded with a triumph, and discharged the people from farther service. This step was not at all agreeable to the senate,²⁵⁷ who feared the people would now claim the performance of the dictator's promises. Their fears were just; for Valerius kept his word with the people, and moved the senate that the promise they had made to him might be taken into consideration. But the Appian faction opposed it with the utmost virulence, and exclaimed against his family as flatterers of the people, and introducers of pernicious

laws. Valerius, finding his motion over-ruled, reproached the senate for their behaviour, and foretold the consequences which would attend it; and quitting the senate abruptly called assembly of the people. After he had thanked them for their fidelity and bravery, he informed them of the usage he had met with in the senate, and declared how greatly both he and they had been imposed upon, and resigning his office, submitted himself to whatever treatment the people should think proper. The people heard him with equal veneration and compassion, and attended him home from the forum with repeated acclamations. The Plebeians now kept no measures with the senate, but assembled openly, and consulted about seceding from the Patricians. To prevent this step, the senate ordered the consuls not to dismiss their armies, but to lead them out into the field, under pretence that the Sabines were again preparing for an invasion. The consuls left the city and encamped nearly together; but the soldiers, instigated by one Sicinnius Bellutus, seized the arms and ensigns to avoid violating their military oath, seceded from the consuls, and after they had appointed Sicinnius commander in chief, encamped on a certain eminence near the river Anio, which from that event was always termed the *mons sacer*, or the holy mountain.

When the news of this secession was brought to Rome, the confusion was so great, that the city had the appearance of a place taken by storm, and the Appian faction were severely reproached as the cause of this desertion. Their enemies at the same time making inroads up to the very gates of Rome, increased the general consternation, as the Patricians were terribly afraid they would be joined by the seceders. But the soldiers behaved with so much decency and moderation, that the senate after long debates sent deputies to invite them to return, with the promise of a general amnesty. The offer was received with scorn, and the Patricians were charged with dissimulation, in pretending ignorance of the just demands of the Plebeians, and the true cause of their secession. At the return of the deputies, the affair was again debated in the senate. Agrippa Menenius, a man respectable for his superior wisdom and thorough knowledge of the true principles of government, and who was alike an enemy to tyranny in the aristocracy, and licentiousness in the people, advised healing measures, and proposed to send such persons as the people could confide in with full power to put an end to the sedition in the manner they should judge most proper, without farther application to the senate. Manius Valerius, the last dictator, spoke

next, and reminded the senate, “that his predictions of the evils which would result from their breach of promise were now verified, that he advised a speedy accommodation with the people, lest the same evils, if suffered to make a farther progress, should become incurable: that in his opinion the demands of the people would rise higher than the bare abolition of debts, and that they would insist upon such security as might be the firm guardian of their rights and liberty for the future. Because the late institution of the dictatorship had superseded the Valerian law which was before the only guardian of their liberty, and the late denial of a triumph to the consul Servilius, who had deserved that honour more than any man in Rome, evidently proved, that the people were deprived of almost all those privileges they had formerly enjoyed, since a consul and a dictator who showed the least concern for the interests of the people, were treated with abuse and ignominy by the senate: that he did not impute these arbitrary measures to the most considerable and respectable persons amongst the Patricians, but to a combination of proud and avaricious men wholly intent upon unwarrantable gain; who by advancing large sums at excessive interest, had enslaved many of their fellow-citizens, and by their cruel and insulting treatment of their unhappy debtors, had alienated the whole body of the Plebeians from the aristocracy: that these men, by forming themselves into a faction, and placing Appius, a known enemy to the people and abettor of the oligarchy, at their head, had under his patronage, reduced the commonwealth to its present desperate situation.” He concluded by seconding the motion of Menenius for sending ambassadours to put a speedy end to the sedition upon the best terms they should be able to obtain.

Appius, finding himself thus personally attacked, rose up and replied to Valerius in a hot inflammatory speech full of the most virulent invectives. He denied that he was ever guilty of enslaving his debtors: “he denied too, that those who had acted in that manner could be charged with injustice, since they had done no more than the laws allowed. He affirmed that the imputation of being an enemy to the people, and favouring oligarchy, arose from his steady adherence to the aristocracy, and equally affected all those of superior worth, who like him disdained to be governed by their inferiors, or to suffer the form of government which they had inherited from their ancestors²⁵⁸ to deviate into the worst of all constitutions, a democracy. He recriminated upon Valerius, and charged him with aiming at tyranny, by courting the most profligate of the citizens, as the most effectual and

shortest way of enslaving his country. He termed the seceders, vile, mean wretches, a thoughtless senseless multitude, whose present arrogance had been first inspired by that old man, as he contemptuously called Valerius. He declared absolutely against sending ambassadours, or making the least concession, and advised rather to arm the slaves and send for assistance from their allies the Latins, than submit to any thing that might derogate from the power and dignity of the Patricians. He proposed, if the seceders should appear in arms against them, to put their wives and children to death before their faces by the most severe and ignominious tortures. But if they would submit at discretion to the senate, he advised to treat them with moderation." This speech produced a violent tumult in the senate, and the young Patricians who adhered to Appius behaved with so much insolence, that the consuls threatened to exclude them from the publick counsels, by a law which should fix the age for the qualification of every senator. Nothing was determined at that time, but in a few days, the moderate party, supported by the firmness of the consuls, prevailed against the still inflexible Appius, and ten ambassadours, at the head of whom were Menenius and Valerius, were sent with full powers to treat with the seceders. After many debates, Menenius in the name of the senate promised full redress of all their grievances with respect to the debts, and offered to confirm this promise by the solemn oaths of all the ambassadours. His offer was upon the point of being accepted, when Lucius Junius, who affected the surname of Brutus, a bold and able Plebeian, interposed and insisted upon such a security from the senate as might protect the Plebeians for the future from the power of their enemies, who might find an opportunity of wreaking their vengeance on the people for the step they had taken. When Menenius desired to know what security he required, Junius demanded leave for the people to choose annually a certain number of magistrates out of their own body, vested with the power of defending their rights and liberties, and protecting their persons from injury and violence. As this new and unexpected demand seemed of too great consequence to be granted by the ambassadours, Valerius with some others were sent to take the opinion of the senate upon that subject. Valerius laid this demand before the senate, and gave his opinion that the favour should be granted, and Appius, as usual, opposed it with outrageous fury. But the majority, determined at all events to put a period to the secession, ratified all the promises made by the ambassadours, and granted the desired security. The seceders held their

assembly in the camp, and taking the votes by *curiæ*, elected five persons for their annual magistrates, who were termed tribunes of the people. By a law made immediately after the election, the persons of the tribunes were rendered sacred; and the people obliged themselves to swear by whatever was held most sacred that they and their posterity would preserve it inviolably.

The erection of the tribunitial-power, which happened about seventeen years after the expulsion of the kings, is certainly the æra from which the liberty of the Roman people ought properly to be dated. All the neighbouring states were at that time subject to aristocracy, where the people had little or no share in the government, and it appears evidently from the Roman historians that the Romans intended to establish the same form of government at Rome after the abolition of monarchy. For the senate, as Livy informs us,²⁵⁹ gave a loose to that unbounded joy which the death of Tarquin inspired, and begun to oppress and injure the people, whom until that time they had courted with the utmost assiduity. But Sallust is more full and explicit. For he affirms,²⁶⁰ “that after the expulsion of the kings, as long as the fear of Tarquin and the burdensome war with the Etrurians kept the Romans in suspense, the government was administered with equity and moderation. But as soon as ever the dread of those impending dangers was removed, the senate begun to domineer over the people and treat them as slaves; inflicting death or scourging after the arbitrary manner of despotick tyrants; expelling them from their lands, and arrogating the whole power of government to themselves, without communicating the least share of it to the Plebeians.” Thus the people, before the creation of this magistracy, were amused with the name of liberty, whilst in fact they had only changed the tyranny of one, for the more galling yoke of three hundred. But the tribunitial-power proved an invincible obstacle to the arbitrary schemes of the aristocratick faction, and at last introduced that due admixture of democracy, which is so essentially necessary to the constitution of a well regulated republick.

As a minute detail of a history so well known as that of the Romans would be quite superfluous, I shall only observe, that the democratick power in that republick did not arrive at its just state of independence, until the Plebeians were not only entitled to the highest posts and dignities, equally with the Patricians, but until the plebiscita or decrees made by the

people in their assembly by tribes,²⁶¹ were confirmed to be equally binding as those made in their assembly by centuries. This law was first made when the tyranny of the decemvirs was abolished by the second secession of the people to the Sacred Mountain, but was perpetually violated by the overbearing power of the aristocracy. But an event similar to that which occasioned the first secession of the people, to which they properly owed the origin of their liberty, was the cause of the third and last secession, which fully completed that liberty, and gave the fatal blow to the arbitrary aristocratick faction. Veturius, the son of Titus Veturius, who had been consul and died insolvent, borrowed a sum of money of one Plotius to defray the expenses of his father's funeral. As the father was greatly indebted to the same Plotius, he demanded of young Veturius the payment of both debts which his father and he himself had contracted. As the unhappy young man was utterly unable to satisfy the demand, Plotius seized his unfortunate debtor, and confined him to the work of a slave, until he had discharged both principal and interest. Veturius bore his servitude with patience, and did his utmost to please his creditor. But as he refused to gratify the detestable passion of the infamous Plotius he treated him with the utmost inhumanity to force him to a compliance. One day he had the good fortune to escape out of the house of his merciless creditor, and fled to the forum, where he showed his back torn with stripes and his body covered with blood, and explained the reason of his shocking treatment. The people, enraged at so dreadful a spectacle, demanded an absolute security against that law, which gave the creditors such a shameful power over their insolvent debtors. For though that law had been abolished near forty years before upon a like occasion, yet the Patricians, by their superior power, had again revived it. The consuls reported the affair to the senate, who committed Plotius to prison, and ordered all those who were in custody for debt to be set at liberty. The Plebeians, not satisfied with these trifling concessions, insisted upon the absolute abolition of that inhuman law; but they were opposed with equal animosity by the Patricians. Despairing therefore of gaining their point by entreaties and remonstrances, they retired in a body to the Janiculum, resolutely determined never to enter the city, until they had received full satisfaction. The senate, alarmed at this secession, had recourse to their last resource in all desperate cases, the creation of a dictator. Q. Hortensius was nominated dictator upon this occasion, a man of great temper and prudence, and a real friend to liberty.

As he was vested with absolute power by virtue of his office, he totally abolished that law which had given such just cause of uneasiness, and notwithstanding all the opposition of the senate, revived and confirmed two laws which had been formerly made, though constantly violated by the Patricians. One was, “that the decrees made by the Plebeians should be equally obligatory to the Patricians:” the other, “that all laws passed in the senate should be laid before the comitia, or assemblies of the people, either to be confirmed or rejected.” Thus the liberty, which the Plebeians had acquired by the first secession, was confirmed in the plainest and strongest manner by the last, which happened about two hundred and six years after. For the Patricians, from that memorable æra, had scarce any other advantage over the Plebeians, except what arose from their superior wealth, and that respect which is naturally paid by inferiors to men of superior birth.

It is evident, from that sudden change which the Plebeians experienced in the behaviour of the Patricians at the death of Tarquin, that if the senate could have supported themselves in that arbitrary power, which they so visibly aimed at, the condition of the people would have been just like that of the Polish peasants under their imperious lords. For in that detestable aristocracy, the Patricians, not content with the wealth of the republick, which centered chiefly in their own body, used their utmost efforts to engross the entire possession of the lands. The secession of the people, and the creation of the tribunes, defeated the scheme they had formed for establishing an aristocratick tyranny. But the frequent attempts to revive the Agrarian law prove undeniably that the Patricians never lost sight of their ambitious views of aggrandizing their families by an illegal usurpation of the conquered lands. Spurius Cassius, a Patrician, was the first author of this law, about eight years after the secession, with a view of raising himself to the regal power by conciliating the affection and interest of the people. The law itself was certainly just, and founded upon that equality in the distribution of the land, which was a part of the constitution, as settled by their founder Romulus. The plea therefore of Cassius, “that the lands, which had been conquered by the blood and valour of the people, should be taken from the rich and applied to the service of the publick,” was founded upon the strictest equity, as well as the fundamental principles of their constitution. Even Appius, the most inveterate enemy to the people, acknowledged the justice of his proposal, since he moved that

commissioners should be appointed by the senate to fix the boundaries of the land in question, and sell, or let it out in farms for the benefit of the publick. This advice was unanimously approved of, and the senate passed a decree, that ten of the most ancient consular senators should be appointed commissioners to carry this scheme into execution. This decree at once pacified the people and ruined Cassius. For as he had proposed to divide two thirds of the lands between the Latins and Hernici, whose assistance he at that time courted, the people gave him up to the resentment of the senate, who condemned him for plotting to introduce a single tyranny, and ordered him to be thrown down the Tarpeian precipice.

This was the first rise of the famous agrarian law, which occasioned such frequent contests between the senate and the people, and stirred up the first civil war in Rome, which ended in the murder of both the Gracchi, about three hundred and fifty years after. For the senate not only evaded the nomination of the commissioners, as they had promised in their decree, but, whenever that affair was brought upon the carpet, they acted with an insincerity and artifice which are highly inconsistent with the so much vaunted probity of the Roman senate. Unless therefore we attend to the true reasons, upon which the agrarian law was originally founded, we can never form a right judgment of the perpetual dissensions between the senate and the tribunes upon that subject. For though the chief blame, in all these contests, is most commonly thrown upon the turbulent and seditious temper of the tribunes, yet, if the real cause of those dissensions is impartially examined, we shall find that most of them took rise from the avarice and injustice of the Patricians. But though the tribunitial power was sometimes made subservient to the interested views of some ambitious tribunes, yet no argument can justly be drawn from the abuse of that power against its real utility. For how much it was dreaded as the bulwark of the liberty of the people, is evident from this consideration: that it was reduced almost to nothing by Sylla, and afterwards totally absorbed by Augustus and the succeeding emperors, who never looked upon the people as thoroughly enslaved until they had annexed the tribunitial power to the imperial dignity.

I remarked before, that when the highest dignities and employments in the republick were laid open to the Plebeians, and the decrees of the people had the same force, and affected the Patricians in the same manner as those which were issued by the senate, the democrattick power was raised to an

equality with the aristocrattick. But as a third power, or estate (as we term it) was wanting, capable of preserving the requisite æquilibrium between the other two, it was impossible from the very nature of the republican constitution, that the equality between the two powers could be long supported. The concessions made by Hortensius quieted indeed the civil dissensions; and it is remarkable too, that after peace was restored to the republick, the progress of the Roman conquests was so amazingly rapid, that in little more than two hundred years from that period they had subjugated the most opulent empires in the universe. But the same conquests, which raised the republick to the summit of her grandeur, threw too much weight into the democrattick scale, and, by totally corrupting the Roman manners, brought on the final ruin of their liberty and constitution. For as every conquered province created successively a new government, these new dignities immediately became new objects of avarice and ambition. But as the command of the armies, the government of provinces, and the highest posts in the state, were disposed of by the suffrages of the people; the candidates for those lucrative employments left no means unattempted to secure a majority. Hence, as the poor Plebeians were extremely numerous, the man who was able to distribute the greatest largesses, or divert the mob with the finest shows, was generally the most successful. When the interest of the candidates was nearly equal, force was frequently made use of to decide the contest; and it was not uncommon to see the forum²⁶² covered with the slaughtered bodies of the electors. The generals who were elected fleeced the provinces to enable themselves to keep up their interest at home with the people, and connived at the rapines of their soldiers to secure their affections. Hence at Rome liberty degenerated into the most outrageous licentiousness, whilst the soldiers gradually wore off that parental love for their country, which was once the characteristick of the Romans, and attached themselves wholly to the fortunes of their generals. Hence the most succesful leaders began to look upon themselves no longer as servants, but as masters of the republick, and each endeavoured to support his pretensions by force of arms. The faction of Sylla and Marius filled the city alternately with slaughter and rapine, as the fortune of their respective leaders prevailed in the course of that destructive contest. And Rome frequently felt the calamitous effects of war in her own bowels, at a time when her victorious arms abroad were adding new provinces to her dominions. These factions were far from expiring with

their leaders, but broke out again with the same baleful fury under the first and second triumvirate. Each of these, strictly speaking, were no more than coalitions of the same factions, where three chiefs united their several parties to crush every other. When they had accomplished this, and satiated their ambition, their avarice, and their private resentments, by the most bloody proscriptions, they quarrelled about the division of power, like captains of banditti about the division of booty, with whom they agreed in principle, and differed only in degree. These quarrels occasioned those civil wars, which gave the finishing blow to the Roman republick. The ablest and most dangerous man, in each triumvirate, proved at last the conqueror; and Julius Cæsar first put those chains upon his country, which Augustus riveted beyond a possibility of removal.

All the historians, from whom we have received any account of the Roman affairs, agree unanimously in fixing their conquest of Antiochus the Great, as the æra from whence we are to date the rise of luxury and corruption amongst them. Livy assures us, that luxury was first introduced into their city by the army of Manlius at their return from Asia. They, he informs us, were the first who made Rome acquainted with the finely ornamented couches, the rich carpets, the embroidered hangings, and other expensive productions of the looms of Asia, with all those elegant tables of various forms and workmanship, which were esteemed so essential a part of that magnificence which they affected in their furniture. They introduced wenches, who sung and played upon different instruments, with dancers of anticks, to heighten the mirth and indulgence of the table. To show to what height they carried the expense and luxury of the table, he adds, with indignation, that a cook, who, by their frugal and temperate ancestors, was looked upon, from his very office, as the vilest slave in the household, was now esteemed an officer of mighty consequence, and cookery was erected into an art, which before was looked upon as the most servile kind of drudgery. Yet new and strange as these first specimens might seem, Livy assures us, that they were but trifles when compared to their succeeding luxury. Before that fatal æra the Romans were poor, but they were contented and happy, because they knew no imaginary wants: and whilst their manners were virtuous, poverty itself was honourable, and added a new lustre to every other virtue. But when once they had contracted a relish for the luxury of Asia, they quickly found that the wealth of Asia was necessary to support it; and this discovery as quickly produced a total

change in their manners. Before that time the love of glory, and a contempt of wealth, was the ruling passion of the Romans. Since that time money was the only object of their applause and desire. Before, ambition impelled them to war, from a thirst of dominion; now avarice, for the sake of plunder to support the expense of luxury. Before, they seemed a race of heroes; they were now a gang of insatiable robbers. Formerly, when they had reduced a people to obedience, they received them as their allies; they now made the conquered nations their slaves. They fleeced the provinces, and oppressed their friends. As the great offices, which entitled the possessors to the command of armies, and the government of provinces, were disposed of by the votes of the people, no method was left unattempted to secure a majority of suffrages. The candidates for these employments, not only exhausted their own fortunes, but strained their credit to the utmost, to bribe the people with shows and donatives. To this infamous period we must fix the rise of that torrent of corruption, which so quickly deluged the Roman republick. The successful candidates set out for their government, like hungry emaciated wolves, to fatten upon the blood of the miserable provinces. Cicero makes heavy complaints of the rapine and extortion of these rapacious oppressors; and his orations against Verres, when accused by the Sicilians, give us a complete idea of the behaviour of a Roman governour in his province. The complaints of the oppressed provincials were incessant; but every governour had his friends amongst the leading men, whom he secured by a share of the plunder, and the weight of their whole interest was applied to screen the criminal. Laws indeed were made against this crime of peculation, but they were easily eluded, because the judges, who were chosen out of the body of the people, were as corrupt as the offenders, and were frequently their associates in villany. Thus corruption made its way into the very vitals of the republick. Every thing was venal, and the venality had made so rapid a progress, even in the time of Jugurtha, which was about eighty years after the defeat of Antiochus, as to occasion the severe sarcasm of that prince, recorded by Sallust, which places the corruption of the Romans in a stronger point of view, than the most laboured and pathetick description of their historians. "That Rome had carried her venality to so great a height, as to be ready to sell herself to destruction, if she could but find a purchaser." When the Romans had beggared the monarchs, whom they vouchsafed to style their friends, and drained the provinces until they had scarce any thing left to plunder; the

same principle which had induced them to pillage the universe, impelled them now to prey upon one another.²⁶³ Marius and Sylla were the first Romans who set the fatal precedent, and were the first who bridled Rome with a standing army. The civil power was compelled to give way to the military, and from that period we may truly date the ruin of the Roman liberty. The state continued to fluctuate between despotism and anarchy, until it terminated irretrievably under the Cæsars, in the most absolute, and most infernal tyranny that any people were ever yet cursed with. Marius opened the bloody scene, and glutted his followers with the blood and wealth of the friends of Sylla. Sylla repaid the Marian faction in the same coin with usury. Battles were fought in the very streets; and Rome, more than once, experienced all the horrors of a city taken by storm from her own citizens. Personal resentment and revenge for injuries received, were the pretence on both sides, but plunder and confiscations seem to have been the chief motives. For the rich were equally looked upon as enemies, and equally proscribed by both factions, and they alone were safe who had nothing worth taking.

If we connect the various strokes, interspersed through what we have remaining of the writings of Sallust, which he levelled at the vices of his countrymen, we shall be able to form a just idea of the manners of the Romans in the time of that historian. From the picture, thus faithfully exhibited, we must be convinced, that not only those shocking calamities, which the republick suffered during the contest between Marius and Sylla, but those subsequent, and more fatal evils, which brought on the utter extinction of the Roman liberty and constitution, were the natural effects of that foreign luxury, which first introduced venality and corruption. Though the introduction of luxury from Asia preceded the ruin of Carthage in point of time, yet, as Sallust informs us, the dread of that dangerous rival restrained the Romans within the bounds of decency and order.²⁶⁴ But as soon as ever that obstacle was removed,²⁶⁵ they gave a full scope to their ungoverned passions. The change in their manners was not gradual, and by little and little, as before, but rapid and instantaneous. Religion, justice, modesty, decency, all regard for divine or human laws, were swept away at once by the irresistible torrent of corruption. The nobility strained the privileges annexed to their dignity,²⁶⁶ and the people their liberty, alike into the most unbounded licentiousness. Every one made the dictates of his own

lawless will his only rule of action. Publick virtue, and the love of their country, which had raised the Romans to the empire of the universe, were extinct. Money,²⁶⁷ which alone could enable them to gratify their darling luxury, was substituted in their place. Power, which alone could enable them to gratify their darling dominion, honours, and universal respect, were annexed to the possession of money. Contempt, and whatever was most reproachful, was the bitter portion of poverty; and to be poor, grew to be the greatest of all crimes in the estimation of the Romans. Thus wealth and poverty contributed alike to the ruin of the republick. The rich employed their wealth in the acquisition of power,²⁶⁸ and their power in every kind of oppression and rapine, for the acquisition of more wealth. The poor,²⁶⁹ now dissolute and desperate, were ready to engage in every seditious insurrection, which promised them the plunder of the rich, and set up both their liberty and their country to sale to the best bidder. The republick,²⁷⁰ which was the common prey to both, was thus rent to pieces between the contending parties. As an universal selfishness is the genuine effect of universal luxury, so the natural effect of selfishness is to break through every tie, both divine and human, and to stick at no kind of excesses in the pursuit of wealth, its favourite object. Thus the effects of selfishness will naturally appear in irreligion,²⁷¹ breach of faith, perjury, a contempt of all the social duties, extortion, frauds in our dealings, pride, cruelty, universal venality and corruption. From selfishness arises that vicious ambition (if I may be allowed the term) which Sallust rightly defines, “the lust of domination.”²⁷² Ambition as a passion, precedes avarice; for the seeds of ambition seem almost to be innate. The desire of pre-eminence, the fondness for being distinguished above the rest of our fellow-creatures, attends us from the cradle to the grave. Though as it takes its complexion, so it receives its denomination from the different objects it pursues, which in all are but the different means of attaining the same end. But the lust of domination, here mentioned by Sallust, though generally confounded with ambition, is in reality a different passion, and is, strictly speaking, only a different mode of selfishness. For the chief end which we propose, by the lust of domination, is to draw every thing to centre in ourselves, which we think will enable us to gratify every other passion. I confess it may be alleged, that self-love and selfishness both arise from the general law of self-preservation, and are but different modes of the same principle. I

acknowledge, that if we examine strictly all those heroick instances of love, friendship, or patriotism, which seem to be carried to the most exalted degree of disinterestedness, we shall probably find the principle of self-love lurking at the bottom of many of them. But, if we rightly define these two principles, we shall find an essential difference between our ideas of self-love, and selfishness. Self-love, within its due bounds, is the practice of the great duty of self-preservation, regulated by that law which the great author of our being has given for that very end. Self-love therefore is not only compatible with the most rigid practice of the social duties, but is in fact a great motive and incentive to the practice of all moral virtue. Whereas selfishness, by reducing every thing to the single point of private interest, a point which it never loses sight of, banishes all the social virtues, and is the first spring of action, which impels to all those disorders, which are so fatal to mixed government in particular, and to society in general. From this poisonous source Sallust deduces all those evils,²⁷³ which spread the pestilence of corruption over the whole face of the republick, and changed the mildest and most upright government in the universe into the most inhuman, and most insupportable tyranny. For as the lust of domination can never possibly attain its end without the assistance of others, the man, who is actuated by that destructive passion, must, of necessity, strive to attach to himself a set of men of similar principles, for the subordinate instruments. This is the origin of all those iniquitous combinations, which we call factions. To accomplish this,²⁷⁴ he must put on as many shapes as Proteus; he must ever wear the mask of dissimulation, and live a perpetual lie. He will court the friendship of every man, who is capable of promoting, and endeavour to crush every man, who is capable of defeating his ambitious views. Thus his friendship and his enmity will be alike unreal, and easily convertible, if the change will serve his interest. As private interest is the only tie which can ever connect a faction,²⁷⁵ the lust of wealth, which was the cause of the lust of domination, will now become the effect, and must be proportional to the sum total of the demands of the whole faction; and, as the latter know no bounds, so the former, will be alike insatiable. For when once a man is inured to bribes in the service of faction,²⁷⁶ he will expect to be paid as well for acting for, as for acting against the dictates of his conscience. A truth, which every minister must have experienced, who has been supported by a faction, and which a late great minister (as he frankly confessed) found to be the case with him during his long administration.

But how deeply soever a state may be immersed in luxury and corruption, yet the man who aims at being the head of a faction for the end of domination,²⁷⁷ will at first cloak his real design under an affected zeal for the service of the government. When he has established himself in power, and formed his party, all who support his measures will be rewarded as the friends; all who oppose him will be treated as enemies to the government. The honest and uncorrupt citizen will be hunted down as disaffected, and all his remonstrances, against mal-administration, will be represented as proceeding from that principle. The cant term, *disaffection*, will be the watch-word of the faction; and the charge of disaffection, that constant resource of iniquitous ministers, that infallible sign that a cause will not stand the test of a fair inquiry, will be perpetually employed by the tools of power to silence those objections which they want argument to answer. The faction will estimate the worth of their leader,²⁷⁸ not by his services to his country, for the good of the publick will be looked upon as obsolete and chimerical; but his ability to gratify, or screen his friends, and crush his opponents. The leader will fix the implicit obedience to his will, as the test of merit to his faction: consequently all the dignities, and lucrative posts will be conferred upon persons of that stamp only, whilst honesty and publick virtue will be standing marks of political reprobation. Common justice will be denied to the latter in all controverted elections, whilst the laws will be strained, or over-ruled in favour of the former. Luxury is the certain forerunner of corruption, because it is the certain parent of indigence: consequently a state so circumstanced will always furnish an ample supply of proper instruments for faction. For as luxury consists in an inordinate gratification of the sensual passions,²⁷⁹ the more the passions are indulged they grow the more importunately craving, until the greatest fortune must sink under their insatiable demands. Thus luxury necessarily produces corruption. For as wealth is essentially necessary to the support of luxury, wealth will be the universal object of desire in every state where luxury prevails: consequently all those who have dissipated their private fortunes in the purchase of pleasure, will be ever ready to enlist in the cause of faction for the wages of corruption. A taste for pleasure immoderately indulged, quickly strengthens into habit, eradicates every principle of honour and virtue, and gets possession of the whole man. And the more expensive such a man is in his pleasures, the greater lengths he will run for the acquisition of wealth for the end of profusion. Thus the contagion will

become so universal, that nothing but an uncommon share of virtue can preserve the possessor from infection. For when once the idea of respect and homage is annexed to the possession of wealth alone,²⁸⁰ honour, probity, every virtue and every amiable quality will be held cheap in comparison, and looked upon as awkward and quite unfashionable. But as the spirit of liberty will yet exist in some degree in a state which retains the name of freedom, even though the manners of that state should be generally depraved, an opposition will arise from those virtuous citizens, who know the value of their birthright, *liberty*, and will never submit tamely to the chains of faction. Force then will be called in to the aid of corruption,²⁸¹ and a standing army will be introduced. A military government will be established upon the ruins of the civil, and all commands and employments will be disposed of at the arbitrary will of lawless power. The people will be fleeced to pay for their own fetters, and doomed, like the cattle, to unremitting toil and drudgery for the support of their tyrannical masters. Or, if the outward form of civil government should be permitted to remain, the people will be compelled to give a sanction to tyranny by their own suffrages, and to elect oppressors instead of protectors.

From this genuine portrait of the Roman manners, it is evident to a demonstration, that the fatal catastrophe of that republic (of which Sallust himself was an eye witness) was the natural effect of the corruption of their manners. It is equally as evident from our author, and the rest of the Roman historians, that the corruption of their manners was the natural effect of foreign luxury, introduced and supported by foreign wealth. The fatal tendency of these evils, was too obvious to escape the notice of every sensible Roman, who had any regard for liberty, and their ancient constitution. Many sumptuary laws were made to restrain the various excesses of luxury; but these efforts were too feeble to check the overbearing violence of the torrent. Cato proposed a severe law, enforced by the sanction of an oath, against bribery and corruption at elections; where the scandalous traffick of votes was established by custom as at a publick market. But, as Plutarch observes,²⁸² he incurred the resentment of both parties by that salutary measure. The rich were his enemies, because they found themselves precluded from all pretensions to the highest dignities; as they had no other merit to plead but what arose from their superior wealth. The electors abused, cursed, and even pelted him as the author of a law which deprived them of the wages of corruption, and reduced them to the

necessity of subsisting by labour.²⁸³ But this law, if it really passed, had as little effect as any of the former; and like the same laws in our own country, upon the same occasion, was either evaded by chicane, or over-ruled by power. Our own septennial scenes of drunkenness, riot, bribery, and abandoned perjury, may serve to give us an idea of the annual elections of the Romans in those abominable times.²⁸⁴ Corruption was arrived at its last stage, and the depravity was universal. The whole body of the unhappy republick was infected, and the distemper was utterly incurable. For those excesses which formerly were esteemed the vices of the people,²⁸⁵ were now, by the force of custom fixed into habit, become the manners of the people. A most infallible criterion, by which we may ascertain the very point of time, when the ruin of the any free state, which labours under these evils, may be naturally expected.

The conspiracies of Catiline and Cæsar against the liberty of their country, were but genuine effects of that corruption, which Sallust has marked out to us, as the immediate cause of the destruction of the republick. The end proposed by each of these bad men, and the means employed for that end, were the same in both. The difference in their success arose only from the difference of address and abilities in the respective leaders. The followers of Catiline, as Sallust informs us, were the most dissolute, the most profligate, and the most abandoned wretches, which could be culled out of the most populous and most corrupt city of the universe.²⁸⁶ Cæsar, upon the same plan, formed his party, as we learn from Plutarch out of the most infected, and most corrupt members of the very same state.²⁸⁷ The vices of the times easily furnished a supply of proper instruments. To pilfer the publick money,²⁸⁸ and to plunder the provinces by violence, though state-crimes of the most heinous nature, were grown so familiar by custom, that they were looked upon as no more than mere office-perquisites. The younger people, who are ever most ripe for sedition and insurrection, were so corrupted by luxury,²⁸⁹ that they might be deservedly termed, “an abandoned race, whose dissipation made it impracticable for them to keep their own private fortunes; and whose avarice would not suffer their fellow-citizens to enjoy the quiet possession of theirs.”

It is not at all strange that Rome thus circumstanced should fall a victim to the corruption of her own citizens: nor that the empire of the universe, the toil and labour of ages, to which the Romans had waded through seas of

blood, should be destined to feed the detestable vices of a few monsters, who were a disgrace even to human nature. The total change of the Roman constitution, the unlimited tyranny of the emperors, and the abject slavery of the people, were all effects of the same cause, extended in degree by a natural progression. The Romans in fact were no more; the name indeed subsisted, but the idea affixed to that name, was as totally changed as their ancient constitution. In the time of Pyrrhus the Roman senate appeared an assembly of kings to his ambassadour Cyneas. When the east had felt the force of the Roman arms, the most despotick princes received the orders of a Roman senate, and executed them with as prompt obedience, as a slave would do the commands of his master. A deputy from the Roman senate made a haughty monarch tremble at the head of a victorious army, compelled him to resign all his conquests, and return ingloriously home, by a single motion of his walking-stick.²⁹⁰

What an elevated idea must this give us of the Roman manners, whilst that haughty people retained their freedom! Nothing is more grand; nothing more striking. Shift but the scene, and view the manners of the Romans when enslaved. Nothing is so abjectly servile, nothing so despicable. We see the Roman senate deifying the worst of mankind; wretches, who had sunk even below humanity, and offering the adoration of incense to these idols of their own making, who were more contemptible than the very stone and wooden representatives of their deities. Instead of giving law to monarchs, and deciding the fate of nations, we see the august Roman senate run trembling like slaves at the summons of their master Domitian,²⁹¹ to debate in form about the important business of dressing a turbot!! The majesty of the Roman people, which received the tributary homage of the universe, expired together with their liberty. That people, who disposed of the highest offices in the government, the command of armies, provinces and kingdoms, were sunk into a herd of dispirited slaves. Their total insignificancy screened them from the fatal effects of the caprices of their tyrants. They dragged on a wretched being in a state of idleness and poverty in the midst of slavery, and the utmost extent of their wishes amounted to no more, than bread for their daily subsistence, and diversions for their amusement.²⁹² The emperors supplied the one by their frequent largesses of corn, and gratified the other by their numerous publick shows. Hence historians observe, that the most infamous of their tyrants were as fond of rareeshows, as the mob themselves, and as they were by much the most

profuse of all their emperors, their deaths were always most regretted by the people. So striking is the contrast between a state when blessed with liberty, and the same state when reduced to slavery by the corruption of its people!

As I have already made some reflections upon that passion for theatrical entertainments, which prevailed at Athens, I cannot help observing, that after the introduction of luxury, the fondness for that kind of diversion amongst the Romans, was at least equal to that of the Athenians. The Romans seem to have been strangers to every kind of stage-plays for the first four hundred years. Their first attempts of that kind were rude and simple, and not unlike the ancient mummary at our country wakes, or Christmas gambols. The regular drama was imported together with the luxury of Greece, but every species of this kind of entertainment, whether tragedy, comedy, farce, or pantomime, was comprehended under the general denomination of stage-plays,²⁹³ and the different performers alike ranged under the general term of players.²⁹⁴ The profession itself was reckoned scandalous, and proper only for slaves, and if once a Roman citizen appeared upon the stage, he immediately forfeited his right of voting, and every other privilege of a free man. Upon this account Cicero seems to lament the fate of his friend Roscius, when he tells us, “that he was so superior to all, as a player,²⁹⁵ that he alone seemed worthy of appearing upon the stage: but of so exalted a character, as a man, that of all men he deserved least to be doomed to so scandalous a profession.” Suetonius, speaking of the licentiousness and insolence of the players, takes notice of an ancient law, which empowered the prætors and ædiles to whip those players publicly, who gave the least offence, or did not perform to the satisfaction of the people. Though Augustus²⁹⁶ as the same historian informs us, exempted players from the ignominy of that law, yet he took care to restrain them within the bounds of decency and good manners.²⁹⁷ For he ordered Stephanio, a celebrated comedian, to be whipped publicly through all the theatres, and afterwards banished him, for presuming privately to keep a Roman matron disguised under the habit of his boy. Upon a complaint from the prætor he made Hylas the pantomime be lashed openly in the court of his own palace, to which place the offender had fled for refuge; and banished Pylades, one of the most eminent players, not only from Rome but even from Italy, for affronting one of the audience who had hissed him upon the stage. But these restraints seem to have expired with

Augustus. For we find the pride and insolence of the players carried to so great a height in the reign of his successor Tiberius, as to occasion their total banishment. The fondness of the populace for the entertainments of the theatre, and the folly of the degenerate nobility, were the causes of this alteration. For both Pliny and Seneca assure us, that persons of the very first rank and fashion were so scandalously mean, as to pay the most obsequious court to the players, to dangle at their levees, to attend them openly in the streets like their slaves; and treat them like the masters, instead of the servants of the publick.²⁹⁸ Every eminent player had his party, and these ridiculous factions interested themselves so warmly in the cause of their respective favourites, that the theatres became a perpetual scene of riot and disorder. The nobility mingled with the mob in these absurd conflicts;²⁹⁹ which always ended in bloodshed, and frequently in murder. The remonstrances and authority of the magistrates had so little effect, that they were obliged to have recourse to the emperor. Bad as Tiberius was, yet he was too wise to tolerate such shameful licentiousness. He laid the case before the senate, and informed them, that the players were the cause of those scandalous riots which disturbed the repose of the publick: that they spread lewdness and debauchery through all the chief families; that they were arrived to such a height of profligacy and insolence, through the protection of their factions, that the authority of the senate itself was requisite to restrain them within proper bounds. Upon this remonstrance they were driven out of Italy as a publick nuisance;³⁰⁰ and Suetonius informs us, that all the frequent and united petitions of the people could never prevail upon Tiberius to recall them.

Augustus affected an extreme fondness for all kinds of diversion; he invited the most celebrated players of every denomination into Italy, and treated the people, at an immense expense, with every kind of entertainment, which the theatre or circus could furnish. This is remarked as an instance of that refined policy of which he was so thorough a master. For that artful prince was not yet firmly settled in his newly usurped power. He well knew, that if he gave the people time to cool and reflect, they might possibly thwart the execution of his ambitious schemes. He therefore judged that the best expedient to prepare them for the yoke of slavery would be, to keep them constantly intoxicated by one perpetual round of jollity and diversions. That this was the opinion of thinking people, at that time, is evident from that remarkably pertinent answer of Pylades the player to

Augustus, transmitted to us by Dion Cassius. Pylades, as I have already observed, had been banished by Augustus for a misdemeanor, but pardoned and recalled to gratify the humour of the people. At his return, when Augustus reproved him for quarrelling with one Bathyllus, a person of the same profession, but protected by his favourite Mæcenæ; Pylades is reported to have made this bold and sensible answer. “It is your true interest, Cæsar, that the people should idle away that time upon us and our affairs, which they might otherwise employ in prying too narrowly into your government.”³⁰¹

I am far from being an enemy to the stage. On the contrary, I think the stage under proper regulations might be rendered highly useful. For of all our publick diversions, the stage, if purged from the obscenity of farce, and the low buffoonery of pantomime, is certainly capable of affording infinitely the most rational, and the most manly entertainment. But when I see the same disorders in our own theatres, which were so loudly complained of in the time of Tiberius; when the ridiculous contests between contending players are judged to be of such mighty importance, as to split the publick into the same kind of factions; when these factions interest themselves so warmly in the support of the supposed merit of their respective favourites, as to proceed to riots, blows, and the most extravagant indecencies; I cannot help wishing for the interposition of the reforming spirit of Augustus. And when I see the same insatiable fondness for diversions, the same unmeaning taste (so justly ridiculed by Horace in his countrymen) prevail in our own nation,³⁰² which mark the most degenerate times of Greece and Rome, I cannot but look upon them as a certain indication of the frivolous and effeminate manners of the present age.

CHAPTER VI.

THE REAL CAUSE OF THE RAPID DECLENSION OF THE ROMAN REPUBLICK.

DIONYSIUS of Halicarnassus observes,³⁰³ that Romulus formed his new government in many respects after the model of that of Sparta, which accounts for that great resemblance, we evidently meet with between the Roman and Spartan constitutions. I may add too, that we cannot help observing as great a resemblance for some ages at least between the manners of both those people. For we find the same simplicity in their houses, diet and apparel; the same contempt for wealth, and quite to the last period of liberty, the same warlike genius. Publick spirit and the love of their country was carried in both states to the highest pitch of enthusiasm; it was deaf to the voice of nature itself; and that amiable virtue wore a kind of savage aspect at Rome and Sparta. But the alteration of their manners which alike preceded the loss both of the Spartan and Roman liberty, will admit of no kind of comparison either as to degree or progress. Luxury and corruption stole in by very slow degrees, and were never carried to any remarkable height amongst the Spartans. But, as Sallust beautifully expresses it,³⁰⁴ the Roman manners were precipitated at once to the depth of corruption after the manner of a resistless torrent. I observe that the destruction of Carthage is fixed upon by that elegant historian, as the æra from which the rise of this rapid degeneracy is to be dated. He assigns too the removal of the dread occasioned by that dangerous rival, as the cause of this sudden and astonishing change. Because according to his reasoning, they could then give a full loose to the impetuous fury of their passions, without restraint or fear. But the cause here assigned is by no means equal to the effect. For though it might contribute in some measure to accelerate the progress of luxury, and consequently the corruption of their manners; yet the real cause of their sudden degeneracy was widely different.

The Romans founded their system of policy, at the very origin of their state, upon that best and wisest principle, “the fear of the gods, a firm belief of a divine superintending providence, and a future state of rewards and

punishments:" their children were trained up in this belief from tender infancy, which took root and grew up with them by the influence of an excellent education, where they had the benefit of example as well as precept.³⁰⁵ Hence we read of no heathen nation in the world, where both the publick and private duties of religion were so strictly adhered to, and so scrupulously observed as amongst the Romans. They imputed their good or bad success to their observance of these duties, and they received publick prosperities or publick calamities, as blessings conferred, or punishments inflicted by their gods. Their historians hardly ever give us an account of any defeat received by that people,³⁰⁶ which they do not ascribe to the omission, or contempt of some religious ceremony by their generals. For though the ceremonies there mentioned, justly appear to us instances of the most absurd, and most extravagant superstition, yet as they were esteemed essential acts of religion by the Romans, they must consequently carry all the force of religious principle. We neither exceeded, says Cicero,³⁰⁷ speaking of his countrymen, the Spaniards in number, nor did we excel the Gauls in strength of body, nor the Carthaginians in craft, nor the Greeks in arts or sciences. But we have indisputably surpassed all the nations in the universe in piety and attachment to religion,³⁰⁸ and in the only point, which can be called true wisdom, a thorough conviction, that all things here below are directed, and governed by divine providence. To this principle alone Cicero wisely attributes the grandeur and good fortune of his country. For what man is there, says he, who is convinced of the existence of the gods, but must be convinced at the same time, that our mighty empire owes its origin,³⁰⁹ its increase, and its preservation, to the protecting care of their divine providence. A plain proof that these continued to be the real sentiments of the wiser Romans, even in the corrupt times of Cicero. From this principle proceeded that respect for, and submission to their laws, and that temperance, moderation, and contempt for wealth, which are the best defence against the encroachments of injustice and oppression. Hence too arose that inextinguishable love for their country, which, next to the gods, they looked upon as the chief object of veneration. This they carried to such a height of enthusiasm,³¹⁰ as to make every human tie of social love, natural affection, and self-preservation give way to this duty to their dearer country. Because they not only loved their country as their common mother, but revered it as a place which was dear to their gods; which they had destined

to give laws to the rest of the universe,³¹¹ and consequently favoured with their peculiar care and protection. Hence proceeded that obstinate and undaunted courage, that insuperable contempt of danger, and death itself in defence of their country, which complete the idea of the Roman character as it is drawn by historians in the virtuous ages of the republick. As long as the manners of the Romans were regulated by this first great principle of religion, they were free and invincible. But the atheistical doctrine of Epicurus,³¹² which insinuated itself at Rome, under the respectable name of philosophy, after their acquaintance with the Greeks, undermined and destroyed this ruling principle. I allow that luxury, by corrupting manners, had weakened this principle, and prepared the Romans for the reception of atheism, which is the never-failing attendant of luxury. But as long as this principle remained, it controlled manners, and checked the progress of luxury in proportion to its influence. But when the introduction of atheism had destroyed this principle, the great bar to corruption was removed, and the passions at once let loose to run their full career without check, or control. The introduction therefore of the atheistical tenets attributed to Epicurus,³¹³ was the real cause of that rapid depravity of the Roman manners, which has never been satisfactorily accounted for, either by Sallust, or any other historians.

The learned, I know, are not a little divided in their opinions about Epicurus. But a disquisition into what were, or were not the real tenets of that philosopher, would be wholly foreign to my purpose. By the doctrine of the Epicureans, I mean that system which Lucretius has dressed up in his poem with all the beauties of poetry, and all the elegance of diction. This, like the rest of the atheistical systems, which are attributed to most of the Grecian philosophers, is pregnant with the wildest absurdities that ever entered into the human imagination. Epicurus, if Lucretius has given us his genuine tenets, ascribes the formation of the universe to the fortuitous concurrence of senseless atoms of matter.³¹⁴ His master, Democritus, from whom he borrowed his system, asserts the same. But Epicurus has exceeded him in absurdity. For Democritus, if we may credit Plutarch, endowed his atoms with a certain living-intelligence, which Epicurus scorns to make use of. He boldly deduces life, intelligence, and free-will itself, from the direct, oblique, and other various motions of his inanimate atoms. He admits a sort of insignificant beings, whom he terms gods; but as he would not allow

them to have any hand in the formation of his universe, so neither will he suffer them to have the least share in the conduct of it. He has showed them plainly, that he could do without them, and, as he has made them so egregiously insignificant as to be able to do neither good nor harm, he has packed them off at a distance, to live an indolent, lazy life, and to divert themselves just as they think proper. Thus he has got rid of the troublesome doctrine of a divine superintending Providence. Sometimes he forgets himself, and seems to deny their very existence. For he tells us in one place, that the whole universe contains nothing but matter and empty space, or what arises from the casual concurrence of these two principles:³¹⁵ consequently that no third nature, different from these two, can possibly be proved to exist either by the cognizance of our senses, or by the utmost efforts of our reasoning faculty. He teaches, that the soul is composed of the finest, and most subtile atoms, consequently discernible and mortal. That the identity of man consists in the union of these finer corpuscles with the grosser ones, which compose the body. That, at their disunion by death, the soul evaporates, and is dissipated in the upper regions, from whence it first distilled, and the same man exists no more.³¹⁶ Nay he is so amazingly absurd as to assert, that if the soul,³¹⁷ after its separation, should still retain its consciousness, and, after a length of time, by some lucky jumble of his atoms, should happen to animate another body, this new compound would be quite a different man: consequently, that this new man would be no more interested in the actions of the former, than the former would be responsible for the behaviour of the latter, or for that of any future man, who might happen hereafter to be produced by another casual assemblage of the atoms of the same soul, united to those of another body. This doctrine is plainly stolen from the Pythagorean system of the transmigration of souls; but mutilated, and miserably perverted to the purposes of atheism. The absurdities in this wild philosophy are so self-evident, that to attempt a refutation of them, would be an affront to common sense. Yet, from this source, these philosophers draw their pretended consolations against the fear of death. That at death the identity of the man absolutely ceases, and we totally lose our existence.³¹⁸ Yet, from these excellent comforters, our modern scepticks have revived their senseless tenet of annihilation to serve the cause of libertinism. The grand *desideratum*, in libertinism, is, to be able to give an unbounded loose to the sensual passions, to their very utmost extent, without any impertinent hints from a certain disagreeable monitor,

called conscience, and the dread of an after-reckoning. Now as both these terrors are removed by this system of annihilation, it is no wonder that libertines, who abound in a corrupt licentious age, should fly eagerly to so comfortable a doctrine, which at once silences those enemies to their pleasures. This is the creed introduced by the sect of Epicurus amongst the Romans, which easily accounts for that sudden, and universal revolution in their manners. For manners can never be so effectually, and so speedily depraved, as by a total extinction of all religious principle; and all religious principle must be necessarily subverted wherever this doctrine of annihilation is received.³¹⁹ I allow that Lucretius gives us some excellent maxims from Epicurus, and inveighs in many places against the vices of his countrymen. But the cheat is too gross and palpable, and only proves, that he has gilt over the pill of atheism to make it go down more smoothly.³²⁰ For how can a superstructure stand when the foundation is taken away; and of what service is the best system of morality when the sanction of future rewards and punishments, the great motive which should enforce the practice, is removed by the denial of a Providence, and the doctrine of annihilation? Cicero informs us, that all the fine things, which Epicurus asserts of the existence of his gods, and their excellent nature, are mere grimace, and only thrown out to screen him from censure.³²¹ For he could not be ignorant, that the laws of his country punished every man with the utmost severity, who struck at that fundamental principle of all religion, the existence of a Deity. Cicero therefore, who had thoroughly examined his tenets, affirms him, by his own principles, to have been a downright atheist.³²² For in reality, a man who should assert the existence of such idle gods, as are neither capable of doing good or hurt, must, if he expects to be believed, be a greater fool than the man, “who says in his heart there is no God at all.” Yet this strange system, though fraught with such absurdities and contradictions as could scarce be palmed upon the genius of a Hottentot, has been implicitly swallowed by too many of those gentlemen, who affect to call themselves the *esprits forts* of the present age. These are the atheistical tenets of Epicurus, preserved by Lucretius in his beautiful poem, which, like poison, conveyed in sweets, please and murder at the same time.

The Greeks were early infected with this execrable doctrine, and shew the effect it had upon their manners by their violation of publick faith, and

contempt for the most sacred ties of religion. Trust, says Polybius, but a single talent to a Greek, who has been used to finger the publick money, and though you have the security of ten counterparts, drawn up by as many publick notaries, backed by as many seals, and the testimony of twice as many witnesses, yet, with all these precautions, you cannot possibly prevent him from proving a rogue.³²³ Whilst the Romans, who, by their various offices, are intrusted with large sums of publick money, pay so conscientious a regard to the religion of their office-oath, that they were never known to violate their faith, though restrained only by that single tie. How greatly they deviated from this rectitude of manners, after these infidel tenets had taken root amongst them, we may learn from Cicero, in his orations and epistles. Sallust too will inform us, how extremely common the crime of perjury was grown, in that severe reproach, which Lucius Philippus, a patrician, makes to Lepidus, the consul, before the whole senate. That he neither stood in awe of men or gods, whom he had so frequently injured, and defied by his villanies and perjuries.³²⁴

Polybius gives it as his real opinion, that nothing shows the superior excellence of the civil government of the Romans, to that of other people, so much as those religious sentiments with respect to their gods, which they constantly inculcated and supported.³²⁵ He affirms too his real sentiments to be, that the chief support and preservation of the Roman republick arose from that awful fear of the gods, which was so much ridiculed, and exploded by the Grecians. I have taken the liberty to render τοῖς ἄλλοις ἀνθρώποις, the Grecians, who are evidently pointed at in this passage.³²⁶ For so just and accurate a writer as Polybius could not be ignorant, that the Grecians were the only people in the world at that time, who had been debauched into atheism by the pernicious tenets of Epicurus. Polybius firmly believed the existence of a Deity, and the interposition of a divine superintending Providence, though he was an enemy to superstition. Yet when he observed the good effects produced amongst the Romans by their religion,³²⁷ though carried even to the highest possible degree of superstition, and the remarkable influence it had upon their manners in private life, as well as upon their publick counsels, he concludes it to be³²⁸ the result of a wise, and consummate policy in the ancient legislators. He therefore very justly censures those as wrong-headed, and wretchedly bungling politicians, who at that time endeavoured to eradicate the fear of

an after-reckoning, and the terrors of an hell, out of the minds of a people. Yet how few years ago did we see this miserably mistaken policy prevail in our own country, during the whole administration of some late power-engrossing ministers. Compelled at all events to secure a majority in parliament to support themselves against the efforts of opposition, they found the greatest obstacle to their schemes arise from those principles of religion, which yet remained amongst the people. For though a great number of the electors were not at all averse to the bribe, yet their consciences were too tender to digest perjury. To remove this troublesome test at elections, which is one of the bulwarks of our constitution, would be impracticable. To weaken or destroy those principles, upon which the oath was founded, and from which it derived its force and obligation, would equally answer the purpose, and destroy all publick virtue at the same time. The bloody and deep felt effects of that hypocrisy, which prevailed in the time of Cromwell, had driven great numbers of the sufferers into the contrary extreme. When therefore so great a part of the nation was already prejudiced against whatever carried the appearance of a stricter piety, it is no wonder that shallow superficial reasoners, who have not logick enough to distinguish between the use and abuse of a thing, should readily embrace those atheistical tenets, which were imported, and took root in the voluptuous, and thoughtless reign of Charles the second. But that solid learning, which revived after the restoration, easily baffled the efforts of open and avowed atheism, which from that time has taken shelter under the less obnoxious name of deism. For the principles of modern deism, when stript of that disguise which has been artfully thrown over them, to deceive those who hate the fatigue of thinking, and are ever ready to admit any conclusion in argument, which is agreeable to their passions, without examining the premises, are in reality the same with those of Epicurus, as transmitted to us by Lucretius. The influence therefore, which they had upon the manners of the Greeks and Romans, will readily account for those effects which we experience from them in our own country, where they so fatally prevail. To patronise and propagate their principles, was the best expedient which the narrow selfish policy of those ministers could suggest. For their greatest extent of genius never reached higher, than a fertility in temporary shifts and expedients, to stave off the evil day of national account, which they so much dreaded. They were sensible that the wealth and luxury, which are the general effects of an extensive trade in a state of

profound peace, had already greatly hurt the morals of the people, and smoothed the way for their grand system of corruption. Far from checking this licentious spirit of luxury and dissipation, they left it to its full and natural effects upon the manners, whilst, in order to corrupt the principles of the people, they retained, at the publick expense, a venal set of the most shameless miscreants that ever abused the liberty of the press, or insulted the religion of their country. To the administration of such ministers, which may justly be termed the grand æra of corruption, we owe that fatal system of bribery, which has so greatly affected the morals of the electors in almost every borough in the kingdom. To that too we may justly attribute the present contempt, and disregard of the sacred obligation of an oath, which is the strongest bond of society, and the best security and support of civil government.

I have now, I hope, satisfactorily accounted for that rapid, and unexampled degeneracy of the Romans, which brought on the total subversion of that mighty republick. The cause of this sudden, and violent change of the Roman manners, has been just hinted at by the sagacious Montesquieu, but, to my great surprise, has not been duly attended to by any one historian I have yet met with.³²⁹ I have showed too, how the same cause has been working the same effects in our own nation, as it invariably will in every country where those fatally destructive principles are admitted. As the real end of all history is instruction, I have held up a just portrait of the Roman manners, in the times immediately preceding the loss of their liberty, to the inspection of my countrymen, that they may guard in time against those calamities which will be the inevitable consequence of the like degeneracy. The unpromising aspect of our affairs, at the time of the sudden and unexpected alliance between the houses of Bourbon and Austria, gave the first rise to these reflections. But as the interests and situation of this kingdom, with respect to France, are so greatly analogous to those of Carthage with respect to Rome, I shall proceed to compare the different manners, policy, and military conduct of those two rival nations. By thus comparing the different policy of these warlike people, whose views and interests were as diametrically opposite, and as irreconcilable as those of Great Britain and France, we may learn the superior advantages which each enjoyed, and the different disadvantages arising from their different policy, which each people laboured under, during their long and inveterate contests. The result, which I most sincerely wish from this inquiry, is, that we may

avoid those egregious blunders on the side of the Romans, which reduced them to the very brink of ruin, and those more capital defects on the part of the Carthaginians, which terminated in the utter destruction of their very being as a people.

CHAPTER VII.

CARTHAGINIANS AND ROMANS COMPARED.

THE origin of both these people seems alike to have been extremely low. Romulus, according to Dionysius of Halicarnassus, could form no more than three thousand foot and three hundred horse out of his whole people, where every individual was obliged to be a soldier. The Tyrians, who accompanied Dido in her flight from her brother Pymalion, could be but few in number from the very circumstances of their escape from an avaricious and vigilant tyrant.

Romulus, to supply this defect, not only opened an asylum for all fugitives, whom he admitted as subjects, but in all his conquests over the neighbouring states, annexed the lands to his own small territory, and incorporated the prisoners amongst his own Roman citizens. By this masterly policy, notwithstanding the number of men he must necessarily have lost during a warlike reign of thirty-seven years, he left at his death, according to Dionysius, forty-five thousand foot and a thousand horse. As the same policy was pursued under the republican as under the regal government, the Romans, though involved in continual wars, found themselves not inferior in number even to those nations, who were reputed the most populous. Dionysius, from whom I have taken this account, extols the policy of the Romans in this point as greatly superior to that of the Grecians. The Spartans, says that judicious historian, were obliged to give up their dominion over Greece by their single defeat at Leuctra; as the loss of the battle of Chæronea reduced the Thebans and Athenians to the sad necessity of yielding up the government of Greece, as well as their liberty, to the Macedonians. These misfortunes Dionysius imputes to the mistaken policy of the Grecians, who were, in general, unwilling to communicate the privileges of their respective states to foreigners. Whereas the Romans, who admitted even their enemies to the rights of citizenship, derived additional strength even from their misfortunes. And he affirms, that after the terrible defeat of Cannæ, where out of eighty-six thousand little more than three thousand three hundred and seventy men escaped, the Romans owed the preservation of their state, not to the benevolence of fortune, as some, he

says, imagine, but to the number of their disciplined militia, which enabled them to encounter every danger. I am sensible that the remarks of Dionysius, which have been adopted by many of our modern writers, are extremely just in relation to the Thebans and Athenians. Because as the former of these people endeavoured to extend their dominions by arms, the latter both by arms and commerce, both states ought, like the Romans, to have attracted as many foreigners as possibly they could, to enable them to execute plans which require an inexhaustible supply of people. But the exclusion of foreigners ought not, in my opinion, to be censured as a defect in the Spartan constitution. Because it is evident, from the testimony of Polybius and Plutarch, that the great end which Lycurgus proposed by his laws, was not to increase the wealth or power of his countrymen, but to preserve the purity of their manners; as his military regulations, according to the same authors, were not calculated for making conquests and serving the purposes of ambition, but for the defence and security of his republick. I observe too in proof of my opinion, that the Spartans gradually lost their virtue, and afterwards their liberty, only so far as they deviated from the institutions of their legislator.... But I return from the digression into which this subject unavoidably led me.

In our researches back into the remote times of antiquity, we must lay hold of whatever helps we are able to meet with. If Justin therefore is to be credited, Dido not only received considerable assistance from a colony of Tyrians which she found settled in Utica, but admitted great numbers of the natives who settled with her in the new city, and consequently became Carthaginians.³³⁰ I may add too in proof of this account, that unless the Carthaginians had long pursued this wise policy, it is scarce possible by the course of nature, that the Tyrians alone could have multiplied by propagation to so prodigious a degree, as to be able to furnish men sufficient to raise and carry on that extensive commerce, and plant those numerous colonies which we meet with in the earlier ages of their history.

As to their constitution, Rome and Carthage were both republicks, both free, and their form of government nearly similar, as far as we can collect from history. Two supreme magistrates,³³¹ annually elected, the senate, and the people, formed the body politick in each republick. The annual elections of their chief magistrates were a permanent source of division and faction alike in both; a defect which Lycurgus guarded against in the Spartan

government, where the chief magistracy was perpetual and hereditary. The senate in both nations was composed out of the most respectable and greatest men in each republick. At Rome the consuls chose the senators with the approbation of the people, but at last the censors arrogated that power to themselves. At Carthage, as Aristotle informs us, the senators were elected; but as he has nowhere told us who were the electors, it is most probable, that the right of election was the inherent privilege of the people, since he censures that republick as too much leaning towards democracy. At Rome, in the virtuous times of that republick, birth and merit alone entitled the possessor to a place in the senate, as well as the chief offices in the state. At Carthage, though birth and merit seem to have been qualifications indispensably necessary, yet even these could not succeed,³³² unless the candidate was at the same time master of such a fortune as would enable him to support his dignity with lustre.³³³ This Aristotle censures as a defect. For he looks upon all that merit, which was unsupported by the proper proportion of wealth, as so much lost to the Carthaginians; and he lays down that maxim in their government, as the real cause of that undue respect for wealth, and that lust of gain, which prevailed so much in that republick. But the sentiments of this philosopher, like those of his master Plato, are, I fear, too ideal to be reduced to practice. For he does not seem to attend to the different genius of different nations, but aims at adjusting the balance of power in his republick by the nice standard of philosophick theory. The genius of nations differs perhaps as much as their climate and situation, which seem (at least in some degree) to be the natural cause of that difference. The republicks of Sparta and Rome were both military, and military glory stamped the primary character of both these people. The republick of Carthage, like that of their ancestors, the Tyrians, was commercial. Hence the lust of gain marked their ruling character. Their military character arose from the necessity of defending that wealth which their commerce had acquired. Hence military glory was but a secondary passion, and generally subservient to their lust of gain. Unless we attend to the different ruling passion, which forms the different character of each republick, we shall never be able to make such a comparison as will do equal justice to each people. At Sparta and Rome wealth was despised, when put in competition with honour, and poverty joined with merit formed the most estimable of all characters. Quite different maxims prevailed at Carthage. Wealth with them was the chief support of merit, and nothing was

so contemptible as poverty. Hence the Carthaginians, who were well acquainted with the power and influence of wealth, required the additional qualifications of an ample fortune in all candidates for the senatorial dignity, and publick employments. For they judged that such men would be less exposed to the temptations of corruption, and at the same time more anxious for the welfare of a state, in which they were so deeply interested by their private property. That this was the real state of the case, at Carthage, notwithstanding the suggestions of Aristotle and the Greek and Roman historians, may, I think, be fairly proved from the behaviour of their senate and the choice of their officers, which ought certainly to be admitted as the best evidence. For we constantly find all their publick employments filled up with men of the greatest families, and (unless when the intrigues of faction sometimes prevailed) of the greatest abilities. We find in general the same firm and steady attachment to the service of their country, and the same indefatigable zeal for extending the territories and power of their republick. Nor does the most partial historian charge any one of them with sacrificing the honour and interest of his country to any foreign power for money: a practice which was shamefully common amongst the Roman generals in the time of Jugurtha. Hence we may, I think, assign the true reason, why the greatest families in Carthage (as we are informed by historians) thought it no way derogatory to their honour to engage in commerce. For as this is most probably to be understood of the younger sons of their nobility, the true motive seems to arise, not from avarice, as their enemies object, but from a view of raising such a fortune, as might qualify them for admission into the senate, or any of the great employments. Hence too it is evident, that a regulation which might be highly useful and salutary in an opulent commercial republick, would be greatly injurious to such military republicks as Rome and Sparta, by corrupting their manners. We need no other proof than the fate of those two republicks, who both owed their ruin to the introduction of that wealth, which was unknown to their virtuous ancestors. The Carthaginian senate seems to have been much more numerous than the Roman. For at Carthage there was a select standing committee established, of one hundred and four of the most respectable members, to keep a watchful eye over the great families, and repress any attempts which their ambition might make to subvert the constitution.³³⁴ To this committee all their commanding officers by sea and land, without exception, were obliged to give a strict account of

their conduct at the end of every campaign. We may therefore properly term it the Carthaginian court-martial. Out of this venerable body another select committee was formed of five members only, who were most conspicuous for their probity, ability, and experience. These served without fee or salary; as glory, and the love of their country, were esteemed motives sufficient to engage men of their superior rank and character, to serve the publick with zeal and fidelity.³³⁵ For which reason they were not chosen by lot, but elected by merit. Their power was very extensive. Their office was for life, and they filled up any vacancy in their own body, out of the one hundred and four, and all vacancies in that grand committee, out of the rest of the senate, by their own authority and at their own discretion.³³⁶ They were the supreme judges besides in all causes whatsoever without appeal. The institution of this grand committee, in my opinion, exceeded every thing in the Roman policy. For it preserved their state from all those violent concussions, which so frequently shook, and at last totally subverted the Roman republick.³³⁷ But the power of the committee of five was exorbitant, and dangerous to the lives and fortunes of their fellow-citizens. The proof is from fact. For at the conclusion of the second Punick war, they had made so arbitrary an use of their power, and were grown so odious to the people, that the great Hannibal regulated that amongst other abuses, and procured a law, which made that office annual and elective, with a clause forbidding any future alteration. Whether the Carthaginian senators enjoyed their seats for life, or whether they were liable to be expelled for any misdemeanour, and by whom, are points in which history is quite silent. At Rome, as the censors had the power of promoting to that dignity, so they had equally the power of expelling any member for bad manners, by the single ceremony of leaving out his name when they called over the list of the senate. I cannot help thinking this a great defect in the Roman polity: since it threw the power of garbling and modelling the senate into the hands of two men, who were liable to be corrupted to serve the ends of faction. A power which ought never to be lodged in so few hands in a country which enjoys the blessings of liberty. For how serviceable soever it might have been, as a curb to licentiousness in the earlier ages of that republick; yet Cicero, in his oration for A. Cluentius, inveighs bitterly against the abuse of the censorial power in his time, and gives several instances where it was made subservient to the ends of faction in modelling the senate. And he seems to fear that the censors list may bring as many calamities upon the citizens as

the late most inhuman proscription; and that the point of the censors pen may prove as terrible as the sword of their late dictator. C. Nepos, in the life of Hamilcar, takes notice of an officer of the same nature amongst the Carthaginians, to whose inspection the greatest men in that republick seem to have been subject. But it does not appear from history, whether his power extended so far as to expel a senator. Should a bad prince, or a wicked minister, ever be invested with the power of weeding the house, and modelling the parliament at pleasure, there would be an end of our constitution and liberty.

In the Roman senate all questions were decided (as in our parliament) by a majority of voices. At Carthage no law could pass, unless the senate were unanimous, like the Polish diet. One single veto from any one member, took the question out of the hands of the senate, and gave up the ultimate decision to the people, who were the *dernier resort* of all power. This Aristotle censures as inclining more towards democracy than was consistent with the just rules of a well regulated republick.³³⁸ Because the magistrates were not only obliged to open all the different opinions and debates of the senators upon the question, in the hearing of the people, who were the absolute and decisive judges in all these cases of appeal; but any one, even the lowest fellow in the mob, might freely give his opinion in opposition just as he thought proper. A source of endless discord, anarchy, and confusion! A kind of polity, as Aristotle observes, unknown in any other form of republican government.

In this point, I think the Roman polity far preferable to the Carthaginian, except in those abuses of the tribunitial power, which so frequently happened towards the decline of that republick. But when any one turbulent, seditious tribune, instigated by ambition, or corrupted by a faction (which in those times was generally the case) could by his single veto, stop all proceedings of the senate, and haul the case before the people; nay when he could drag the supreme magistrates, the consuls themselves, to prison, by his sole authority, and could commit the most outrageous, and most shameful acts of licentiousness with impunity, because their office rendered their persons sacred by law, I esteem the Carthaginian polity infinitely more eligible. For that fear and jealousy of ceding any part of the authority, which is so natural to men in power, would always be a strong motive to union in a Carthaginian senate; because it would naturally induce any member, rather to give up his private opinion, than suffer an essential

part of their power to devolve to the people. But the Roman tribunitial power, which was in constant opposition to the senatorial, drew at last by much too great a weight into the democrattick scale, and in the last period of their liberty was a principal leading cause of the ruin of that republick. For as the senate was unsupported by a third power so essentially requisite to preserve the balance of government in its due æquipoise, the tribunes perpetually fomented and kept up those terrible feuds, which brought on anarchy, and terminated in absolute insupportable tyranny.

The condition of the Roman populace before the erection of the tribunitial power, seems, in my judgement, to have been little better than that state of vassalage, which the peasants groan under in Poland. The relation between patron and client amongst the Romans, seems to be something analogous to the relation between lord and vassal, with this difference, that the client had the free choice of his patron, which the vassal has not with respect to the lord. At least it is certain, if we may credit the Roman historians, that their people were subject to equal, if not greater exactions and oppressions from the Patricians. How heavy these were, we may learn from the numerous mutinies, insurrections, and that great secession, which compelled the Patricians to create the tribunitial office in their favour. This new office occasioned a great revolution in their new government, and produced those perpetual conflicts between the aristocrattick and democrattick powers, which fill the history of that republick. The Patricians had recourse frequently to their only resource a dictator with absolute power, to defend them from the insolence of the tribunes. But this was only a temporary expedient. The people renewed their attacks, until they had abolished the distinct prerogatives arising from birth and family, and laid open all honours, even the consulship, and dictatorship, the supreme magistracy of all, to the free admission of their own body. The people were highly elated with these repeated victories, as they imagined them, over their old enemies the Patricians, but they were quickly sensible, that in fact, they were only the dupes of their ambitious leaders. The most opulent and powerful of the Plebeians, by serving the high offices of the state, acquired the title of nobles, in contradistinction to those, who were descended from the Patrician families, who still retained their ancient appellation. These new nobles, many of whom had crept into the senate, sided constantly with the Patricians in all disputes and contests with their former friends, the people, and were generally their greatest

enemies. The Patricians, strengthened by this new acquisition of power, were frequently too hard for the tribunes. In those memorable contests with the two Gracchi, who endeavoured in their tribuneship to revive the Agrarian law (calculated to divide the conquered lands among the poor citizens) the dispute seems to have lain wholly between the rich and the poor: for the nobles and rich Plebeians were as unwilling to part with their land, as the Patricians. This strengthened the Patricians so much, that they were able in each of those contests, to quell the efforts of the people by force, and quash the whole affair by the death of both the Gracchi.

It has been a general remark of most writers, both ancient and modern, that the Roman republic owed its preservation to the firmness and wisdom of the senate, and the subordinate obedience of the people: and that the republic of Carthage must ascribe its ruin to that ascendancy, which the people had usurped over the authority of the senate. The reverse of this seems to be the truth. We meet with but one instance in history, where the power of the Carthaginian people over-ruled the authority of their senate, so far as to compel them to act contrary to their opinion. This was that shameful violation of the law of nations in seizing the transports which were bringing necessaries to Scipio's camp, during the truce he had granted that they might send ambassadours to Rome to negotiate a peace with the Roman senate. For though they threatened violence to the senate, if they submitted to those hard terms which were imposed by Scipio after the defeat at Zama; yet they were easily reduced to obedience by Hannibal, and resigned the whole affair to the decision of the senate. The Roman history, on the contrary, is one continued detail of animosities, and frequently most bloody contests, between the senate and the people in their perpetual struggles for power. And the frequent elections of that low Plebeian Marius to the consular dignity, in opposition to the Patricians, (the malignant effects of the over-bearing power of the people) opened that scene of blood and anarchy, which ended only in the utter subversion of their liberty and constitution.

The judicious Montesquieu observes, "that the Carthaginians grew rich much sooner than the Romans, and consequently sunk much sooner into corruption." He adds too; "that whilst merit alone entitled the possessor to the great employments at Rome, every thing which the publick at Carthage had the power of bestowing, was venal."... The former part of this assertion is too general to be admitted without proper restrictions; the latter is a plain

transcript from Polybius. The Carthaginians must have been rich several ages before the Romans. For both Herodotus and Thucydides (who was but thirteen years younger) take notice of them as a very formidable maritime power, a circumstance which could only arise from their naval genius and extensive commerce. Yet we find no instance of their being corrupt, until the conclusion of the second Punick war, when Hannibal reformed those shameful abuses, which had crept into the management of the publick revenue, and restrained that power which the committee of five had usurped over the lives and fortunes of their fellow-citizens. As for the quotation out of Polybius, whose country was at that time a province to the Romans, with whom he resided only as a state prisoner; I esteem it as no more than a compliment to the Romans' vanity at the expense of the Carthaginians, whose very name was odious to that people. Or very probably he might bring that charge against the Carthaginians, as a hint to show the consequences of the same species of corruption, which, even in his time, had found entrance amongst the Romans.

As to religion, both nations were equally superstitious. If many of the religious ceremonies amongst the Romans were absurd and childish, it must be owned that the Carthaginian worship, like that of their ancestors the Canaanites, from whom they received it, was truly diabolical.³³⁹ But it is by no means candid to judge of the natural bent and temper of a people, from effects produced in their minds by superstition. For the same superstition which enjoins such horrid rites, will naturally place the chief efficacy of the sacrifice in the zeal and sincerity of the offerer. Consequently the highest degree of merit in such oblations, will consist in stifling every human affection, and over-ruling nature. Thus in the Carthaginian idolatry, the softer sex, as more susceptible of tenderness for their offspring, were required to attend in person. They were even compelled,³⁴⁰ upon this dreadful occasion, to affect all the joy and cheerfulness of festivity, because, as Plutarch informs us, if a sigh or a tear escaped them, the merit of the offering would be absolutely lost, and themselves liable to a fine. That the Carthaginians were no more void of parental affection than other nations, is evident from that pious fraud they had so long practised,³⁴¹ of secretly buying up poor children, whom they substituted as victims to their bloody deity instead of their own. But after a great defeat which they received from Agathocles, they attributed their ill fortune to the resentment of their god for their repeated sacrilege. They sacrificed two hundred children of the

first families in Carthage,³⁴² and three hundred other persons offered themselves as voluntary victims to atone for a crime, to which the highest degree of guilt was affixed by their impious religion. The Roman superstition must in general be acquitted of the charge of inhumanity. The only tendency towards it, was in the custom of inhuming alive such of the vestal virgins, as had violated their vow of chastity.³⁴³ But the bloody and frequent shows of the gladiators, which were the delight of the Romans, fix an indelible blot on the character of a brave people.³⁴⁴ Historians in general brand the Carthaginians with cruelty and inhumanity. If the charge is just, it must be chiefly attributed to that execrable custom of human sacrifices, which always prevailed amongst that people. Nor do I in the least doubt, but that savage ferocity, which the Romans were so guilty of in war, was in a great measure owing to those barbarous spectacles, where wounds, and murder in cold blood, made the most agreeable part of the entertainment.

As to publick virtue or love of their country, the Carthaginians were no way inferior to the Romans. The intrepid behaviour of the Philæni,³⁴⁵ two Carthaginian brothers, who consented to be buried alive to enlarge the boundaries of their country, equals the most heroick instance of that kind of enthusiasm, which the Roman story can boast of. The fate of Macheus, Bomilcar, Hanno, and others, afford undeniable proof, that neither birth, dignity, nor the greatest services, could screen that man from the most ignominious death, who made the least attempt to subvert the liberty of his country. I have before taken notice of the *punica fides*, or that proverbial want of sincerity, which has been so often objected by the Roman historians: but I cannot help observing with the more impartial Montesquieu,³⁴⁶ “that the Romans never made peace with sincerity and good faith, but always took care to insert such conditions as, in the end, proved the ruin of the people with whom they treated: that the peace they granted was no more than a politick suspension of arms, until an opportunity offered of completing their conquests: that it was their invariable maxim to foment divisions among the neighbouring powers, and by siding alternately with either party, as they found it most conducive to their own interest, play one against the other, until they had reduced all equally into provinces: that they frequently employed the subtilty and ambiguity of terms in their own language, to finesse and chicane in their treaties.” Thus they cheated the Ætolians by the ambiguous phrase of

yielding themselves up to the faith of the Roman people.³⁴⁷ The poor Ætolians imagined, that the term implied only alliance. But the Romans soon convinced them, that what they meant by it, was absolute subjection. They destroyed Carthage under sanction of the most vile equivocation,³⁴⁸ pretending, “that though they promised that deluded people to preserve their state, they did not mean to grant them their city, which word they had purposely omitted.” Maxims which the French have steadily and too successfully pursued, and are still pursuing!... Montesquieu very judiciously observes “... that the Romans were ambitious from the lust of domination: the Carthaginians from the lust of gain.” This accounts for the different reception which commerce met with in the two nations. At Carthage commerce was esteemed the most honourable of all employments. At Rome commerce was held in contempt. It was there looked upon as the proper occupation of slaves only, and disgraceful to a free citizen. Thus the one loved war for the sake of glory and acquiring dominion; the other looked upon war as a means of acquiring wealth, and extending commerce. The Romans plundered the vanquished enemy to make a parade with their wealth in the triumphal procession. The Carthaginians fleeced not only their enemies, but their tributary provinces, and oppressed their allies, to feed their own private avarice, as well as that of the publick. The oppressions of the Carthaginian generals in Spain lost them all their allies. The wiser policy of Scipio attached those allies unalterably to the Romans. The exactions of their rapacious governors in the African provinces, were the sources of perpetual revolts, upon the approach of any invader, from a desire of changing masters. When Scipio landed, he was joined by all those provinces, who looked upon the Romans as their deliverers. As soon as luxury had introduced avarice and corruption amongst the Romans, their generals and governours pursued the same destructive maxims, which was one leading cause of the final ruin of both the western and eastern empires.

There cannot be a stronger proof of a weak or a corrupt administration, than when indigent and necessitous men are appointed to the government of distant provinces, from no other motive than party merit, and with no other view than to raise a fortune at the expense of the people. Whether the wretched and defenceless condition in which the French found our colonies at the beginning of this war, ought not to be ascribed chiefly to this cause, is a question I shall wave at present. Because the evils we have already

suffered from former misconduct, will, I hope, be now removed, by a total alteration of measures under an able and honest administration.

It is remarkable, that not one of the historians who reproach the Carthaginians with corruption, were ever able to accuse them of luxury and effeminacy. The Carthaginians, to their immortal honour, stand single upon the records of history, “the only people in the universe, upon whom immense wealth was never able to work its usual effects.” The Romans, corrupted by wealth, quickly lost all pretensions both to publick and private virtue, and from a race of heroes, degenerated into a nation of the most abject slaves. The Carthaginian virtue was so far from degenerating that it shone brighter in the last period of their history, than in any of the former. Even the behaviour of their women in that long and brave defence of their city against the whole Roman power, equalled, or rather exceeded, that of the Roman matrons in those times, when they were most celebrated for publick virtue. When the Romans were masters of the city, one small part only excepted, and that part actually in flames, the generous wife of Asdrubal the chief commander,³⁴⁹ closed the scene by as desperate an act of heroick bravery, as can be met with in history. After she had upbraided her husband as a coward and a traitor for submitting to Scipio, she declared her determined resolution of dying free, and not surviving the fate of her country. She first stabbed both her children, and threw them into the flames; then leaped in after their bodies, and buried herself in the ruins of Carthage.

The sententious Montesquieu remarks,³⁵⁰ “that when Carthage made war with her opulence against the Roman poverty, her great disadvantage arose from what she esteemed her greatest strength, and on which she placed her chief dependence. The reason, as he judiciously observes, is evident. Gold and silver may be easily exhausted, but publick virtue, constancy, and firmness of mind, fortitude and poverty, are inexhaustible.” The Carthaginians in their wars employed foreign mercenaries. The Roman armies were composed of their own natives. A defeat or two at sea obstructed the Carthaginian commerce, and stopped the spring which supplied their publick exchequer. The loss of a battle in Africa, where their country was quite open, and destitute of fortresses, and the natives as much strangers to the use of arms as our own country people, reduced them to submit to whatever terms the victors thought proper to impose. Regulus, in the first Punick war, cooped up the Carthaginians in their capital, after he

had given them one defeat by sea, and one by land. The Romans, after receiving four successive defeats from Hannibal, the last of which was the fatal battle of Cannæ, where they lost most of their best officers, and all their veteran troops, would hearken to no terms of accommodation, and even sent re-enforcements to Spain and other places, though Hannibal was at their gates. The reason is plain. The citizens of Carthage consisted chiefly of unarmed, and undisciplined tradesmen. The citizens of Rome, without distinction, composed a regular body of disciplined militia.... A short comparison between the Roman and Carthaginian polity, with respect to the military of each people, will easily point out to us the true cause which gave the Romans their manifest superiority.

I have already taken notice of some capital defects of the Carthaginians, both in their marine and military departments. Montesquieu imputes several capital errors to the Romans, but he attributes their preservation after the defeat at Cannæ, when they were at the very brink of ruin, to the force of their institution. He seems to place this force in the superior wisdom and firmness of the Roman senate. A short inquiry into their conduct, during the second Punick war, will show that the cause of their preservation at that time must be ascribed to a very different principle, and that Montesquieu too hastily adopted that opinion from the Greek and Roman historians.

If we examine the boasted behaviour of the Roman senate, from the first attack of Saguntum to the memorable battle of Cannæ, we shall find it to consist of one continued series of blunders, which carry all the marks of weak, factious, and divided counsels. The Romans had certain intelligence of Hannibal's design of attacking them in Italy. This was no secret in Spain, where every preparation, and every motion of Hannibal's was directed to that point of view. The Romans were certainly jealous of such a design, when they sent ambassadours to Hannibal, to inform him, that if he passed the Iberus, and attacked the Saguntines, they should look upon it as a declaration of war. When they had received an evasive answer from Hannibal, they crossed over to Africa, and made the same declaration to the Carthaginian senate. When Hannibal laid siege to Saguntum, did the Romans act up to their formidable declaration, or did they send a single man to the assistance of those faithful allies? just the reverse; they wasted nine months, the time the siege lasted, in useless debates, and fruitless embassies. They sacrificed that faithful and heroick people, together with their own interest and character, by their folly and irresolution.³⁵¹ For if

they had sent a powerful army at first, they might have saved Saguntum, or at least confined the war to Spain, and prevented it from penetrating into their own bowels. After Hannibal had laid Saguntum in ashes, did the boasted wisdom and firmness of the Roman senate appear in more vigorous, or more politick measures? They again employed a whole winter in a wise embassy to Carthage, to just as little purpose as the former, and gave Hannibal all the time he could wish to prepare for his expedition. When Hannibal was on his march for Italy, instead of shutting up the passages of the Alps, which would easily have defeated that daring enterprise, they ordered the consul Scipio, with his army, to oppose his passage over the Rhone. The consul came just in time enough to learn, that such dilatory measures would never check the progress of so active and vigilant an enemy, who had already passed that river, and was on his march for the Alps.³⁵² The consul immediately re-embarked his troops, and hastened to meet him in his descent from those mountains. But Hannibal was already near the banks of the Po, where the consul attacked him, but was defeated and dangerously wounded. The senate, alarmed at Hannibal's passage over the Alps, which they had taken no precaution to prevent, sent in a great fright for the other consul Sempronius, with his army, out of Sicily. He arrived, and joined his wounded colleague Scipio, who was an able officer, and having learnt, by experience, how dangerous an enemy they had to cope with, advised caution and prudence in all their operations. But Sempronius, vain, rash and ignorant, was deaf to all salutary advice, which he ridiculed as the effect of fear. Hannibal, who never inquired into the number of his enemies, but studied only the foibles of their commanders, directed all his operations upon that principle. He applied therefore to the foible of Sempronius, which he was soon master of, drew him into a snare, and cut off almost his whole army. The senate was dreadfully frightened at this second defeat; but to mend the matter, they suffered Flaminius, a man more vain, more headstrong, and more rash than Sempronius, to be chosen consul, and sent against Hannibal. As he acted upon the same principles, he ran headlong into the trap laid for him by his artful enemy, and lost his life together with his whole army. Though this terrible blow threw the Romans into inexpressible consternation, yet it seems to have brought them to their senses. For they at last created the celebrated Fabius dictator, who was the only Roman commander capable of opposing Hannibal. Yet even here they could not help giving another

instance of their folly, by forcing Minucius upon him for his general of horse, a man of the same character with Sempronius or Flaminius. Fabius acted upon a quite different plan. He knew the danger and folly of opposing new raised troops to veterans, flushed with repeated victories, and commanded by so consummate a general. He therefore opposed art to art, watched every motion of his enemy, and cut off his foragers. Hannibal, whose army was composed chiefly of soldiers of fortune out of different nations, connected to him by no other tie than the hopes of plunder, and their esteem for his personal abilities, was sensible, that such a conduct in his enemy would quickly put an end to all his hopes in Italy. He tried therefore every art he was master of to bring Fabius to a battle; but the wary Roman convinced him, that he knew his trade too well to deviate from that plan, which alone could save his country. Though Hannibal did justice to those fine strokes of his antagonist, yet they were too delicate for the eyes of the Romans. They were disgusted at his conduct, because they wanted capacity to understand it, and gave credit to the idle boasts of Minucius, though they had already suffered so severely by trusting men of his genius. Yet, by the most unaccountable folly, they raised Minucius to an equality of power with Fabius; and Rome, for the first time, saw two dictators vested with unlimited authority. The wiser Fabius, though amazed at the stupidity of his countrymen, adhered steadily to his first plan. He gave up half the army to the command of his new colleague, but was determined to preserve the other moiety at least, upon which so much depended. Hannibal was sensible that the Romans could not have done him a more essential piece of service, unless they had recalled Fabius. He immediately threw out a bait for Minucius, which that rash, unthinking commander as greedily bit at. He fell into the trap laid for him by the crafty Hannibal; was enveloped by the Carthaginians, and must inevitably have perished, with all the troops under his command, if Fabius had not flown to his assistance, repulsed the enemy, and rescued him from the most imminent danger of death or captivity. Though Fabius had been so ill used by his countrymen in general, and by his colleague Minucius in particular, yet he showed, by this generous action, a greatness of soul superior to private resentment, and every selfish passion, which he was always ready to sacrifice to the publick welfare. Minucius indeed felt the force of the obligation, as well as of his own incapacity: he nobly acknowledged it in the strongest terms, and returned to his former post and duty to his abler commander. But this heroick behaviour

of Fabius seems to have made no more impression upon his countrymen, than his masterly conduct. Two new consuls were chosen, to whom he resigned his authority and army, and retired to Rome neglected and unemployed. The new consuls followed the advice of Fabius, and avoided coming to action, which distressed Hannibal extremely. But the following year exhibits such a masterpiece of folly and stupidity in that Roman senate, whose firmness and wisdom are so much boasted of by historians, and such infatuation in the body of the Roman people as would seem incredible, if the facts, as handed down to us by their own historians themselves, did not prove it beyond a possibility of doubt or contradiction. Determined to drive Hannibal out of Italy, and put a speedy end to so ruinous a war, they raised one of the mightiest armies they had ever yet brought into the field, and employed in it every officer of note or distinction at that time in Rome, the great Fabius alone excepted. This was the last stake of the Romans, upon which their all was ventured. But where does the boasted wisdom of the senate appear in the management of this affair, which was of the last importance? Of the two consuls, Paulus Æmilius, the one, was a respectable man, and an experienced officer: Terentius Varro, the other, was a fellow of the lowest extraction, who, by noise and impudence, had raised himself to the tribuneship, was afterwards made prætor, and, by the assistance of one Bebius, his relation, at that time a tribune of the people, had forced himself into the consular dignity. This wretch, who had but just talents sufficient for a captain of the mob, who had never seen an action (nor perhaps an army) in his life, had the impudence to censure the conduct of Fabius, and to boast in the senate, that he would immediately drive Hannibal out of Italy. The wise senate were not only so weak as to believe, but, in opposition to all the remonstrances of Fabius, even to trust such an empty coxcomb with an equal share in the command. They even gave the consuls orders to fight the enemy without delay, so great was their confidence in the gasconading Varro. Hannibal at that time was so greatly distressed for want of provisions, that his Spanish troops begun to mutiny, and talked openly of revolting to the Romans, and he himself had thoughts of retiring into Gaul for his own personal safety. Æmilius, who endeavoured in every point to follow the advice of Fabius, declined fighting, and was convinced by his intelligence, that Hannibal could not subsist his troops above ten days longer. But Varro was alike deaf to reason or persuasion. Debates at last run so high between the consuls, that repeated expresses were sent to the senate

by Æmilius for fresh orders. Had the senate acted with that prudence, which has been so loudly celebrated by historians, they would certainly have created Fabius dictator at that critical juncture, which would have put an end to the differences and authority of the consuls. For how could they reasonably hope for success, whilst the army was commanded by two generals, vested with equal power, who differed as widely in opinion as in temper? But their chief view at that time seems to have been to mortify Fabius, and to that favourite point they wilfully sacrificed the publick honour and safety.³⁵³ Æmilius at last returned to Rome, and laid the whole affair before the senate. But Varro's party proved the majority, and orders were renewed for fighting, but not immediately. Æmilius still declined fighting, and followed the advice of Fabius, but the alternate command of the two consuls, which took place every day, defeated all his measures. Varro, on the day of his command, marched the army so close to the enemy, that it was impossible to retire without fighting. This imprudent step brought on the famous battle of Cannæ, where Hannibal, whose whole force scarce equalled the moiety of the Romans, gave them the most remarkable defeat we ever read of in their history. Polybius, and after him the rest of the historians, impute this defeat to the great superiority of the Carthaginian army in horse, and the ignorance of Varro in pitching upon a plain open country for the field of battle, where Hannibal could employ his cavalry to the best advantage. That the Carthaginian horse was superior to the Roman in goodness, is readily admitted. But if we compute the number of the cavalry of the Romans, and that of their allies, as given us by Polybius himself, we shall find the difference in each army amounted but to four thousand; so small an advantage therefore, in point of number, could never possibly have turned the scale in favour of Hannibal when the Romans had such prodigious odds in the number of their infantry, who showed themselves no way inferior to Hannibal's foot, either in bravery or intrepidity. The true reason was, the infinite superiority of Hannibal in point of generalship. That consummate leader, by a most exquisite disposition of his troops, a *manœuvre* much too fine for the eyes of the Roman generals, caught their whole infantry fairly in a trap (though in a plain level country) where they were almost to a man cut to pieces, or taken. Æmilius, and all the other general officers, with seventy thousand Romans, lay dead upon the field of battle after a brave and obstinate resistance.³⁵⁴ The infamous Varro, that base minded fellow, as Polybius terms him,³⁵⁵ who commanded

the cavalry of the allies on the left wing, behaved like a true bully in the face of danger. He fled almost at the first attack, and rather chose to live with infamy than die with honour. When the fatal news reached the city of Rome, both senate and people gave up all hopes of safety. Fabius alone took the lead, and acted with his usual firmness and calmness upon this occasion. He placed guards at the gates to prevent the desertion of the citizens, who were flying in great numbers to escape the conquerors, whom they expected every moment. He confined the women to their houses, who had filled the city with lamentations. He manned the walls and outworks, and took every other precaution which the shortness of the time would admit of. All resigned themselves implicitly to his conduct, and he acted for the time as sole governor. Many of the senators, and principal of the Roman nobility, were in actual consultation about leaving Italy, and retiring elsewhere for safety. But they were prevented, as Livy informs us, by the terrible threats of young Scipio, and compelled to stay and share the fate of their country.³⁵⁶ Hannibal has been greatly censured for not attacking Rome itself immediately after the battle, and is accused of not knowing how to make the proper use of a victory, though he knew so well how to conquer. The candid Montesquieu acquits him of this charge. His reasons are, that though Rome at that time was in the highest degree of consternation, yet the effects of fear upon a warlike people, inured to arms like the Romans, and a low undisciplined rabble, who are strangers to the use of arms, are very different. In the former, who are conscious of their own strength, it almost always changes into the most desperate courage. In the latter, who feel their own weakness too sensibly, it dispirits so much as to render them incapable of resistance. Hence he gives it as his real opinion, that Hannibal would have failed of success if he had undertaken the siege of that city. His proof is, because the Romans at that very time were able to send sufficient succours, drawn from their own citizens, to every part where they were then wanted. Thus Rome was saved, not by the wisdom or firmness of the senate, but the prudence and magnanimity of one old officer, whom they despised and hated, and the intrepidity of a boy of eighteen, joined, as I observed before from Dionysius, to the force of that part of their institution, which formed the whole body of their citizens into a militia, ever ready, and capable of taking the field as soldiers. All the Roman armies, which were opposed to Hannibal, were drawn out of this militia. Nor do we meet with one instance of cowardice, or ill-behaviour amongst the men, but rather of

intrepidity even to rashness, which used to be the characteristick of the British nation. Polybius, who was at least as able a judge of the military as any man of that age, and who lived very near the time of the Hannibalick war (as he terms it) is loud in his praises of the Roman troops, whose infantry he prefers greatly to the Carthaginian mercenaries.³⁵⁷ Nor does he once impute any of their defeats to the fault of their men, but invariably to the folly and incapacity of their commanders.

Upon the whole, the great defect in the Carthaginian military institution consisted in the want of a national militia, which, as Polybius observes, was the reason of their employing foreign mercenaries. The capital defects in the Romans lay in that equality of power with which each consul was vested in the field, and the short duration of their command, as their office was only annual. Every battle which the Romans lost to Hannibal except the first, may be fairly ascribed to the former of these causes. The defeats of Trebia and Thrasymene were plainly occasioned by the jealousy of one of the consuls, lest the other should share with him in the glory of beating Hannibal; as the want of harmony, and difference of opinion between the two consuls, was the primary cause of the dreadful defeat at Cannæ. To the latter cause we may justly attribute the long duration of the Hannibalick war. When the great man, who entered Italy with no more than twenty thousand foot and six thousand horse, maintained his ground above sixteen years, without any assistance from Carthage, against the whole united force and efforts of the Romans, by the mere strength of his own extraordinary genius. For as every man, who had interest sufficient to obtain the consulship, was immediately vested with the command of an army, however qualified or not, so he was obliged to resign his command at the end of the year, before he had well time to be thoroughly acquainted with the true method of dealing with his enemy. Thus every new successive commander, amongst the Romans, had the same task to begin afresh at the opening of every campaign. I know that political writers ascribe this mistaken policy to that jealousy, and fear of lodging so much power in so few hands for any length of time, which is so natural to all republican governments. And that the office of dictator was contrived as a remedy against any abuse, or inconveniency, which might at any time arise from the consular power. But the event showed, that the remedy was much worse than the disease. Whilst publick virtue existed, the office of dictator was frequently useful. But when luxury had introduced corruption, the *pro*

tempore dictator soon came to be perpetual, and the perpetual dictator terminated in a perpetual and despotick emperor.

At Carthage their military institution was entirely different. The power of the generals in the field was absolute and unlimited; and, if their conduct was approved of, generally continued to the end of whatever war they were engaged in. They had no occasion for the dangerous resource of a dictator. The watchful eye of their standing court-martial, the committee of one hundred and four of their ablest senators, was a perpetual, and never-failing check upon their ambition, or ill behavior of their generals.³⁵⁸ The sacred cohort amongst the Carthaginians, consisted of a large body of volunteers of the richest and greatest families of the nation. This wise and noble institution was one of the chief supports of the Carthaginian state; and as it was the constant seminary of their officers and commanders, might very probably be one cause why luxury and effeminacy could never obtain footing in that warlike republick. For we always find this generous body giving the most signal instances of bravery and conduct,³⁵⁹ and bearing down all before them.... Nor did they ever quit the field of battle, until they were deserted by the rest of the army, and even then generally retired in excellent order.

The Romans were gradually trained up, from the very infancy of their republick, in long and obstinate wars with their Italian neighbours, who were masters of the same arms and disciplines, and were no way their inferiors in bravery. Nor did they perfect themselves in the art of war, until they learned it by bloody experience from Pyrrhus, the most consummate captain of that age. The Carthaginians were only exercised in war with the wild undisciplined Africans, or the irregular Spaniards, nor were they able with their numerous fleets and prodigious armies to complete the reduction of that part of Sicily, which was inhabited by Grecian colonies, who retained their native arms and discipline. Hence arose the great superiority of the Romans, both in soldiers and commanders. Though the Barcan family produced some great officers, who at least equalled the ablest generals Rome could ever boast of.

It is evident from the course of this inquiry, that the ruin of the Roman republick arose wholly from internal causes. The ruin of Carthage was owing remotely to internal, but immediately to external. The Plebeian faction reduced Rome to the verge of ruin at the battle of Cannæ, and a

complication of factions completed the subversion of that republic under the two triumvirates. The envy and jealousy of the Hannonian faction deprived Carthage of all the fruits of Hannibal's amazing victories and progress, and paved the way for the utter excision of their very name and nation by the Roman arms. Such are the direful effects of faction, when suffered to run its natural lengths without control, in the most flourishing and best constituted government!...

CHAPTER VIII.

OF REVOLUTIONS IN MIXED GOVERNMENTS.

POLYBIUS remarks,³⁶⁰ that the best form of government is that which is composed of a due admixture of monarchy, aristocracy and democracy. He affirms that his assertion may not only be proved from reason, but from the evidence of fact, and cites the Spartan constitution in proof, which was modelled upon that very plan by Lycurgus. He adds too, that to perpetuate the duration of his government,³⁶¹ he united the peculiar excellencies of all the best governments in one form, that neither of the three parts, by swelling beyond its just bounds, might ever be able to deviate into its original inborn defects: but that whilst each power was mutually drawn back by the opposite attraction of the other two, neither power might ever preponderate, but the balance of government continue suspended in its true æquipoise.

From the observance of this nice adjustment of the balance of government, he foretells the duration or fall of all mixed governments in general. He adds, that as all government arises originally from the people; so all mutations in government proceed primarily from the people also. For when once a state has struggled through many and great difficulties, and emerged at last to freedom and wealth, men begin to sink gradually into luxury, and to grow more dissolute in their morals. The seeds of ambition will spring up, and prompt them to be more fond of contending for superiority in the magistracy, and carrying their point, in whatever they had set their hearts upon, than is consistent with the welfare of the community: when once these evils are got to a head in a country so circumstanced, the change must necessarily be for the worse; because the principle of such change will rise from the gratification, or disappointment of the ambition of the chief citizens, with respect to honours and preferments; and from that insolence and luxury arising from wealth, by which the morals of the private people will be totally corrupted. Thus the change in government will be primarily effected by the people. For when the people are galled by the rapine and oppression of those in power, arising from a principle of avarice;

and corrupted, and elated with an undue opinion of their own weight, by the flatteries of the disappointed, which proceed from a principle of ambition, they raise those furious commotions in the state, which unhinge all government. These commotions first reduce it to a state of anarchy, which at last terminates in absolute monarchy and tyranny.

I have here given the sentiments of Polybius (and almost in his own words) from that excellent dissertation on government, preserved to us in the sixth book of his history, which I would recommend to the perusal of my countrymen. He there traces government up to its first origin. He explains the principles, by which different governments arose to the summit of their power and grandeur, and proves, that they sunk to ruin by a more or less rapid progress, in proportion as they receded more or less from the first principles on which they were originally founded. He survived the ruin of all the Grecian republicks, as well as Carthage, and lived (as he more than once tells us) to see the Romans masters of the known world. Blest with parts and learning superior to most men of his time, joined to the most solid judgment, and the experience of eighty-two years; no man better understood the intrinsick nature of government in general. No man could with more certainty foretel the various mutations, which so frequently happen in different forms of government, which must be ever in a fluctuating state, from the complicated variety of the human passions. Nor can any man give us better hints, than he has done, for guarding against the effects of those dangerous passions, and preserving the constitution of a free people in its full force and vigour. Of all the legislators (which he knew of) he prefers Lycurgus, whom he looks upon rather as divinely inspired, than as a mere man. He esteems the plan of government, which he established at Sparta, the most perfect, and proposes it as a general model worthy the imitation of every other community; and he remarks, that the Spartans, by adhering to that plan, preserved their liberty longer than any other nation of the known world.

I cannot help observing upon this occasion, that our own constitution as settled at the revolution, so nearly coincides with Lycurgus's general plan of government (as laid down by Polybius) where the monarchy was for life, and hereditary, that it seems, at first sight, to have been formed by that very model. For our plan of government intended to fix and preserve so just a proportion of the monarchick, aristocrattick, and democrattick powers, by their representatives, king, lords, and commons; that any two of those

powers might be able jointly to give a check to the other, but not to destroy it, as the destruction of any one power must necessarily induce a different form of government. This is the true basis of the British constitution, the duration of which must absolutely depend upon the just equilibrium preserved between these three powers. This consequently is the unerring test, by which every unbiassed and attentive considerer may judge, whether we are in an improving state, or whether, and by what degrees, we are verging towards ruin. But as I aim at reformation not satire; as I mean no invidious reflections, but only to give my sentiments with that honest freedom, to which every Briton is entitled by birthright, I shall just state from Polybius, the means by which all mixed governments have originally deviated from those first principles, which were the basis of their rise and grandeur: how by this deviation they tended towards their decline, and that those means acquiring additional force from that very decline, necessarily produced those evils, which accelerated the destruction of every free people. As the remarks of this most judicious historian, are founded upon long experience, drawn from undeniable facts, to many of which he himself was eyewitness,³⁶² they will not only carry greater weight, but will enable us to form a right judgment of our own situation, as it is at present circumstanced.

Polybius observes, that of all the mixed governments ever known to him, that of Lycurgus alone was the result of cool reason and long study. The form of the Roman republick, on the contrary, was the production of necessity. For the Romans came at the knowledge of the most proper remedies for all their political evils, not by dint of reasoning, but by the deep felt experience of the many and dangerous calamities, with which they had so long and so often struggled. I do not in the least doubt, but that excellent form of government established by our rude Gothick ancestors, wherever their arms prevailed, arose from the same cause, necessity founded upon experience. Every mixed government therefore, where the three powers are duly balanced, has a *resource* within itself against all those political evils to which it is liable. By this *resource*, I mean, that joint coercive force, which any two of these powers are able to exercise over the other. But as nothing but necessity can authorize the exercise of this power, so it must be strictly regulated by those principles, on which the government was founded. For if by an undue exercise of this power, any one of the three should be diminished, or annihilated, the balance would be

destroyed, and the constitution alter proportionally for the worse. Thus in Denmark, where the monarchy was limited and elective, the people, exasperated by the oppressions of the nobility, who had assumed an almost despotick power, out of a principle of revenge threw their whole weight into the regal scale. Frederick the third, (the then reigning monarch) strengthened by this accession of power and the assistance of the people, compelled the nobility to surrender their power and privileges. In consequence of this fatal step taken by the people, the monarchy, in the year 1660, became absolute and hereditary. Lord Molesworth observes upon this occasion, in his account of Denmark, that the people of Denmark have since felt by sad experience, that the little finger of an absolute prince is heavier than the loins of a hundred nobles.

The late revolution of government in Sweden, though arising from the same principles, took a very different turn. Charles the twelfth, brave even to enthusiasm, and as insatiably fond of glory as the ambitious Alexander, had quite tired out and exhausted his people, by his destructive expeditions. But when that fortunate shot from the town of Frederickshal gave repose to his own country as well as to a great part of Europe, the states of Sweden, no longer awed by a warlike monarch (who had usurped a despotick power) and a veteran army, again resumed the exercise of their own inherent powers. Stimulated by a desire of vengeance for the evils they had already suffered, and the fear of smarting again under the same evils, they beheaded Gortz, the minister of their late monarch's oppressions, and left the crown no more than the bare shadow of authority. For though they continued the monarchy for life and hereditary, yet they imposed such rigid terms upon their succeeding kings, as reduced them to a state of dependance and impotence nearly equal to a doge of Genoa or Venice. We see, in both these instances, the revolution in government effected by the union of two powers of the government against the third. The catastrophe indeed in both nations was different, because that third power which was obnoxious to the other two, was different in each nation. In the former of these instances, the people, fired with resentment against the nobility, and instigated by secret emissaries of the crown, blindly gave up their whole power to the king, which enabled him to deprive the nobility (the second estate) of their share of power, and bring the whole to centre in the crown. Thus the government in Denmark was changed into absolute monarchy. In the latter, the senate took the lead during the *interregnum*, which followed the death of Charles,

and changed the government into aristocracy. For though the outward form of government indeed is preserved, yet the essence no longer remains. The monarchy is merely titular, but the whole power is absorbed by the senate, consequently the government is strictly aristocratick. For the people were by no means gainers by the change, but remain in the same state of servitude, which they so much complained of before. Thus in all revolutions in mixed governments, where the union of two injured powers is animated by the spirit of patriotism, and directed by that salutary rule before laid down, which forbids us to destroy, and only enjoins us to reduce the third offending power within its proper bounds, the balance of government will be restored upon its first principles, and the change will be for the better. Thus when the arbitrary and insupportable encroachments of the crown under James the second, aimed so visibly at the subversion of our constitution, and the introduction of absolute monarchy; necessity authorized the lords and commons (the other two powers) to have *recourse* to the joint exercise of that restraining power, which is the inherent *resource* of all mixed governments. But as the exercise of this power was conducted by patriotism, and regulated by the above-mentioned rule, the event was the late happy revolution; by which the power of the crown was restrained within its proper limits, and the government resettled upon its true basis, as nearly as the genius of the times would admit of. But if the passions prevail, and ambition lurks beneath the mask of patriotism, the change will inevitably be for the worse. Because the restitution of the balance of government, which alone can authorize the exercise of the two joint powers against the third, will be only the pretext, whilst the whole weight and fury of the incensed people will be directed solely to the ends of ambition. Thus if the regal power should be enabled to take the lead by gaining over the whole weight of the people, the change will terminate in absolute monarchy; which so lately happened in Denmark, as it had happened before in almost all the old Gothick governments. If the aristocratick power, actuated by that ambition, which (an extreme few instances excepted) seems inseparable from the regal, should be able to direct the joint force of the people against the crown, the change will be to an aristocratick government, like the present state of Sweden, or the government of Holland, from the death of William the third, to the late revolution in favour of the stadtholder. If the power of the people impelled to action by any cause, either real or imaginary, should be able to subvert the other two, the

consequence will be, that anarchy, which Polybius terms, the ferine and savage dominion of the people.³⁶³ This will continue until some able and daring spirit, whose low birth or fortune precluded him from rising to the chief dignities of the state by any other means, puts himself at the head of the populace inured to live by plunder and rapine, and drawing the whole power to himself, erects a tyranny upon the ruins of the former government; or until the community, tired out and impatient under their distracted situation, bring back the government into its old channel. This is what Polybius terms the circumvolution of governments;³⁶⁴ or the rotation of governments within themselves until they return to the same point. The fate of the Grecian and Roman republics terminated in the former of these events. The distracted state of government in this nation, from 1648, to the restoration of Charles the second, ended happily in the latter, though the nation for some years experienced the former of these catastrophes under the government of Cromwell.

I have here given a short, but plain general analysis of government, founded upon experience drawn from historical truths, and adapted to the general capacity of my countrymen. But if any one desires to be acquainted with the philosophy of government, and to investigate the ratio and series of all these mutations, or revolutions of governments within themselves, I must (with Polybius) refer him to Plato's republick.

The plan of a good and happy government, which Plato lays down, by the mouth of Socrates, in the former part of that work, is wholly ideal, and impossible to be executed, unless mankind could be new moulded. But the various revolutions of government (described above) which he treats of in the latter part, was founded upon facts, facts which he himself had been eyewitness to in the numerous republics of Greece and Sicily, and had fatally experienced in his own country Athens. The divine philosopher, in that part of his admirable treatise, traces all these mutations up to their first source, "the intemperance of the human passions," and accounts for their various progress, effects and consequences, from the various combinations of the same perpetually conflicting passions. His maxims are founded solely upon the sublimest truths, his allusions beautiful and apposite, and his instructions alike applicable to publick or private life, equally capable of forming the statesman or the man.

CHAPTER IX.

OF THE BRITISH CONSTITUTION.

XENOPHON observes,³⁶⁵ that if the Athenians, together with the sovereignty of the seas, had enjoyed the advantageous situation of an island, they might with great ease have given law to their neighbours. For the same fleets which enabled them to ravage the seacoasts of the continent at discretion, could equally have protected their own country from the insults of their enemies as long as they maintained their naval superiority. One would imagine, says the great Montesquieu,³⁶⁶ that Xenophon in this passage was speaking of the island of Britain. The judicious and glorious exertion of our naval force under the present ministry, so strongly confirms Xenophon's remark, that one would imagine their measures were directed, as well as dictated, by his consummate genius. We are masters both of those natural and acquired advantages, which Xenophon required to make his countrymen invincible. We daily feel their importance more and more, and must be sensible that our liberty, our happiness, and our very existence as a people, depend upon our naval superiority supported by our military virtue and publick spirit. Nothing, humanly speaking, but luxury, effeminacy and corruption, can ever deprive us of this envied superiority. What an accumulated load of guilt therefore must lie upon any future administration, who, to serve the ends of faction, should ever precipitate Britain from her present height down to the abject state of Athens, by encouraging those evils to blast all publick virtue in their unlimited progress.

As Britain is so confessedly superior to all the maritime powers of the ancients by the advantages of situation; so the British constitution, as settled at the revolution, is demonstrably far preferable to, and better formed for duration, than any of the most celebrated republicks of antiquity. As the executive power is vested in a single person, who is deemed the first branch in the legislature; and as that power is for life and hereditary; our constitution is neither liable to those frequent convulsions, which attended the annual elections of consuls, nor to that solecism in politicks, two supreme heads of one body for life, and hereditary, which was the great

defect in the Spartan institution. As the house of commons, elected by, and out of the body of the people, is vested with all the power annexed to the tribunitial office amongst the Romans; the people enjoy every advantage which ever accrued to the Roman people by that institution, whilst the nation is secure from all those calamitous seditions, in which every factious tribune could involve his country at pleasure. And as all our questions in parliament are decided by a majority of voices; we can never be subject to that capital defect in the Carthaginian constitution, where the single *veto*, of one discontented senator, referred the decision of the most important affair to a wrong-headed, ungovernable populace. The house of peers is placed in the middle of the balance, to prevent the regal scale from preponderating to despotism or tyranny; or the democratical to anarchy and its consequences. The equitable intent of our laws is plainly calculated, like those of Solon, to preserve the liberty and property of every individual in the community; and to restrain alike the richest or the poorest, the greatest or the meanest, from doing or suffering wrong from each other. This is the wise and salutary plan of power established at the revolution. Would we always adhere steadily to this plan, and preserve the just æquilibrium, as delivered down to us by our great ancestors, our constitution would remain firm and unshaken to the end of time.

I have already showed in the course of these papers that, since that ever memorable æra, we suffered some breaches to be made in the most interesting part of this constitution, not by the hand of open violence, but by the insidious, and consequently more dangerous arts of corruption. The great increase in our commerce after the peace of Utrecht, brought in a vast accession of wealth; and that wealth revived, and gradually diffused that luxury through the whole nation, which had lain dormant during the dangerous reign of James the second, and the warlike reigns of William and Ann. To this universal luxury, and this only, we must impute that amazing progress of corruption, which seized the very vitals of our constitution. If therefore we impartially compare the present state of our own country with that of Rome and Carthage, we shall find, that we resemble them most when in their declining period.

To the commercial maxims of the Carthaginians, we have added their insatiable lust of gain, without their economy, and contempt of luxury and effeminacy. To the luxury and dissipation of the Romans, we have joined their venality, without their military spirit: and we feel the pernicious effects

of the same species of faction, which was the great leading cause to ruin in both those republicks. The Roman institution was formed to make and to preserve their conquests. Abroad invincible, at home invulnerable, they possessed all the resources requisite for a warlike nation within themselves. The military spirit of their people, where every citizen was a soldier, furnished inexhaustible supplies for their armies abroad, and secured them at home from all attempts of invasion. The Carthaginian was better calculated to acquire than to preserve. They depended upon commerce for the acquisition of wealth, and upon their wealth for the protection of their commerce. They owed their conquests to the venal blood and sinews of other people, and, like their ancestors the Phœnicians, exhibited their money-bags as symbols of their power. They trusted too much to the valour of foreigners, and too little to that of their own natives. Thus whilst they were formidable abroad by their fleets and mercenary armies, they were weak and defenceless at home. But the event showed, how dangerous it is for the greatest commercial nation to rely on this kind of mercantile policy; and that a nation of unarmed undisciplined traders can never be a match, whilst they are so circumstanced, for a nation of soldiers. About two centuries ago a handful (comparatively speaking) of rude irregular Tartars subdued, and still enjoy the dominion of China, the most populous, and the richest commercial empire in the universe. And a neighbouring mercantile republick, by adhering too closely to these maxims, is at this time neither respected by her friends, nor feared by her enemies.

The English constitution was originally military, like that of every kingdom founded by our Gothick ancestors. Henry the seventh gave the first spur to commerce by diffusing property more equally amongst the commons at the expense of the nobility. From that time, the ancient military spirit of this nation has gradually dwindled to the low ebb, at which we now find it. But the great epocha of our marine, as well as commerce, ought properly to be fixed to the glorious reign of Elizabeth. The colonies settled during the peaceful reign of James the first, laid the foundation of our present extensive commerce. The civil wars between Charles the first and the parliament, revived and diffused the ancient military spirit through the whole body of the people; and the able Cromwell made the English name more respectable in Europe, than it ever had been under any of our monarchs. Our naval glory seems to have reached its summit under that period; for though our marine is greatly increased both in the number and

strength of our shipping, yet we have by no means surpassed the commanders and seamen of that time either in bravery or ability. The reason is evident. Publick virtue then existed in its full force, and zeal for the national glory was the great spur to action. The commanders sailed in quest of honour, not lucre, and esteemed the glory of the capture as an adequate reward for the most hazardous enterprises. Luxury was as much unknown to the highest class, as spirituous liquors were to the lowest. Discipline, sobriety, and an awful sense of religion, were strictly kept up amongst the private seamen; whilst the humane usage of the officers taught them to obey from love, and a just sense of their duty, not from the slavish principle of fear only. The immortal Blake esteemed five hundred pounds for a ring, and the publick thanks of parliament, a glorious recompense for all those illustrious actions, which made Africa and Europe tremble, and raised the English flag to the summit of glory. Inferior merit, in later times, has been rewarded with coronets and great lucrative employments.

Luxury with its fatal effects was imported by Charles the second at the restoration. The contagious influence of that bane to publick virtue and liberty, corrupted our manners, enervated our bodies, and debased our minds, whilst our military spirit subsided, in proportion as the love of pleasure increased. Charles the second nurtured in the high principles of prerogative, was diffident of a militia composed of the whole body of the people. He obtained a standing force of about four or five thousand men under the specious denomination of guards and garrisons; which he increased afterwards to eight thousand, and suffered the militia gradually to decay, until it became almost useless. A policy fatal to liberty, which has been too successfully copied, since that reign, by every iniquitous minister, who support himself by faction. James the second, devoted to bigotry, and influenced by the most weak, as well as the most wicked counsels, that ever prevailed in this kingdom, at one stroke disarmed the people, and established a large standing army. As the militia were unwilling to act against Monmouth and his followers, whom they looked upon as the protectors of their religion and liberties, James, concealing the true reason, declared to his parliament, that he had found the militia useless and unserviceable by experience, and insisted upon such supplies, as would enable him to support those additional troops, which he should find necessary for his security. And he had actually increased his army to thirty thousand men at the time of the revolution. The whole reigns of William the

third and Ann are distinguished by war abroad and factions at home. Yet though we entered into both those wars as principals, the military spirit of our people was not much improved; our national troops composed by a small part of the allied armies, and we placed our chief dependance upon foreign mercenaries.

Frequent attempts have been made since that time to revive a national disciplined militia, which have been as constantly defeated by corruption and the malignity of faction. Our late fears of an invasion, and the introduction of so large a body of foreign troops, a measure highly unpopular and distasteful, procured at last the long wished for act for a militia. Mutilated as it was, and clogged with almost insuperable difficulties by the same faction, who durst not openly oppose it at that dangerous juncture, the real well-wishers to their country were glad to accept it. They looked upon it as a foundation laid for a much more useful and extensive militia; which time and opportunity might enable them to perfect. Much has been said, and many assertions boldly thrown out of the utter impracticability of a national militia. But this is either the language of corruption or of effeminacy and cowardice. The Romans, in the first Punick war, found themselves unable to contend with the Carthaginians for want of a marine. Yet that magnanimous people, without any other knowledge of the mechanism of a ship, than what they acquired from a galley of their enemies, thrown by accident upon their coasts, without either shipwright or seamen, built, manned, and fitted out a fleet under the consul Duilius, in three months time, which engaged and totally defeated the grand fleet of Carthage, though that republick had enjoyed the sovereignty of the sea unrivaled for time immemorial. This effort of the Roman magnanimity gives a higher idea of the Roman genius, than any other action recorded in their history. And by this alone we must be convinced, “that nothing is insurmountable to the unconquerable hand of liberty, when backed by publick virtue, and the generous resolution of a brave and willing people.” The difficulties and obstacles in either case, I mean of making a fleet or establishing a good militia, will admit of no comparison. The Romans may almost be said to have created a fleet out of nothing. We have nothing more to do than to rouse and diffuse that martial spirit through the nation, which the arts of ministerial policy have so long endeavoured to keep dormant. Great indeed has been the outcry of the danger of trusting arms in the dissolute hands of the scum and refuse of the nation in these licentious

times. These I consign to the proper severity of the martial discipline of an army; for of this kind of people, the bulk of every army in Europe is at this time composed. I speak to the nobility and gentry, the traders and yeomanry of this kingdom, to all those who are possessed of property, and have something to lose, and from the interest of their respective shares, are equally concerned in the preservation of the whole. Of such as these the Roman armies were composed who conquered Italy. Every Roman soldier was a citizen possessed of property, and equally interested in the safety of the republick. The wisdom of the Romans in the choice of their soldiers never appeared in so conspicuous a light as after the defeat at Cannæ. Every citizen pressed to take up arms in defence of his country, and not only refused his pay, but generously gave up what gold and silver he was master of, even to the most trifling ornaments, for the publick service. The behaviour of the women too, to their immortal honour, was equally great and disinterested. Such is the spirit, which a truly brave and free people will ever exert in a time of distress and danger. Marius was the first man who broke through that wise maxim, and raised his forces out of the sixth class, which consisted only of the dregs and refuse of the people. Marius too gave the first stab to the constitution of his country. People of property are not only the chief support, but the best and safest defence of a free and opulent country; and their example will always have a proper influence upon their inferiors.

Nothing but an extensive militia can revive the once martial spirit of this nation, and we had even better once more be a nation of soldiers, like our renowned ancestors, than a nation of abject crouching slaves to the most rapacious, and most insolent people in the universe. Let us not be too much elated, and lulled into a fatal security from some late successes, in which our national forces had no share. Nothing is so common as unexpected vicissitudes in war. Our enemies have many and great resources; our heroick ally, in case of a reverse of fortune, few or none. Our haughty and implacable enemy, unaccustomed to insults in their own territories, will think the blot in their honour indelible, until they have returned the affront upon our coasts with redoubled vengeance. Whilst a pretender to this crown exists, France will never want a plausible pretext for invading this kingdom. Their last attempt answered the proposed end so well, that we may be certain, so politick an enemy, instigated by revenge, will omit no opportunity of playing the same successful engine once more against us.

The French are now perfectly well acquainted with our weak side. The violent shock our national credit received by the inroad of a few Highlanders only, into the heart of this country, has taught them the infallible method of distressing us in that essential point. Should therefore our measures for annoying that nation be ever so wisely planned, yet we can never hope to execute them with proportionate vigour, whilst we remain defenceless at home. If the bare alarm only of an invasion frightened us so lately into the expense, as well as ignominy, of importing foreign mercenaries for our own defence, the French know by experience, that an actual attempt would compel us to recall our fleets and forces, and again expose our commerce, colonies, and our only ally to their mercy. No man, I believe, is so weak as to imagine, that France will be deterred from such an attempt by the danger which may attend it. For if we reflect upon the number of her troops, the risk of ten or twenty thousand men, can hardly be deemed an object worthy the attention of so formidable a power. For should they all perish in the attempt, yet France would be amply repaid by the advantages she would draw from that confusion, which they would necessarily occasion. The traitor who lately pointed out the proper time, as well as place for an invasion, and the fatal effects it would have upon publick credit, whatever success might attend it, furnishes us with a convincing proof, that France never loses sight of so useful a measure. A consideration which greatly enforces the necessity of national union, and a national militia. The unequalled abilities of one man³⁶⁷ (humanly speaking) have given a turn to the affairs of Germany, as happy, as it was amazing; and hope begins to dawn upon our late despairing nation. The wise and vigorous measures of our present patriot-ministry have conciliated not only the esteem, but the universal confidence of the people. Under the present ministry we laid the foundation of this long wished for, though long despaired of, militia. If we support their administration with unanimity and vigour, we may fix this great national object, upon that extensive and useful plan, which was designed and hoped for by every lover of his country. The fate therefore of the militia depends absolutely upon the present crisis. For if we supinely neglect this auspicious opportunity, future efforts will be just as ineffectual, as the point we have already carried with so much labour and assiduity. For the same function, which has invariably opposed every attempt for a national militia, are avowed enemies to the present ministers, from that antipathy, which private interest and the lust of power for selfish

ends, will ever bear to patriotism and publick virtue. Should therefore the evil genius of this nation again prevail, and the same faction once more seize the helm of government, we must give up all hopes of a militia as well as every other national measure.

Let us throw but one glance upon the present situation of these once glorious republicks, and we cannot help reflecting upon the final and direful catastrophe, which will eternally result from the prevalence of ambitious and selfish faction supported by corruption.

Greece, once the nurse of arts and sciences, the fruitful mother of philosophers, lawgivers and heroes, now lies prostrate under the iron yoke of ignorance and barbarism ... Carthage, once the mighty sovereign of the ocean, and the centre of universal commerce, which poured the riches of the nations into her lap, now puzzles the inquisitive traveller in his researches after even the vestiges of her ruins.... And Rome, the mistress of the universe, which once contained whatever was esteemed great or brilliant in human nature, is now sunk into the ignoble seat of whatever is esteemed mean and infamous.

Should faction again predominate and succeed in its destructive views, and the dastardly maxims of luxury and effeminacy universally prevail amongst us ... such too will soon be the fate of Britain.

FOOTNOTES:

[1](#) Plut. in Vit. Solon. ἄτιμον.

[2](#) A. Gellii Noct. Attic. lib. 2. c. 12.

[3](#) Epist. ad Attic. lib. 10. epist. 1.

[4](#) Μὴ συναλγεῖν, μηδὲ συννοσεῖν.

[5](#) Dion. Halicarn. p. 248. edit. Rob. Steph. 1546.

[6](#) Plutarch relates this affair greatly to the honour of Lycurgus in the beginning of his life.

[7](#)

Ἄγιδος γοῦν τοῦ βασιλέως
ἐζημίωσαν αὐτόν.

Plut. vita Lycur. pag. 46. lit. c. Edit. Xiglandri.

[8](#) Lycurgus was the first who collected the entire works of Homer; which he brought into Greece out of Asia-Minor.

[9](#) Plutarch has taken no notice of them. But Xenophon has fully explained them in his treatise on the Spartan republick, p. 542, and seq.

[10](#) Plut. Vit. Lycurg. ad finem.

[11](#) Plut. ibid. p. 58. A. Ἡ γὰρ τῶν Ἐφόρων κατάστασις, &c.

[12](#) De Rebuspubl. cap. 11. p. 154. vol. 2. Edit Basil. 1550.

[13](#) Οὐ δῆτα φάναι παραδίδωμι γὰρ πολυχρονιωτέραν.

[14](#) Arist. de. Rebuspubl. lib. 2. c. 7. p. 122. lit. 1. vol. 2.

[15](#) Polyb. lib. 6. p. 685. vol. 1. edit. Isaac Gronov. 1670.

[16](#) Plut. in Vit. Lysand. p. 442. lit. E.

[17](#) Plut. in Vit. Agesi. p. 617. lit. C.

[18](#) In Vit. Agid. p. 796. lit. C.

[19](#) Ibid. p. 797. lit. C.

[20](#) In Vit Agid. p. 797. lit. A.

[21](#) Ibid. lit. E.

[22](#) Vita Agid. p. 797. lit. B.

[23](#) Ibid. lit. C.

[24](#) Ibid. p. 798. lit. B.

[25](#) Something seems plainly to be wanting in this passage, which is strangely obscure and intricate. It is evident that Agis employed his uncle Agesilaus to persuade his mother, who was Agesilaus's sister, τὴν μητέρα πείθειν, ἀδελφὴν οὖσαν τοῦ Ἀγησιλάου. The king himself entreats his mother to assist him, &c. αὐτὸς δὲ ὁ βασιλεὺς ἐδεῖτο τῆς μητρός. And after he has enumerated the advantages which would result from his scheme, Plutarch abruptly adds οὕτω μετέπεσον ταῖς γνώμας αἱ γυναῖκες &c. in the plural number, though he had just before mentioned Agis's mother only, as the woman applied to on this occasion. It is evident therefore that his grandmother and all their female friends and relations must have been present that time, though not mentioned, and that they were the only Spartan ladies who came heartily into his scheme. For when Agis afterwards offers his whole

fortune to the publick, he assures the people that his mother and grandmother, τὰς μητέρας, and his friends and relations, who were the richest families in Sparta, were ready to do the same. As Agis certainly includes the wives of his friends and relations, and mentions no other women, I have taken that speech for my guide in giving the sense of this whole passage, in which I could get no assistance from any of the commentators.

[26](#) In Vit. Agid. p. 798. lit. D.

[27](#) Vit. Agid. p. 800. lit. A.

[28](#) Ibid. 799. lit. A.

[29](#) This is an oracle mentioned by Plutarch, about which the learned are not agreed: however, it seems to have given its responses in dreams.

[30](#) The reader may be glad perhaps to find here the ceremony made use of upon this occasion. Vit. Agid. p. 800. lit. B. δι' ἐτῶν ἐννέα λαβόντες οἱ Ἑφοροί, &c. Every ninth year the ephori taking the opportunity of a clear and still night, when the moon did not appear, sat silently and observed the sky with great attention, and if they saw a star shoot, they judged the kings had offended the gods; and removed them from government, until an oracle came from Delphos which was favourable to them.

[31](#) Plut. Vit. Agid. p. 798. lit. A.

[32](#) Ibid. p. 801. lit. B.

[33](#) Vit. Agid. p. 803. lit. A.

[34](#) Plut. Vit. Cleom. p. 805. lit. B.

[35](#) Plut. Vit. Cleom. p. 809. lit. A.

[36](#) Plut. Vit. Cleom. p. 807. lit. B.

[37](#) Vit. Cleom. p. 808. lit. A.

[38](#) Vit. Cleom. p. 809. lit. A.

[39](#) Parallel. inter Agid. et Cleom. et T. et C. Gracch. p. 844. lit. D.

[40](#) Vit. Cleom. p. 811. lit. C.

[41](#) Plut. Vit. Cleom. p. 822. lit. E.

[42](#) Polyb. lib. 4. p. 479.

[43](#) Plut. Vit. Philopœm. p. 365. lit. E.

[44](#) To bring back their shields, implied victory; to be brought home upon them, a glorious death in defence of their country; because the Spartans, if possible, brought back and buried all who fell in battle in their native country.

[45](#) Aristot. de Rebuspubl. lib. 2. cap. 7. fol. 122. lit. Θ.

[46](#) Ἡ πόλις ἀπώλετο διὰ τὴν ὀλιγανθρωπίαν. Aristot. ibid.

[47](#) Ὡστε θειοτέραν τὴν ἐπινοίαν ἢ κατ' ἄνθρωπον αὐτὸν νομίζειν. Polyb. lib. 6. p. 683.

[48](#) Vita Solon, p. 85. lit. D.

[49](#) The time of the first institution of this court (so denominated from Ἄρειος πάγος, i. e. Hill of Mars, an eminence where they always assembled) is quite uncertain; nor are the historians at all agreed about the number of the members of which it was composed. However this was the supreme court, which had cognizance of wilful murders, and all matters which were of the greatest consequence to the republick. Suidas. They had also cognizance of all matters of religion, as we find by the instance of St. Paul.

[50](#) Plut. 85. lit. A.

[51](#) Plut. in Vit. Solon, p. 86. lit. C.

[70](#) Τὰ δὲ μέσα τῶν πολιτῶν ὑπ' ἀμφοτέρων, ἢ ὅτι οὐ ξυνηγωνίζοντο, ἢ φθόνῳ τοῦ περιεῖναι διεφθείροντο. Thucyd. p. 219.

[71](#) Thucyd. lib. 1 p. 91. sect. 140.

[72](#) Thucyd. lib. 2. p. 127. sect. 47. et seq.

[73](#) Plut. in Vit. Pericl. p. 171. lit. E.

[74](#) Plut. in Vit. Nic. p. 524. lit. B.

[75](#) Hence, as Plutarch informs us, it was termed the Nician peace, lib. 5.

[76](#) Plut. in Vit. Alcib. p. 203. lit. B.

[77](#) Plut. Vit. Alcib. p. 197. lit. C.

[78](#) Thucyd. lib. 5. p. 339. sect. 35, 42.

[79](#) Thucyd. lib. 5. p. 350. sect. 52.

[80](#) Thucyd. lib. 6. p. 383. sect. 8.

[81](#) Thucyd. lib. 6. p. 381. sect. 6.

[82](#) Plut. in Vita Alcibid. Item. Thucyd. in orat. Alcib. ad Lacedæm. lib. 6. p. 436. sect. 90.

[83](#) Thucyd. lib. 6. 395, 396. sect. 28, 29.

[84](#) Thucyd. The terms were statues of Mercury, placed at the doors of their houses, made of square stones of a cubical form.

[85](#) A similar measure was taken in the latter end of queen Anne's reign.

[86](#) Plut. in Vit. Alcib. p. 200. lit. D.

[87](#) Thucyd. lib. 6. 395. sect. 28.

[88](#) Thucyd. *ibid.*

[89](#) Thucyd. *ibid.* sect. 29. *passim.*

[90](#) Thucyd. lib. 6. 395. sect. 23. *ad finem.*

[91](#) Thucyd. lib. 6. p. 396. sect. 31.

[92](#) Thucyd. lib. 6. p. 408. sect. 47, 48, 49.

[93](#) Thucyd. lib. 6. p. 411. sect. 53.

[94](#) *Ibid.* p. 415. sect. 60.

[95](#) Plut. in Vit. Alcib. p. 202.

[96](#) Thucyd. p. 416. sect. 60.

[97](#) Plut. in Vit. Alcib. p. 201. lit. C.

[98](#) Thucyd. lib. 6. p. 416. sect. 61.

[99](#) Thucyd. lib. 6. p. 416. sect. 61.

[100](#) *Ibid.*

[101](#) This vessel may properly be termed the Athenian State-packet-boat, and was never sent out but upon very extraordinary occasions. Plut.

[102](#) Thucyd. lib. 6. p. 417. sect. 61.

[103](#) Thucyd. *ibid.*

[104](#) Plut. in Vit. Alcib. p. 202.

[105](#) Thucyd. lib. 7. p. 505. *ad finem.*

[106](#) Thucyd. lib. 8. p. 506. &c.

[107](#) Thucyd. *ibid.* p. 507.

- [108](#) Thucyd. *ibid.* p. 508. sect. 2.
- [109](#) Thucyd. lib. sect. 2....3.
- [110](#) Thucyd. *ibid.* sect. 4.
- [111](#) Plut. in Vit. Alcib. p. 203.
- [112](#) Thucyd. lib. 8. p. 531. sect. 45.
- [113](#) Thucyd. *ibid.* sect. 46.
- [114](#) Thucyd. lib. 8. p. 531. sect. 45.
- [115](#) Thucyd. *ibid.* sect. 47.
- [116](#) Thucyd. lib. sect. 48.
- [117](#) Thucyd. *ibid.* sect. 49.
- [118](#) Thucyd. lib. sect. 53.
- [119](#) Thucyd. *ibid.* sect. 54.
- [120](#) Thucyd. *ibid.* sect. 56.
- [121](#) Thucyd. *ibid.* 66.
- [122](#) Thucyd. *ibid.* 67.
- [123](#) Thucyd. *ibid.* 68.
- [124](#) Thucyd. *ibid.* 69.
- [125](#) Solon's new senate of four hundred.
- [126](#) Thucyd. *ibid.* 70.
- [127](#) Thucyd. lib. 8. p. 543, sect. 65.
- [128](#) Thucyd. lib. 8. p. 551. sect. 76.
- [129](#) Thucyd. *ibid.* p. 553. sect. 81.
- [130](#) Thucyd. *ibid.* p. 567. sect. 97.
- [131](#) Plut. in Vit. Alcib. p. 206.
- [132](#) Plut. *ibid.* p. 207, 208.
- [133](#) Plut. *ibid.* p. 209.
- [134](#) *Ibid.* p. 211.
- [135](#) The son of Thrason; the other of that name is called by Thucydides, the son of Lycus. Thucyd. lib. 8. p. 549. sect. 75.
- [136](#) A city in Thrace.
- [137](#) Thucyd. lib. 6. p. 387. sect. 15.
- [138](#) Plut. in Vit. Alcib. p. 211-212.
- [139](#) Plut. in Vit. Lysand. p. 441.
- [140](#) Τριάκοντα πλήρους ἀπεκτόνασιν Ἀθηναίων ἐν ὀκτῶ μηνὶν, ἢ πάντες Πελοπόννησιοι δέκα ἔτη πολεμοῦντες. Xenoph. Hellenic, lib. 2. p. 370. Edit. Lewencl. Basil.
- [141](#) Most probably the son of Lycus, mentioned by Thucydides, who had so great a share in deposing the Four Hundred, and restoring the ancient constitution.
- [142](#) Xenoph. *ibid.* p. 367.
- [143](#) Xenoph. *ibid.* p. 368.
- [144](#) Xenoph. *ibid.* 370.
- [145](#) Xenoph. *ibid.* 371.
- [146](#) Xenoph. *ibid.* 372.-373.

- [147](#) Xenoph. *ibid.* p. 375.
- [148](#) Xenoph. *lib.* 3. p. 392.
- [149](#) Xenoph. *lib.* 4. p. 404.
- [150](#) *Ibid.* p. 420.
- [151](#) *Ibid.*
- [152](#) *Ibid.* 421.
- [153](#) Justin. in *Vit. Conon.*
- [154](#) Persius, *sat.* 1.
- [155](#) Lucian, p. 328. Edit. Bourdel. 1615.
- [156](#) Dionysius the tyrant of Syracuse.
Diodor. *Sicul. lib.* 14. p. 318, 319.
- [157](#) Plut. in *Vit. Cim.* p. 483.
- [158](#) Justin. p. 67. Edit. Elziv.
- [159](#) Plut. *de Glor. Athen.* p. 349. Vol. 2.
- [160](#) Plut. *Symposiac.* p. 710.
- [161](#) Ἐν πότῳ καὶ ἀνέσει.
- [162](#) Plut. in *Vit. Pericl.* p. 156.
- [163](#) Plut. in *Vit. Phocion*, p. 744. Item *Demos Olynth.* 2. p. 25. Edit. Wolf. 1604.
- [164](#) Demost. *Orat. in Philip.* 3. p. 86, 92.
- [165](#) Demost. *ibid.*
- [166](#) Plut. in *Vit. Phocion*, p. 747.
- [167](#) Diodor. *Sicul. lib.* 16. p. 450.
- [168](#) Diodor. *Sicul. lib.* 16. p. 476.
- [169](#) Plut. in *Vit. Demost.* p. 854.
- [170](#) Polyæn. *Stratagem, lib.* 4. c. 3. p. 311.
- [171](#) Polyænus calls this general Stratocles.
- [172](#) Hic dies universæ Græciæ et gloriam dominationis, et vetustissimam liberatem finivit. Justin. *lib.* 9. p. 79. Edit Elziv.
- [173](#) Thus Demades termed the gratuities given to the people out of the publick money, the glue or cement of the different parts of the republick. Plut. *Quæst. Platon.* p. 1011.
- [174](#) Fable of the bees.
- [175](#) Ἀλλὰ μὴν τούτοις ἐσμὲν ἡμεῖς εὐδαίμονες καὶ μακάριοι τοῖς περιττοῖς, ἀλλ' οὐκ ἐκείνοις τοῖς ἀναγκαίοις. Plut. *de Cupidit.* p. 527.
- [176](#) Demades, according to Plutarch, by the dissoluteness of his life, and conduct in the administration, shipwrecked the Athenian republick. Plut. in *Vit. Phocion*, p. 741.
- [177](#) Plut. *Apotheg.* p. 188.
- [178](#) Plut. in *Vit. Aristid.* p. 320.
- [179](#) Plut. in *Vit. Demet.* p. 893 ... 94 ... 900.
- [180](#) Pausan, *Grec. Descript. lib.* 9. c. 5 p. 718. Edit. Ketchnii.
- [181](#) Οὐ γάρ τι ἡδυνάμην ἐς αὐτοὺς παρευρεῖν, ἔπομαι τῷ μύθῳ. *Id. Ibid.*
- [182](#) *Ibid.* p. 723
- [183](#) Thebes was the capital of Bœotia.

[184](#) Bœotum in crasso jurares aere natum. Hor. epis. 1. lib. 2. lin. 244.

[185](#) Plut. in Vit. Pelopid. p. 287.

[186](#) Diodor. Sicul. lib. 15. p. 470.

[187](#) Plut. in Vit. Pelop. p. 284. et sequent.

[188](#) Plut. in Vit. Pelop. p. 285.

[189](#) Id. p. 286, 287.

[190](#) Διὸ καὶ συναναγκαθεῖς ὀλίγοις πολιτικοῖς, &c. Diodor. Sicul. lib. 15. p. 477. Edit. Henr. Stephani.

[191](#) Polyb. Comparat. Epaminond. et Hannib. lib. 9. p. 762.

[192](#) Id. lib. 6. p. 678....79.

[193](#) Justin. lib. 6. p. 74.

[194](#) Plutarch, Justin, Corn. Nepos.

[195](#) When Aristides had acquired the surname of Just he became the object of the Athenian envy, and the Ostracism was demanded against him. Whilst the people were preparing their shells, a country voter, who could neither read nor write, brought his shell to Aristides, and desired him to write the name of Aristides upon it. Aristides, not a little surprised at his request, asked him what injury that Aristides had done him. Me! none, replied the fellow, for I do not so much as know the man by sight, but it galls me to the soul to hear him every where called the Just.... Plut. in Vit. Aristid. p. 322, 323.

[196](#) They kept the field and attacked Sparta, when the time of their office was near expired, by which means they were in office more than the regular time.

[197](#) Arist. de Republ. lib. 2. cap. 9. lit. 4.

[198](#) Polyb. lib. 6. p. 692.

[199](#) Id. ibid.

[200](#) Ibid.

[201](#) Polyb. lib 6. p. 681.

[202](#) Excerpt. ex Polyb. de virtutibus et vitiis, p. 1426.

[203](#) Perses, &c.

[204](#) Varro.

[205](#)

Excudent alii spirantia mollius æra:
Credo equidem, vivos ducent de marmore vultus.
Virg. Æneid. lib. 6.
Tu regere imperio populos, Romane, memento
(Hæ tibi erunt artes) pacique imponere morem
Parcere subjectis, &c. Ibid.

[206](#) Polyb. lib. 1. p. 92...3.

[207](#) Polyb. p. 98...9.

[208](#) Diodor. Sicul. lib. 20. p. 735...36.

[209](#) Livy. lib. 28. p. 58...9.

[210](#) Appian, de Bell. Punick. p. 36.

[211](#) Polyb. lib. 1. p. 104....5.

[212](#) Polyb. lib. 1. p. 115.

[213](#) Ibid. lib. 1. p. 115.

[214](#) Polyb. lib. 1. p. 115.

[215](#) Idem. *ibid.* 117.

[216](#) Polyb. Ἀγαθὸς πεπτευτῆς *ibid.* p. 119.

[217](#) Id. *ibid.* Πολιτικούς ἵππεῖς καὶ πεζοὺς. p. 120.

[218](#) Polyb. lib. 1. p. 119.

[219](#) Polyb. lib. 1. p. 119.

[220](#) Polyb. Id. *ibid.* p. 121.

[221](#) Polyb. lib. 1. p. 122.

[222](#) Τοὺς ὑπολοίπους τῶν ἐν ταῖς ἡλικίαις καθοπλίσαντες (οἷον ἐσχάτην τρέχοντες ταύτην) ἐξαπέστελλον πρὸς τὸν Βάρκαν. Polyb. lib. 1. p. 122.

[223](#) Polyb. lib. 2. p. 172.

[224](#) Μιᾷ γνώμῃ. Polyb. lib. 3. p. 234.

[225](#) This will be explained in another place.

[226](#) Lib. 3. p. 236.

[227](#) Id. *ibid.* p. 237.

[228](#) Polyb. lib. 3. 243....44.

[229](#) Polyb. *id. ibid.*

[230](#) Polyb. lib. 3. p. 259.

[231](#) Livy, lib. 21. p. 132.

[232](#) *Ib.* p. 135.

[233](#) Liv. lib. 21. p. 135. 36.

[234](#) Id. *ibid.*

[235](#) Liv. lib. 3. p. 142....43.

[236](#) Polyb. lib. 11. p. 888....89.

[237](#) Appian. de Bell. Annib. 323. Edit. Hen. Steph.

[238](#) Lib. 23 p. 265....66.

[239](#) Liv. lib. 30. p. 135.

[240](#) Lib. 22, p. 240.

[241](#) Appian. de Bell. Hannib. p. 328.

[242](#) Iberic. p. 259.

[243](#) Appian. *id. ibid.*

[244](#) Dionys. Halicarn. cap. 2. p. 137. Edit. Wechel.

[245](#) About three hundred pounds.

[246](#) Liv. lib. 4. p. 276.

[247](#) Romulus had divided the whole people into thirty *curiæ*, ten of which composed a tribe. At their *comitia* or general assemblies, the people divided into their respective *curiæ* and gave their votes man by man. The majority of votes in each *curia* passed for the voice of the whole *curia*, and the majority of the *curiæ* for the general determination of the whole people.

Tullius on the contrary took their votes only by centuries, the whole number of which amounted to one hundred and ninety-three, into which he had subdivided the six classes. But as the first class alone, which was composed wholly of the rich, contained ninety-eight of these centuries, if the centuries of the first class were unanimous, which, as Dionysius

informs us, was generally the case, they carried every point by a sure majority of three.... If they disagreed, Tullius called the centuries of the second class, and so on until ninety-seven centuries agreed in one opinion, which made a majority of one. If the numbers continued equal, that is ninety-six on each side of the question, after the five first classes had voted; Tullius called up the sixth class which was composed wholly of the poorest people, and contained but one century, and the vote of this century determined the question.... But this case, as Dionysius observes, happened so very rarely; that even the votes of the fourth class were seldom called for, and thus the votes of the fifth and sixth were generally useless. Consequently when the people voted by their curiæ, where the vote of every individual was taken, the poor who were much the most numerous, might always be secure of a great majority.... But when the votes were taken by centuries, according to the new method instituted by Tullius, that numerous body of the poor, which composed the single century of the sixth class, and consequently had but one vote, became wholly insignificant.

[248](#) Dionys. Halicarn. lib. 4. p. 182. edit. 1546.

[249](#) Dionys. Halicarn. id. ibid.

[250](#) Dionys. Halicarn. lib. 5. p. 205.

[251](#) Dionys. Halicarn. lib. 5. p. 247.

[252](#) Dionys. Halicarn. lib. 6. p. 255.

[253](#) Dionys. Halicarn. lib. 6. p. 266.

[254](#) I have chiefly followed Livy in his beautiful relation of this affair, as the description he gives of this unhappy object, is not only much more striking than that of Dionysius, but one of the most pathetick I ever met with in history. Liv. lib. 2. p. 92.

[255](#) Dionys. Halicarn. lib. 61. p. 268.

[256](#) Dionys. Halicarn. lib. 6. p. 270.

[257](#) Dionys. Halicarn. lib. 6. p. 276...77.

[258](#) It is remarkable that Appius terms the aristocracy, which at that very time was hardly seventeen years standing, the form of government which they had inherited from their ancestors.

[259](#) Liv. lib. 2. p. 91.

[260](#) Sallust. Fragment. apud Augustin. de civitate Dei. lib. 2. cap. 18. edit. Froben. 1569.

[261](#) In the comitia tributa or assemblies by tribes the people voted in the same manner, as in the comitia curiata or assemblies by curiæ. The majority of single votes in every tribe constituted the voice of that tribe, and the majority of the tribes decided the question. But the Patricians conscious of their superiority in the comitia centuriata or assemblies by centuries, constantly refused to obey the plebiscita or decrees made by the people in their assemblies by tribes, which they insisted were binding to the Plebeians only. After the abolition of the decemvirate the people obtained a law: ... "that all laws passed in their assemblies by tribes should have equal force with those made in the assemblies by centuries, and should be equally obligatory to all the Romans without distinction.

[262](#) The place of election.

[263](#) Proscriptiones innoxiorum ob divitias, cruciatus virorum illustrium, vastam urbem fuga et cædibus, bona civium miserorum quasi Cimbricam prædum, venum aut dono datam. Sall. Frag. p. 142.

[264](#) Ante Carthaginem deletam ... metus hostilis in bonis artibus civitatem retinebat. Sall. Bell. Jug. p. 80.

[265](#) Postquam remoto metu Punico mores non paulatim ut antea, sed torrentis modo præcipitati. Sall. Frag. p. 139.

... Rapere, consumere, sua parvi pendere, aliena cupere, pudorem, pudicitiam, divina humana promiscua, nihil pensi, neque moderati habere. De Bell. Cat. pag. 8.

[266](#) Cæpere nobilitas dignitatem, populus libertatem in lubidinem vertere. Bell. Jug. p. 80.

[267](#) Postquam divitiæ honori esse cæperunt, et eas gloria, imperium, potentia sequebatur hebescere virtus, paupertas probro haberi, innocentia pro malevolentia duci cæpit. Bell. Cat. p. 8.

[268](#) Ita cum potentia avaritia sine modo, modestiaque invadere, polluere, et vastare omnia, nihil pensi neque sancti habere. p. 81.

Sibi quisque ducere, trahere rapere. De Bell. Jug. p. 81.

[269](#) Eos paulatim expulsos agris, inertia atque inopia incertas domos habere subegit: cæpere alienas opes petere, libertatem suam cum Republica venalem habere. Sall. Orat. 2. ad Cæsarem de Repub. Ordinand. p. 197.

[270](#) Ita omnia in duas partes abstracta sunt: respublica, quæ media fuerat, dilacerata. De Bell. Jug. p. 80.

[271](#) Pecuniæ cupido fidem, probitatem ceterasque bonas artes subvertit; pro his superbiam, crudelitatem deos negligere, omnia venalia habere edocuit. De Bell. Cat. p. 7.

[272](#) Cupido Imperii, id. p. 7.

[273](#) Primo pecuniæ, dein imperii cupido crevit, ea quasi materies omnium malorum fuere.... Post ubi contagio, quasi pestilentia, invasit, civitas immutata, imperium ex justissimo atque optumo, crudele intolerandumque factum. De Bell. Cat. p. 7.

[274](#) Aliud clausum in pectore, aliud promptum in lingua habere, amicitias, inimicitiasq; vultum, quam ingenium bonum habere. Ibid.

[275](#) Malitia præmiis exercetur; ubi ea demseris, nemo omnium gratuito malus est. p. 200.

[276](#) Nam, ubi malos præmia sequuntur, haud facile quisquam gratuito bonus est. Sall. Orat. Philip. contra Lapid. p. 145.

[277](#) Pauci potentes, quorum in gratia plerique concesserant, sub honesto patrum, aut plebis nomine dominationes affectabant, bonique et mali cives appellati, non ob merita in rempublicam (omnibus pariter corruptis) sed uti quisque locupletissimus et injuria validior, quia præsentia defendebat, pro bono ducebatur. Frag. p. 139.

[278](#) Iidem illi factiosi regunt, dant, adimunt quæ lubet; innocentes circumveniunt: suos ad honorem extollunt. Non facinus, non probrium, aut flagitium obstat, quo minus magistratus expetant: quod commodum est, trahunt, rapiunt: postremo tamquam urbe capta, lubidine ac licentia sua pro legibus utuntur. Sall. Or. 2. ad Cæsar. p. 196.

[279](#) Divitiis, quas honeste habere licebat, per turpitudinem abuti properabant. Lubido strupri, ganeæ, cæterique cultus non minor incesserat.... Vescendi causa, terra mariq; omnia exquirere; dormire priusquam somni cupido esset: non famam, aut sitim, neq; frigus, neq; lassitudinem operiri; sed ea omnia luxu ante capere. Hæc juventutem, ubi familiares opes defecerant, ad facinora incedebant. Animus imbutus malis artibus haud facile lubidinibus carebat: eo profusius omnibus modis quæstui atque sumtui deditus erat. Sall. de Bell. Cat. p. 9.

[280](#) Ubi divitiæ claræ habentur, ibi omnia bona vilia sunt, fides, probitas, pudor, pudicitia. Sall. Orat. 2. ad Cæs. p. 199.

[281](#) Itaque omnes concessere jam in paucorum dominationem, qui per militare nomen, ærarium, exercitum, regnum, provincias occupavere, et arcem habent ex spoliis vestris: cum interim more pecudum vos multitudo singulis habendos, fruendosque præbetis, exsuti omnibus, quæ majores reliquere: nisi quia vosmet ipsi per suffragia, uti præsidēs olim, nunc dominos destinatis. Salt. Frag. Orat. Lepid. ad Pleb. p. 160.

[282](#) Διαφθειρομένου δὲ τοῦ δήμου ταῖς δωροδοκίαις ὑπὸ τῶν φιλαρχούντων, καὶ χρωμένων τῷ δεκάζεσθαι καθάπερ ἐργασίᾳ συνήθει τῶν πολλῶν, βουλόμενος ἐκκόψαι παντάπασι τὸ νόσημα τοῦτο τῆς πόλεως, ἔπεισε δόγμα θέσθαι τὴν σύγκλητον, ὅπως οἱ κατασταθέντες ἄρχοντες, εἰ μηδένα κατήγορον ἔχοιεν, αὐτοὶ παριόντες ἐξ ἀνάγκης εἰς ἔνορκον δικαστήριον εὐθύνας διδῶσιν. Plut. in Vit. Cat. p. 126.

[283](#) Ἔωθεν οὖν ἐπὶ τὸ βῆμα τοῦ Κάτωνος, προελθόντος, ἄθροοι προσπεσόντες ἐβόων, ἐβλασφήμουν, ἔβαλλον. Plut. ibid.

[284](#)

Hinc rapti fasces pretio: sectorque favoris
Ipse sui populus: lethalisque ambitus urbi
Annua venali referens certamina campo.

Lucan. Pharsal. lib. 1. Edit. 1506.

[285](#) Mala sua, quod malorum ultimum est, amant ... et definit esse remedio locus, ubi quæ fuerant vitia, mores sunt. Senec. Ep. 39. p. 100.

[286](#) In tanta tamque corrupta civitate, Catilina omnium flagitiosorum, atque facinorosorum circum se, tamquam stipatorum catervas habebat. Sall. de Bell. Cat. p. 9.

[287](#) Καίσαρος—τὰ νοσοῦντα καὶ διεφθαρμένα τῆς πολιτείας μέρη ταραττοντος καὶ συνάγοντος πρὸς αὐτὸν. Plut. in Vit. Cat. Min. p. 241.

[288](#) Peculatus ærarii, et per vim sociis ereptæ pecuniæ, quæ quamquam gravia sunt, tamen consuetudine jam pro nihilo habentur. Sall. de Bell. Jug. p. 73.

[289](#) Adeo juvenus luxu atque avaritia corrupta est, uti merito dicatur, genitos esse, qui neque ipsi habere possent res familiares, neque alios pati. Sall. Frag. pag. 139.

[290](#) Popilius to Antiochus Epiph. Livy. lib. 45. p. 672.

[291](#) Juv. Sat. 4.

[292](#)

... Ex quo suffragia nulli
Vendimus, effugit Curas. Nam qui dabat olim
Imperium, fasces, legiones, omnia, nunc se
Continet, atque duas tantum res anxius optat
Panem et Circenses.

Juv. Sat. 10. lin. 77.

Otium cum servitio.

Sall. Frag. p. 341.

[293](#) Ludi Scenici.

[294](#) Histriones.

[295](#) Etenim cum artifex ejusmodi sit; ut solus dignus videatur esse, qui in scena spectetur: tum vir ejusmodi est, ut solus dignus videatur, qui eo non accedat. Orat. pro Rosc. Edit. Glasg. p. 43.

[296](#) Divus Augustus immunes verberum histriones quondam responderat. Tacit. c. 14. p. 42. Edit. Glasg.

Coercitionem in histriones magistratibus in omni tempore et loco lege vetere permissam ademit. Suet. in Vit. Aug. p. 163.

[297](#) Histrionum licentiam adeo compescuit, ut Stephanionem Togatorium, cui in puerilem habitum circumtonsam matronam ministrasse compererat, per tria theatra virgis cœsum relegaverit. Hylam pantomimum querente prætor, in atrio domus suæ, nemine excluso, flagellis verberaverit: et Hyladem urbe atque Italia submoverit, quod spectatorem a quo exsibilabatur, demonstrasset digito, conspicuumque fecisset. Ibid.

[298](#) Ostendam nobilissimos juvenes mancipia pantomimorum. Senec. Epist. 47. p. 118.

[299](#) Variis dehinc et sæpius irritis prætorum questibus, postremo Cæsar de immodestia histrionum retulit; multa ab iis in publicum seditiose, fœda per domos tentari ... eo flagitiorum et virium venisse, ut auctoritate patrum coercendum sit. Pulsi tum histriones Italia. Tacit. Annal. 4. p. 134.

[300](#) Cæde in theatro per discordiam admissa, capita factionum et histriones propter quos dissidebatur, relegavit: nec ut revocaret unquam ullis populi precibus potuit evinci. Suet. in Tib. c. 37.

[301](#) Συμφέρει σοὶ, Καῖσαρ, περὶ ἡμᾶς τὸν δῆμον ἀποδιατρίβεσθαι. Dion. Cass. lib. 54. p. 533.

[302](#)

Verum equitis quoque jam migravit ab aure voluptas
Omnis, ad incertos oculos, et gaudia vana.

Hor. epist. 1. lib. 2. lin. 187.

Tanto cum strepitu ludi spectantur, et artes,
Divitiæque peregrinæ: quibus oblitus actor
Quum stetit in scena, concurrat dextera lævæ:
Dixit adhuc aliquid? nil sane. Quid placet ergo?
Lana Tarentino violas imitata veneno.

Ibid. lin. 203.

[303](#) Dionys. Halicarn. lib. 2. 65.

[304](#) Mores majorum non paulatim ut antea, sed torrentis modo precipitati. Sallust. Fragment. p. 139.

[305](#) Nulla umquam res publica sanctior, nec bonis exemplis ditior fuit. Liv. in Præfat.

[306](#) Dionys. Halicarn. Lib. 2. p. 61, 62.

[307](#) —Tamen nec numero Hispanos, nec rebore Gallos, nec calliditate Pœnos, nec artibus Græcos.

[308](#) Sed pietate ac religione, atque hac una sapientia, quod deorum immortalium numine omnia regi gubernarique perspeximus, omnes gentes nationesque superavimus. Cic. de. Harus resp. p. 189.

[309](#) Quis est qui—cum deos esse intellexerit, non intelligat eorum numine hoc tantum imperium esse natum, et auctum et retentum. Ibid. p. 188.

[310](#) Cari sunt parentes, cari liberi, propinqui et familiares: sed omnes omnium caritates patria una complexa est. Cic. de Offic.

[311](#) Pro qua patria, mori, et cui nos totos dedere, et in qua nostra omnia ponere, et quasi consecrare debemus. Cic. de Leg.

[312](#) That the fundamental principles of the stoicks tended to atheism I readily grant: but as the real philosophers of that sect inculcated a thorough contempt for what are called the good things of this life, and were extremely austere in their morals; their doctrines seem to

have had a very different influence upon the manners of the people wherever they were received, from those of the Epicureans.—Brutus and Cato the inflexible champions of liberty, and almost the only virtuous characters in that corrupt period, were rigid stoicks.—Julius Cæsar who subverted the constitution of his country, was a thorough Epicurean, both in principle and practice. His principles we plainly see in his sophistical speech in Sallust, where he urges the total extinction of our being at death, as an argument for sparing the lives of Cataline’s accomplices. For he audaciously affirms to the senate:—“that death as a punishment was so far from being an evil; that it released us from all our sorrows, when labouring under distress and misery: that it put a final period to all the evils of this life, beyond which there was no longer room either for grief or joy.” Thus as the learned Dr. Warburton justly remarks, “he took occasion, with a licentiousness until then unknown to that august assembly, to explain and enforce the avowed principles of Epicurus (of whose sect he was) concerning *the mortality of the soul*.” Divine legation part 2d. pages, 111, 112, last edition. That his manners were notoriously infamous we may learn from the history of his life in Suetonius, where he is termed *the husband of every woman, and the wife of every man*. Omnium mulierum virum, et omnium virorum mulierem. Sueton. in vit. Jul. Cæsar, c. 52. ad finem.

[313](#) I here mean the tenets of the *Epicurean atheists* as they are termed by the very learned Mr. Baxter in his treatise of the immortality of the soul; where he has confuted them at large in the first volume of that admirable work.

Inquiry into the nature of the human soul. Vol. 1. p. 355.

[314](#) It has been remarked; that the disciples of the ancient Greek philosophers have blended so many of their own opinions with the doctrine of their masters, that it is often difficult to distinguish the genuine tenets of the latter, from the spurious ones which have been interpolated by their followers.... Thus Epicurus taught that the summum bonum or supreme good consisted in pleasure. His defenders insist: that he placed it in that refined pleasure which is inseparable from the practice of virtue. His enemies affirm; that he meant the grosser pleasure which arises wholly from the sensual passions.... His friends reply; that this notion was first broached by the dissolute part of his disciples, who most injuriously fathered it upon Epicurus, and then alleged his authority as a plea for their debaucheries; ... they add, that the true Epicureans, who adhered rigidly to the genuine tenets of their master, always treated these spurious disciples as sophists and impostors. But even allowing this to be a true state of the case; yet that the materiality and dissolution of the human soul at death was a genuine tenet of Epicurus, is a truth which the most sanguine of his admirers are not able to deny. As this pernicious tenet therefore was equally held, and publickly taught by both these kinds of Epicureans, a very small knowledge of human nature will enable us to decide, which of the two opposite notions of pleasure was most likely to prevail, and gain the greatest number of proselytes amongst a luxurious and corrupt people.

The dissolute manners of the Romans in the last period of their republick, prove evidently, in my opinion, that the sensual doctrines of the later Epicureans were almost universally received. And if the evidence of Horace in his humourous description of the manners of those philosophers is to be depended upon, they seem to have engrossed the *name* of the *sect* wholly to themselves.

Me pinguem et Nitidum, bene curata cute, vises.

Cum ridere voles, *Epicuri de Grege porcum*.

Hor. Epist. 4. lib. 1.

Omnis, ut est igitur per se natura duabus
Consistit rebus; nam corpora sunt et inane.
Ergo præter inane et corpora tertia per se.
Nulla potest rerum in numero natura relinqui
Nec quæ sub sensus cadat ullo tempore nostros
Nec ratione animi quam quisquam possit apisci.

[316](#)

Et nebula ac fumus quoniam discedit in auras;
Crede animam quoque diffundi, multoque perire
Ocius, et citius dissolvi corpora prima,
Cum semel omnibus e membris ablata recessit.

[317](#)

Et si jam nostro sentit de corpore, postquam
Distracta est animi natura, animæque potestas:
Nil tamen hoc ad nos; qui cætu conjugioque
Corporis atque animæ consistimus uniter apti.

[318](#)

Nil igitur mors est, ad nos neque pertinet hilum,
Quandoquidem natura animi mortalis habetur:
—Ubi non erimus: cum corporis atque animai
Discidium fuerit, quibus e sumus uniter apti,
Scilicet haud nobis quicquam, qui non erimus tum,
Accidere omnino poterit, sensumque movere.

[319](#) Epicurus vero ex animis hominum extraxit radiatus religionem, quum Diis immortalibus et opem et gratiam sustulit. Cit. de Nat. Deor. p. 76 and 77.

[320](#) At etiam liber est Epicuri de sanctitate. Ludimur ab homine non tam faceto, quam ad scribendi licentiam libero. Quæ enim potest esse sanctitas, si Dii humana non curant? Cic. de Nat. Deor. p. 78.

[321](#) The principles of the new academy, that doubting sect, which Cicero had espoused, led so directly to scepticism, that he keeps us in a state of perpetual doubt and uncertainty as to his opinions. Mr. Baxter in his Inquiry into the nature of the Human Soul, vol. 2. p. 70. complaining of Cicero's inconsistencies and self-contradictions, observes, that—"as philosophers he teaches men to be scepticks, or to maintain *that truth is not to be perceived.*" And afterwards adds—"But it is long since it hath been observed of this *great man*, that his *academical writings are at variance* with his other works; and that he may be confuted out of himself, and in his own words."

Dr. Warburton expatiates largely upon the great difficulties there are in getting to Cicero's *real sentiments*. I shall mention only two of them and in his own words. "A fourth difficulty arises from Tully's purpose in writing his works of philosophy; which was, not to deliver his own opinion on any point of ethicks or metaphysicks; but to explain to his countrymen in the most intelligible manner, whatsoever the Greeks had taught concerning them. In the execution of which design, no sect could so well serve his turn as the *new academy*, whose principle it was, *not to interfere with their own opinions*, &c. But the principal difficulty proceeds from the *several* and *various* characters he *sustained* in his life and writings; which habituated him to feign and dissemble his opinions. Here (though he

acted neither a weak nor an unfair part) he becomes perfectly inscrutable. He may be considered as an orator, a statesman, and a philosopher; characters all equally *personated*, and no one more the *real man* than the other; but each of them taken up and laid down, for the occasion. This appears from the numerous inconsistencies we find in him throughout the course of his sustaining them, &c.” And afterwards, p. 171, the Dr. adds—“We meet with numbers of the like contradictions delivered in his own person, and under his philosophical character,” of which he gives us several instances. In the note upon the word *personated*, p. 169. the Dr. observes, “that as a philosopher, his end and design in writing was not to deliver his own opinion; but to explain the Grecian philosophy; on which account he blames those as too curious, who were for having his own sentiments. In pursuance of his design, he brings in Stoicks, Epicureans, Platonists, Academicks, new and old, in order to instruct the Romans in their various opinions, and several ways of reasoning. But whether it be himself or others that are brought upon the stage, it is the *academick* not Cicero; it is the Stoick, the Epicurean, not Balbus, nor Velleius, who deliver their opinions.” See Warburton’s *Divine Legation*, part 2. book 3. last edition, where the character of Cicero, as drawn by that very learned and able writer, p. 165, &c. is the best clew I know of to guide us through his philosophical works. See also, *Critical Inquiry into the opinions and practice of the ancient philosophers*, *passim*.

[322](#) Verius est igitur nimirum illud quod familiaris omnium nostrum Posidonius disseruit in libro quinto de natura deorum, nullos esse deos Epicuro videri: quæque is de Diis immortalibus dixerit, invidiæ detestandæ gratia dixisse, p. 78.

[323](#) Οἱ τὰ κοινὰ χειρίζοντες παρὰ μὲν τοῖς Ἕλλησιν, ἐὰν τάλαντον μόνον πιστευθῶσιν ἀντιγραφεῖς ἔχοντες δέκα, καὶ σφραγίδας τοσαύτας, καὶ μάρτυρας διπλασίους, οὐ δύνανται τηρεῖν τὴν πίστιν. παρὰ δὲ Ῥωμαίοις, κατὰ τε τὰς ἀρχὰς καὶ πρεσβείας πολὺ τι πλῆθος χρημάτων χειρίζοντες δι’ αὐτῆς τῆς κατὰ τὸν ὅρκον πίστεως, τηροῦσι τὸ καθῆκον. Polyb. lib. 6. p. 693.

I have called ἀντιγραφεῖς, notary publick, because that office answers the idea much better, in my opinion, than *contralotulator*, from which may possibly be derived our comptroller, which, I think, is by no means what is here meant.

[324](#) Te neque hominum neque deorum pudet, quos perfidia et perjurio violasti. Sall. Fragm. Orat. L. Phil. Cont. Lep. p. 146.

[325](#) Μεγίστην δέ μοι δοκεῖ διαφορὰν ἔχειν τὸ Ῥωμαίων πολίτευμα πρὸς τὸ βέλτιον ἐν τῇ περὶ θεῶν διαλήψει. καὶ μοι δοκεῖ τὸ παρὰ τοῖς ἄλλοις ἀνθρώποις ὀνειδιζόμενον, τοῦτο συνέχειν τὰ Ῥωμαίων πράγματα· λέγω δὲ τὴν δεισιδαιμονίαν. Polyb. lib. 6. p. 692.

[326](#) There is indeed little occasion for an apology for this translation. The judicious critick will easily see, that in this passage there is a plain contrast drawn between the manners of the Grecians and the Romans in the time of Polybius. The cause of that difference this able writer justly ascribes to that δεισιδαιμονία, or awful fear of the gods, so strongly inculcated amongst the Romans, and so much despised and ridiculed amongst the Grecians, who were at that time greatly tinctured with the atheism of Epicurus. The instance he selects in proof, drawn from the very different effect of an oath upon the manners of those two people, must convince us beyond a doubt, that by the words τοῖς ἄλλοις ἀνθρώποις ὀνειδιζόμενον, he plainly characterizes his own countrymen. As by “οἱ νῦν εἰκῇ καὶ ἀλόγως ἐκβάλλειν αὐτὰ,” they who now (that is, in his time) inconsiderately and absurdly reject those great sanctions of religion, he evidently points at such of the leading men amongst the Romans, as in his time had embraced the pernicious tenets of Epicurus. For though he had stigmatized the Carthaginians immediately before their avarice and lust of gain, yet no man knew better than Polybius, that the Carthaginians rather exceeded the Romans in superstition. That they were sincere too in their belief, is

evident from that most horrible method, by which they expressed their δεισιδαιμονία, which was their frequent sacrifices of great numbers of their own children (those of the very first families not excepted) to their god Moloch, who, by the Greeks and Romans, was termed Chronos and Saturn.

I thought this remark might not be useless, because as none of the commentators have taken any notice of it, so neither Casaubon, nor any translator I have yet met with, seems to have given us the true spirit and meaning of this remarkable passage.

[327](#) Ἐπὶ τοσοῦτον γὰρ ἐκτετραγώδεται καὶ παρεισῆκται τοῦτο τὸ μέρος παρ' αὐτοῖς εἰς τε τοὺς κατ' ἰδίαν βίους, καὶ τὰ κοινὰ τῆς πόλεως, ὥστε μὴ καταλιπεῖν ὑπερβολήν. Ibid.

[328](#) Διόπερ οἱ παλαιοὶ δοκοῦσί μοι εἰκῇ καὶ ὥς ἔτυχεν εἰς τὰ πλήθη παρεισαγαγεῖν, πολὺ δὲ μᾶλλον οἱ νῦν εἰκῇ καὶ ἀλόγως ἐκβάλλειν αὐτὰ. Lib. 6. p. 693.

[329](#) But as soon as Epicurus and his followers began to weaken the foundation and principles of religion, by calling them in question, all manner of immorality came rolling in like a mighty torrent, and threw down the banks of law and sobriety. Lawrence, M. A.

[330](#) Justin. lib. 18. c. 5.

[331](#) Termed consuls by the Romans, *susetes* by the Carthaginians.

[332](#) Οὐ γὰρ μόνον ἀριστίνδην, ἀλλὰ καὶ πλουτίνδην οἶονται δεῖν αἰρεῖσθαι τοὺς ἄρχοντας. Arist. de Repub. lib. 2. p. 234. c. 11.

[333](#) Αἰροῦνται γὰρ εἰς δύο ταῦτα βλέποντες (τὸν πλοῦτον, scil. καὶ τὴν ἀρετὴν) καὶ μάλιστα τὰς μεγίστας, τοὺς τε Βασιλεῖς καὶ τοὺς στρατηγοὺς. Ibid. p. 335.

[334](#) Ἔχει δὲ πολιτεία τῶν Καρχηδονίων παραπλήσια τῇ Λακωνικῇ πολιτείᾳ τὰ μὲν συσσίτια τῶν ἐταιριῶν τοῖς φιδιτίοις· τὴν δὲ τῶν ἑκατὸν καὶ τεττάρων ἀρχὴν, τοῖς Ἐφόροις, πλὴν οὐ χεῖρον. Οἱ μὲν γὰρ, ἐκ τῶν τυχόντων εἰσὶ. Ταύτην δ' αἰροῦνται τὴν ἀρχὴν ἀριστίνδην. Ibid. p. 334.

[335](#) —Τὸ δ' ἀμίσθους καὶ μὴ κληρωτὰς ἀριστοκρατικὸν θετέον, καὶ εἴτε τοιοῦτον ἔτερον. Ibid.

[336](#) —Τὸ δὲ τὰς πενταρχίας κυρίας οὔσας πολλῶν καὶ μεγάλων, ὅφ' αὐτῶν αἰρετὰς εἶναι, καὶ τὴν τῶν ἑκατὸν ταύτας αἰρεῖσθαι τὴν μεγίστην ἀρχήν. ἔτι δὲ ταύτας πλείονα ἄρχειν χρόνον τῶν ἄλλων (καὶ γὰρ ἐξεληλυθότες ἄρχουσι, καὶ μέλλοντες) ὀλιγαρχικόν. Ibid.

[337](#) —Σημεῖον δὲ πολιτείας συντεταγμένης, τὸ τὸν δῆμον ἔχουσιν, διαμένειν ἐν τῇ τάξει τῆς πολιτείας, καὶ μήτε στάσιν, ὅτι γὰρ ἄξιον εἰπεῖν, γεγενῆσθαι, μήτε Τύραννον. Ibid.

[338](#) Τὸ μὲν προσάγειν, τὸ δὲ μὴ προσάγειν πρὸς τὸν δῆμον, οἱ Βασιλεῖς κύριοι μετὰ τῶν γερόντων, ἃν ὁμογνῶμονῶσι πάντες. εἰ δὲ μή, καὶ τούτων ὁ δῆμος. Ἄ δὲ ἃν εἰσφέρωσιν οὗτοι οὐ διακοῦσαι μόνον ἀποδιδόασιν τῷ δήμῳ τὰ δόξαντα τοῖς ἄρχουσιν, ἀλλὰ κύριοι κρίνουν εἰσὶ· καὶ τῷ βουλομένῳ τοῖς εἰσφερομένοις ἀντειπεῖν ἔξεστιν. Ὅπερ ἐν ταῖς ἐτέραις πολιτείαις οὐκ ἔστι. Ibid. pag. 334.

[339](#) The idol to whom the Carthaginians sacrificed their children was the Molock of the Canaanites, from whom they were lineally descended. This idol was the Chronos of the Greeks, and Saturn of the Latins.

[340](#) Plut. de Superstit. p. 171.

[341](#) Diodor. Sicul. lib. 20. p. 739.

[342](#) Id. ibid.

[343](#) This institution has been adopted since, by the Greek and Latin churches. The only difference in the punishment is, that the ancient vestals were buried alive, the modern

vestals are immured between four walls.

[344](#) Polybius informs us, that when the Romans took a city by storm, they not only put all the men to the sword, but even quartered the dogs, and hewed off the limbs of every other living creature they found in the place.

Πολλάκις ἰδεῖν ἐστὶν ἐν ταῖς τῶν Ῥωμαίων καταλήψεσι τῶν πόλεων, οὐ μόνους τοὺς ἀνθρώπους πεφονευμένους, ἀλλὰ τοὺς κύνας δεδιχοτομένους, καὶ τῶν ἄλλων ζώων μέλη παρακεκομμένα. Polyb. lib. 10. p. 820.

[345](#) Sallust. de Bell. Jugurth. p. 126....27.

[346](#) Grandeur des Romains, p. 68, &c.

[347](#) In fidem populi Romani sese dedere. Vide Polyb. Exerpt. Legat. p. 1114, 15.

[348](#) Ibid. p. 1349, 50.

[349](#) Appian. de Bell. Pun. p. 82.

[350](#) Grandeur des Romains, p. 34.

[351](#) When the Roman ambassadours, soon after the loss of Saguntum, solicited an alliance with the Volsicani, a people of Spain, that people seemed astonished at the effrontery of the Romans, and bid them go and seek for allies amongst those nations who had never heard of the destruction of Saguntum, which, as they assured them, would be a melancholy and striking warning to the Spaniards how they ever placed any confidence in the good faith and friendship of the Romans. Liv. lib. 21. c. 19. p. 144.

[352](#) Polyb. lib. 3. p. 270. et seq.

[353](#) It has been asked—for what reason? I answer, Livy will inform us in the 22d book of his history.—“The studied delay of Fabius (who industriously avoided fighting) which according to that historian, gave such just cause of uneasiness to Hannibal, was treated at Rome with the utmost contempt by the citizens of every rank both military and civil; particularly after the general of the horse Minucius had gained some slight advantage over Hannibal during his absence.”—He adds, “that two unlucky incidents concurred to augment the displeasure of the citizens against the dictator. One was the artful behaviour of Hannibal; who wasted all the country around with fire and sword, the estate of Fabius alone excepted, which he carefully preserved, in hopes that such a different treatment might be thought the effect of some clandestine correspondence between the two commanders.”—The other was—his settling an exchange of prisoners with Hannibal by his own proper authority, and by the same cartel which had subsisted between the Roman and Carthaginian generals in the first Punick war. By that it was agreed: that if any prisoners should remain on either side, after the exchange of man for man was finished, such prisoners should be redeemed at the rate of two pounds and a half of silver for each soldier. When the exchange was made, two hundred and forty-seven Roman prisoners remained to be ransomed.—But as the senate hesitated greatly at passing a decree for the payment of the stipulated sum, because the dictator had not consulted them upon the occasion; he sold those very lands which Hannibal had left untouched, and discharged the debt due from the publick out of his own private fortune.—Whether these were the only reasons or not; yet, they had evidently such an effect upon the Romans, that Fabius seems to have been at that time the object of their resentment, which they never failed to give proofs of upon every occasion.—Thus when Fabius opened the campaign, his cautious conduct was so disagreeable to the officers as well as soldiers, who listened wholly to the idle boasts of Minucius; that if the choice of their commander had depended upon the voices of the military men, Minucius, as Livy affirms, would undoubtedly have been preferred to Fabius. The same historian tells us; that when Fabius returned to Rome to preside as dictator at their religious ceremonies the tribunes of the people inveighed so

bitterly against him in their public harangues, that he refrained from coming to their assemblies.—Even what he spoke in the senate met with a very indifferent reception, especially when he extolled the conduct and abilities of Hannibal, and enumerated the repeated defeats they had received for the two last years through the rashness and incapacity of their own commanders.—When Fabius returned to the camp he received a much more mortifying proof of their displeasure. For they raised Minucius to an equality with him in the command, an act for which there had been no precedent since the first erection of the dictatorial office.—Nor did their enmity to Fabius subside until after the fatal defeat at Cannæ. For the worthless Varro obtained not only the consulship, but what is still more extraordinary, even the confidence of the greater part of the senate, and almost the whole army by railing at Fabius and Fabian measures, and out boasting Minucius. I have showed above from Polybius what trust the majority of the senate reposed in Varro. But I cannot omit a remarkable instance, which Livy gives us, of the absurd and fatal partiality of the military men to Varro, in opposition to Æmilius, who avowedly followed the advice of Fabius.—In a council of war, says that historian, held a little before the battle of Cannæ, when each consul persisted firmly in his former opinion; Æmilius adhering to Fabius's plan for avoiding fighting; Varro to his resolution of engaging the enemy immediately; Servilius one of the consuls of the former year was the only one who joined Æmilius, the rest declared for Varro.

[354](#) Above eighty thousand, according to Dionysius of Halicarnassus.

[355](#) Polyb. lib. 3. p. 370.

[356](#) Liv. lib. 22. p. 242.

[357](#) Polyb. lib. 6. p. 688.

[358](#) Our method of trying delinquents, either in the land or sea service, by a court-martial composed of their respective officers, has been judged liable to many objections, and has occasioned no little discontent in the nation. For as their inquiry is restricted to a particular set of articles in each service, I don't see how a commanding officer, vested with a discretionary power of acting, can strictly or properly come under their cognizance, or be ever liable to their censure, unless he is proved guilty of a direct breach of any one of those articles. But as a commander in chief may easily avoid an offence of that nature, and yet, upon the whole of his conduct in any expedition, be highly culpable; a court-martial, thus circumscribed in their power of inquiry, can never be competent judges in a cause where they are denied a proper power of examining into the real demerits of the supposed offender. Much has been said about trying offences of this nature, like other criminal cases, by juries: a scheme which, at the very first sight, must appear absurd and impracticable to the rational and unprejudiced.

As therefore instruction is the true end and use of all history, I shall take the liberty of offering a scheme, drawn from that wise and salutary institution of the Carthaginians, which is,—“that a select standing committee be appointed, to be composed of an equal number of members of both houses, chosen annually by balloting, with a full power of inquiring into the conduct of all commanders in chief, without any restraint of articles of war; and that, after a proper examination, the committee shall refer the case, with their opinion upon it, to the decision of his majesty.”

This scheme seems to me the least liable to objections of any I have yet met with. For if the numbers are chosen by balloting, they will be less liable to the influence of party. If they are chosen annually, and refer the case to the decision of the crown, which is the fountain of justice as well as mercy, they will neither encroach upon the royal prerogative, nor be liable to that signal defect in the Carthaginian committee, which sat for life, and whose sentence was final without appeal.

- [359](#) Diodor. Sicul. lib. 20. p. 739.
- [360](#) Polyb. Hist. lib. 6. p. 628.
- [361](#) Id. ibid. p. 638-9.
- [362](#) Polyb. lib. 3. p. 223.
- [363](#) Δημοκρατία θηριώδης. Polyb. p. 638.
- [364](#) Πολιτειῶν ἀνακύκλωσις. Polyb. p. 637.
- [365](#) Xenophon, de Republ. Athen.
- [366](#) Esprit des loix, vol. 2. p. 3.
- [367](#) The king of Prussia.

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